



Republic of the Philippines
Province of Cebu
Municipality of Dalaguete

Office of the Sangguniang Bayan

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EXCERPTS FROM MINUTES NO. 40-2022 OF THE 16TH SANGGUNIAN BAYAN OF DALAGUETE, CEBU OF ITS REGULAR SESSION HELD AT THE MUNICIPAL SESSION HALL ON NOVEMBER 28, 2022.

Vice Mayor William O. Lagahid, Presiding	Present
Councilor Coca Nicohl B. Osorio	Present
Councilor Royce Nikko J. Cesante	Present
Councilor Ernesto M. Tangpos	Present
Councilor Jeffrey B. Belciña	Present
Councilor Kevin V. Belandres	Present
Councilor Lowell O. Amaya	Present
Councilor Felix G. Villacorta	Present
Councilor Hilarion S. Belciña, Jr.	Present
ABC President Ricardo E. Villahermosa	Present
SKF President Jan Dwight H. Paquilil	Present

RESOLUTION NO. 245-2022

A RESOLUTION APPROVING AN ORDINANCE REVISING MUNICIPAL TAX ORDINANCE NO. XXV, OTHERWISE KNOWN AS THE 2015 REVISED REVENUE CODE OF DALAGUETE, CEBU.

WHEREAS, Republic Act No. 7160 otherwise known as the "Local Government Code of 1991" underscores the need for all local government units to enact their respective enabling tax ordinance in order to exercise their new taxing power;

WHEREAS, it has been more than 7 years since the last revision of the Municipal Tax Ordinance and there is significant economic development in the Municipality;

WHEREAS, the existing tax ordinance need revision and supplementation in order to adjust to the present condition of a growing population, and the need for additional sources of revenue;

NOW THEREFORE, on motion of Hon. Ernesto M. Tangpos, Chairman of the Committee on Finance, duly seconded by Hon. Royce Nikko J. Cesante, the Sangguniang Bayan of Dalaguete on its regular session has;

RESOLVED to **ENACT** as it is hereby **ENACTED**, Tax Ordinance No. XLVII, otherwise known as the 2022 Revised Revenue Code of Dalaguete, Cebu, viz:

MUNICIPAL TAX ORDINANCE NO. XLVII

AN ORDINANCE ENACTING THE 2022 REVISED REVENUE CODE OF DALAGUETE, CEBU AND FOR OTHER PURPOSES.

BE IT ORDAINED, by the Sangguniang Bayan of Dalaguete, Cebu and by authority of the same, that:

CHAPTER I. GENERAL PROVISIONS. Article I Short Title and Scope.

Section 1. Short Title. This ordinance shall be known as the “**2022 REVISED REVENUE CODE OF THE MUNICIPALITY OF DALAGUETE, CEBU**”.

Section 2. Scope and Application. This Code shall govern the levy, assessment, and collection of taxes, fees, charges and other impositions within the territorial jurisdiction of this municipality.

Article II **Construction of Provisions.**

Section 3. Words and Phrases Not Herein Expressly Defined. Words and phrases embodied in this Code not herein specifically defined shall have the same definitions as found in RA 7160, otherwise known as the Local Government Code of 1991.

Section 4. Rules of Construction. In construing the provisions of this Code, the following rules of construction shall be observed unless inconsistent with the manifest intent of the provisions.

(a) **General Rules.** All words and phrases shall be construed and understood according to the common and approved usage of the language; but the technical words and phrases and such other words in this Code which may have acquired a peculiar or appropriate meaning shall be construed and understood according to such technical, peculiar or appropriate meaning.

(b) **Gender and Number.** Every word in the Code importing the masculine gender shall extend to both male and female. Every word importing the singular number shall apply to several persons or things as well; and every word importing the plural number shall extend and be applied to one person or thing as well.

(c) **Reasonable Time.** In all cases where any act is required to be done within the reasonable time, the same shall be deemed to mean such time as may be necessary for the prompt performance of the act.

(d) **Computation of Time.** The time within which an act is to be done as provided in this Code, or in any rule or regulation issued pursuant to the provisions thereof, when expressed in days, shall be computed by excluding the first day and including the last day, except if the last day falls on a Sunday or holiday, in which case the same shall be excluded in the computation and the business day following shall be considered the last day.

(e) **References.** All references to chapters, articles, or sections are to the Chapters, Articles or Sections in this Code unless otherwise specified.

(f) **Conflicting Provisions of Chapters.** If the provisions of different chapters conflict with or contravene each other, the provisions of each chapter shall prevail as to all specific matters and questions involved therein.

(g) **Conflicting Provisions of Sections.** If the provisions of the different sections in the same article conflict with each other, the provisions of the Section which is the last in point of sequence shall prevail.

Article III **Definition of Terms.**

Section 5. Definition of Terms.

(a) **Business.** - means trade or commercial activity regularly engaged in as a means of livelihood or with a view to profit;

(b) **Charges.** - refer to pecuniary liability, as rents or fees against persons or property;

(c) **Cooperative.** - is a duly registered association of persons, with a common bond of interest, who have voluntarily joined together to achieve a lawful, common, social, or economic end, making equitable contributions to the capital required and accepting a fair share of the risks and benefits of the undertaking in accordance with universally accepted cooperative principles.

(d) **Corporations.** - includes partnerships, no matter how created or organized, joint-stock companies, joint accounts, associations or insurance companies but does not include general professional partnerships and a joint venture or consortium formed for the purpose of undertaking construction projects or engaging in petroleum, coal, geothermal, and other energy operations or consortium agreement under a service contract with the government. General professional partnerships are partnerships formed by persons for the sole purpose of exercising their common profession, no part of the income of which is derived from engaging in any trade or business;

The term "resident foreign" when applied to a corporation means a foreign corporation not otherwise organized under the laws of the Philippines but engaged in trade or business within the Philippines.

(e) **Cell – Site Tower.** - shall refer to a pyramid-like skeletal structure with a framework of angular steel, bolted or welded together, typically higher than its diameter and high relative to its surroundings, and used to install antennas or signal booster for better radio and sound wave reception and transmission.

(f) **Fee.** - means a charge fixed by law or ordinance for the regulation or inspection of a business or activity. It shall also include charges fixed by law or agency for the services of a public officer in the discharge of his official duties;

(g) **Franchise.** - is a right or privilege, affected with public interest that is conferred upon private persons or corporations, under such terms and conditions as the government and its political subdivisions may impose in the interest of public welfare, security and safety;

(h) **Gross Sales or Receipts.** - include the total amount of money or its equivalent representing the contract price, compensation or service fee, including the amount charged or materials supplied with the services and deposits or advance payments actually received during the taxable quarter for the services performed or to be performed for another person excluding discounts if determinable at the time of sales, sales return, excise tax, and value added tax (VAT);

(i) **Levy.** - means an imposition or collection of an assessment, tax, fee, charge, or fine.

(j) **License or Permit.** - is a right or permission granted in accordance with law or by a competent authority to engage in some business or occupation or to engage in some transactions.

(k) **Municipal Waters.** – the area, 15 kilometers from the coastline including offshore islands, streams, lakes, inland bodies of water and tidal waters within the municipality. These waters are not included within the protected areas as defined under the NIPAS Law, which is establishing the protected areas system. Where two (2) municipalities are so situated on the opposite shores that there is less than fifteen (15) kilometers of marine waters between them, the third line shall be equally distant from opposite shores of the respective municipalities;

(l) **Operator.** - includes the owner, manager, administrator, or any other person who operates or is responsible for the operation of a business establishment or undertaking;

(m) **Privilege.** - means a right or immunity granted as a peculiar benefit, advantage or favor.

(n) **Persons.** - mean every natural or juridical being, susceptible of rights and obligations or of being the subject of legal relations;

(o) **Rental.** - means the value of the consideration, whether in money, or otherwise, given for the enjoyment or use of a thing.

(p) **Residents.** - refer to natural persons who have their habitual residence in the province, city, or municipality where they exercise their civil rights and fulfill their civil obligations, and to juridical persons for which the law or any other provision creating or recognizing them fixes their residence in a particular province, city or municipality. In the absence of such laws, juridical persons are residents of the province, city or municipality where they have their legal residence or principal place of business or where they conduct their principal business or occupation;

(q) **Revenue.** - includes taxes, fees and charges that a state or its political subdivision collects and receives into the treasury for public purposes.

(r) **Services.** - mean the duties, work or functions performed or discharged by a government officer, or by a private person contracted by the government, as the case may be.

(s) **Tax.** - means an enforced contribution, usually monetary in form, levied by the law-making body on persons and property subject to its jurisdiction for the precise purpose of supporting governmental needs.

Chapter II **Taxes on Business**

Article I **Graduated Tax on Business.**

Section 6. Definitions of Terms. When use in this Article.

(a) **Advertising Agency.** - includes all persons who are engaged in the business of advertising for others by means of billboards, posters, placards, notices, signs, directories, pamphlets, leaflets, handbills, electric or neon lights, airplanes, balloons or other media, whether in pictorial or reading form.

(b) **Agricultural Products.** – such as Vegetables, Coconuts, Fruits, Flowers, Livestock and Animal products, whether in their original form or not;

The phrase "**whether in their original form or not**" refers to the transformation of said products by the farmer, fisherman, producer or owner through the application of processes to preserve or otherwise to prepare said products for the market such as freezing, drying, salting, smoking, or stripping for purposes of preserving or otherwise preparing said products for the market; to be considered an agricultural product whether in its original form or not, its transformation must have been undertaken by the farmer, fisherman, producer or owner.

Agricultural products as defined include those that undergo not only simple but even sophisticated processes employing advanced technological means in packaging like dressed chicken or ground coffee in plastic bags or styropor or other packaging materials intended to process and prepare the products for the market.

The term by-products shall mean those materials which in cultivation or processing of an article remain over, and which are still of value and marketable, like copra cake from copra or molasses from sugar cane.

(c) **Amusement.** - is a pleasurable diversion and entertainment. It is synonymous to relaxation, avocation, pastime, or fun.

(d) **Amusement Places.** - include theaters, cinemas, concert halls, circuses and other places of amusement where one seeks admission to entertain oneself by seeing or viewing the show or performance.

(e) **Banks and other Financial Institutions.** - include non-bank financial intermediaries, lending investors, finance and investment companies, pawnshops, money shops, insurance companies, stock markets, stock brokers, and dealers in securities and foreign exchange, as defined under applicable law, or rules and regulations there under.

(f) **Brewer includes.** - all persons who manufacture fermented liquors of any description for sale or delivery to others but does not include manufacturers of tuba, basi, tapuy or similar domestic fermented liquors, whose daily production does not exceed two-hundred-gauge liters.

(g) **Business Agent.** - includes all persons who act as agents of others in the transaction of business with any public officer, as well as those who conduct collecting, advertising, employment, or private detective agencies.

(h) **Disco Pub.** - includes any place or establishment where dancing is permitted to the public in consideration of any admission, entrance, or any other fee paid, on or before, or after the dancing, and where entrance teller/collector are employed.

(i) **Capital Investment.** - is the capital that a person employs in any undertaking, or which he contributes to the capital of a partnership, corporation, or any other juridical entity or association in a particular taxing jurisdiction.

(j) **Carenderia.** - refers to any public eating place where food already cooked are served at a price.

(k) **Cockpit.** - includes any place, compound, building or portion thereof, where cockfights are held, whether or not money bets are made on the results of such cockfights.

(l) **Contractor.** - includes persons, natural or juridical, not subject to professional tax under Section 139 of the Local Government Code of 1991, whose activity consists essentially of the sale of all kinds of services for a fee, regardless of whether or not the performance of the service calls for the exercise or use of the physical or mental faculties of such contractor or his employees.

As used in this Article, the term "contractor" shall include general engineering, general building and specially contractors as defined under applicable laws, filling, demolition and salvage works contractors; proprietors or operators of mine drilling apparatus; proprietors or operators of dockyards; persons engaged in the installation of water system, and gas or electric light, heat, or establishments; proprietors or operators of smelting plants; engraving plating and plastic lamination establishments; proprietors or operators of establishments for repairing, repainting, upholstering, washing or greasing of vehicles, heavy equipment, vulcanizing, recapping and battery charging; proprietors or operators of furniture shops and establishments for planning or surfacing and re-cutting of lumber and sawmills under contract to saw or cut logs belonging to others; proprietors or operators of dry-cleaning or dyeing establishments, steam laundries, and using washing machines; proprietors or owners of shops for the repair of any kind of mechanical and electrical devices; instruments, apparatus, or furniture and shoe repairing by machine or any mechanical and electrical devices; proprietors or operators of establishments or lots for parking purposes; proprietors or operators of tailor shops, dress shops, milliners and hatters, beauty parlors, barbershops, massage clinics, sauna, Turkish and Swedish baths, slenderizing and body-building saloon and similar establishments; photographic studios; funeral parlors; proprietors or operators of hotels, motels, and lodging houses; proprietors or operators of arrastre and stevedoring, warehousing, or forwarding establishments; master plumbers, smiths and house or sign painters; printers, bookbinders, lithographers, publishers except those engaged in the publication or printing of any newspaper, magazine, review or bulletin which appears at regular intervals with fixed prices for subscription and sale and which is not devoted principally to the publication of advertisements; business agents, private detectives or watchman agencies; commercial and immigration brokers; cinematographic film owners, lessors and distributors.

The term "contractor" shall also include, but shall not be limited to, tax subjects enumerated under Section 19 of Presidential Decree No. 231, but which are no longer included in the enumeration of "contractor" under Section 131 of Republic Act No. 7160, viz.: welding shops, service stations, white/blue, printing, recopying, or photocopying services, assaying laboratories, advertising agencies, shops for shearing animals, vaciador shops, stables, construction of motor vehicles, animal drawn vehicles, and/or tricycles, lathe machine shops, furniture shops, and proprietors of bulldozers and other heavy equipment available to others for consideration.

(m) **Dealer.** - means one whose business is to buy and sell merchandise, goods and chattels as a merchant. He stands immediately between the producer or manufacturer and the consumer and depends for his profit not upon the labor he bestows upon his commodities but upon the skill and foresight with which he watches the market.

(n) **Importer.** - means any person who brings articles, goods, wares or merchandise of any kind or class into the Philippines from abroad for unloading therein, or which after entry are consumed herein or incorporated into the general mass of property in the Philippines. In case of tax-free articles, brought or imported into the Philippines by persons, entities or agencies exempt from tax which are subsequently sold, transferred or exchanged in the Philippines to non-exempt private persons or entities, the purchaser or recipient shall be considered the importer thereof.

(o) **Manufacturer.** - includes every person who, by physical or chemical process, alters the exterior texture or form or inner substance of any such raw materials or manufactured or partially manufactured product in such manner as to prepare it for special use or uses to which it could not have been put in its original condition, or who by any such process, alters the quality of any such raw material or manufactured or partially manufactured products so as to reduce its marketable shape or prepare it for any of the use of industry, or who by any such process, combines any raw material or manufactured products with other materials or products of the same or of different kinds and in such manner that the finished products of such process or manufacture can be put to a special use or uses to which such raw material or manufactured or partially manufactured in their original condition could not have been put, and who in addition, alters such raw material or manufactured or partially manufactured products, or combines the same to produce such finished products for the purpose of their sale or distribution to others and for his own use for consumption.

(p) **Marginal Farmer or Fisherman.** - refers to individuals engaged in subsistence farming or fishing which shall be limited to the sale, barter or exchange of agricultural or marine products produced by himself and his immediate family and whose annual net income from such farming or fishing does not exceed Fifty Thousand Pesos (50,000.00) or the poverty line established by NEDA for the particular region or locality, whichever is higher.

(q) **Motor Vehicle.** - means any vehicle propelled by any power other than muscular power using the public roads, but excluding road rollers, trolley cars, street sweepers, sprinklers, lawn mowers, bulldozers, graders, forklifts, amphibian trucks, and cranes if not used on public roads, vehicles that run only on rails or tracks, tractors, trailers, and traction engines of all kinds used exclusively for agricultural purposes. A self-propelled wheeled vehicle that does not operate on rails, such as trains or trolleys.

(r) **Peddler.** - means any person who, either for himself or on commission, travels from place to place and sells his goods or offers to sell and deliver the same. Whether a peddler is a wholesale peddler or retail peddler of a particular commodity shall be determined from the definition of wholesale dealer or retail dealer as provided in this Ordinance.

(s) **Public Market.** - refers to any place, building, or structure of any kind designated as such by the Sangguniang Bayan, except public streets, plazas, parks, and the like.

(t) **Rectifier.** - comprises every person or persons who rectifies, purifies, or refines distilled spirits or wines by any process other than by original or continuous distillation from mash, wort, wash, sap, or syrup through continuous closed vessels and pipes until the manufacture thereof is complete. Every wholesale or retail liquor dealer who has in his possession any still or mash tub, or who keeps any other apparatus for the purpose of distilling spirits, or in any manner refining distilled spirits, shall also be regarded as a rectifier and as being engaged in the business of rectifying.

(u) **Restaurant.** - refers to any place which provides food to the public and accepts orders from them at a price. This term includes caterers.

(v) **Retail.** - means a sale where the purchaser buys the commodity for his consumption, irrespective of the quantity of the commodity sold.

(w) **Vessel.** - includes every type of boat, craft, or other artificial contrivances used, or capable of being used, as a means of transportation on water.

(x) **Wharfage.** - means a fee assessed against the cargo of a vessel engaged in foreign or domestic trade based on quantity, weight, or measure received and/or discharged by vessel.

(y) **Wholesale.** - means a sale where the purchaser buys or imports the commodities for resale to persons other than the end user regardless of the quantity of the transaction.

Section 7. Imposition of Tax. There is hereby imposed on the following persons who establish, operate, conduct or maintain their respective business within the municipality a graduated business tax in the amounts hereafter prescribed:

(a) On **manufacturers, assemblers, repackers, processors, brewers, distillers, rectifiers, and compounders or liquors, distilled spirits, and wines or manufacturers** of any article of commerce of whatever kind or nature. In accordance with the following schedule:

AMOUNT OF GROSS SALES/RECEIPTS FOR THE PRECEDING CALENDAR YEAR:		AMOUNT OF TAX PER ANNUM
P 30,000.00 or more but less than P 40,000.00	P	966.31
P 40,000.00 or more but less than P 50,000.00	P	1,207.89
P 50,000.00 or more but less than P 75,000.00	P	1,932.61
P 75,000.00 or more but less than P 100,000.00	P	2,415.76
P 100,000.00 or more but less than P 150,000.00	P	3,221.02
P 150,000.00 or more but less than P 200,000.00	P	4,026.28
P 200,000.00 or more but less than P 300,000.00	P	5,636.79
P 300,000.00 or more but less than P 500,000.00	P	8,052.55
P 500,000.00 or more but less than P 750,000.00	P	11,712.80
P 750,000.00 or more but less than P 1,000,000.00	P	14,641.00
P 1,000,000.00 or more but less than P 2,000,000.00	P	20,131.38
P 2,000,000.00 or more but less than P 3,000,000.00	P	24,157.65
P 3,000,000.00 or more but less than P 4,000,000.00	P	28,989.18
P 4,000,000.00 or more but less than P 5,000,000.00	P	33,820.71
P 5,000,000.00 or more but less than P 6,500,000.00	P	35,687.44
P 6,500,000.00 or more	P	35,687.44 plus 37.50% of 1% in excess of P 6,500,000.00

The preceding rates shall apply only to the amount of domestic sales of manufacturers, assemblers, repackers, processors, brewers, distillers, rectifiers and compounders of liquors, distilled spirits, and wines or manufacturers of any article of commerce of whatever kind or nature other than those enumerated under paragraph (c) of this Section.

(b) On **wholesalers, distributors, or dealers** in any article of commerce of whatever kind or nature in accordance with the following schedules:

AMOUNT OF GROSS SALES/RECEIPTS FOR THE PRECEDING CALENDAR YEAR:		AMOUNT OF TAX PER ANNUM
P 30,000.00 or more but less than P 40,000.00	P	644.20
P 40,000.00 or more but less than P 50,000.00	P	966.31
P 50,000.00 or more but less than P 75,000.00	P	1,449.46
P 75,000.00 or more but less than P 100,000.00	P	1,932.61
P 100,000.00 or more but less than P 150,000.00	P	2,737.87
P 150,000.00 or more but less than P 200,000.00	P	3,543.12
P 200,000.00 or more but less than P 300,000.00	P	4,831.53
P 300,000.00 or more but less than P 500,000.00	P	6,442.04
P 500,000.00 or more but less than P 750,000.00	P	9,663.06
P 750,000.00 or more but less than P 1,000,000.00	P	12,884.08
P 1,000,000.00 or more but less than P 2,000,000.00	P	14,641.00
P 2,000,000.00 or more	P	14,641.00 plus 50% of 1% in excess of P 2,000,000.00

The businesses enumerated in paragraph (a) above shall no longer be subject to the tax on wholesalers, distributors, or dealers herein provided for.

(c) **On exporters, and on manufacturers, millers, producers, wholesalers, distributors. dealers or retailers of essential commodities** enumerated hereunder at a rate not exceeding one-half (1/2) of the rates prescribed under subsections (a), (b), and (d) of this Article;

- (1) Rice and Corn;
- (2) Wheat or cassava flour, meat, dairy products, locally manufactured, processed or preserved food, sugar, salt and agricultural marine, and fresh water products, whether in their original state or not;
- (3) Cooking oil and cooking gas;

- (4) Laundry soap, detergents, and medicine;
- (5) Agricultural implements, equipment and post-harvest facilities, fertilizers and other farm inputs;
- (6) Poultry feeds and other animal feeds;
- (7) School supplies; and

For purposes of this provision, the term *exporters* shall refer to those who are principally engaged in the business of exporting goods and merchandise, as well as manufacturers and producers whose goods or products are both sold domestically and abroad. The amount of export sales shall be excluded from the total sales and shall be subject to the rates not exceeding one half (1/2) of the rates prescribed under paragraphs (a), (b), and (d) of this Article.

(d) On retailers.

Gross Sales/Receipts for the Preceding Year		Rate of Tax Per Annum
P 400,000.00 or less	P	2%
More than P 400,000.00	P	8,000.00 plus 1% in excess of P 400,000.00

The rate of two percent (2%) per annum shall be imposed on sales not exceeding Four Hundred Thousand Pesos (~~P~~400,000.00) while the rate of one percent (1%) per annum shall be imposed on sales in excess of the first Four Hundred Thousand Pesos (~~P~~400,000.00).
However, barangays shall have the exclusive power to levy taxes on stores whose gross sales or receipts of the preceding calendar year does not exceed Thirty Thousand Pesos (~~P~~30,000.00) subject to existing laws and regulations.

(e) On contractors and other independent contractors in accordance with the following schedule:

AMOUNT OF GROSS SALES/RECEIPTS FOR THE PRECEDING CALENDAR YEAR:		AMOUNT OF TAX PER ANNUM
Less than P200,000.00	P	3,865.20
P 200,000.00 or more but less than P 250,000.00	P	5,314.68
P 250,000.00 or more but less than P 300,000.00	P	6,764.14
P 300,000.00 or more but less than P 400,000.00	P	9,018.86
P 400,000.00 or more but less than P 500,000.00	P	12,078.83
P 500,000.00 or more but less than P 750,000.00	P	13,542.93
P 750,000.00 or more but less than P 1,000,000.00	P	15,012.23
P 1,000,000.00 or more but less than P 2,000,000.00	P	16,837.15
P 2,000,000.00 or more	P	16,837.15 PLUS 50% of 1% in excess of P 2,000,000.00

For purposes of this section, the tax on multi-year projects undertaken general engineering, general building, and specialty contractors shall initially be based on the total contract price, payable in equal annual installments within the project term.

Upon completion of the project, the taxes shall be recomputed on the basis of the gross receipts for the preceding calendar years and the deficiency tax, if there be any, shall be collected as provided in this Code or the excess tax payment shall be refunded.

(In cases of projects completed within the year, the tax shall be based upon the contract price and shall be paid upon the issuance of the Mayor’s Permit.)

(f) On banks and other financial institutions, at the rate of fifty percent of one percent (50% of 1%) of the gross receipts ~~P~~**1M** and below and one percent (1%) of the gross receipts above ~~P~~**1M** of the preceding calendar year derived from interest, commissions and discounts from lending activities, income from financial leasing, dividends, rentals on property, and profit from exchange or sale of property insurance premium.

Gross Sales/Receipts of the Preceding Calendar Year	Amount of Tax per Annum
P 1,000,000.00 or less	50% of 1%
Over P 1,000,000.00	1%

(g) On the businesses hereunder enumerated:

1. Cafes, cafeterias, ice cream and other refreshment parlors, restaurants, soda fountain bars, carenderias or food caterers;
2. Amusement places, including places wherein customers thereof actively participate without making bets or wagers, including but not limited to night clubs, or day clubs, cocktail lounges, cabarets or dance halls, karaoke bars, skating rinks, bath houses, swimming pools, exclusive clubs such as country and sports clubs, resorts and other similar places, billiard and pool tables, bowling alleys, circuses, carnivals, merry-go-rounds, roller coasters, ferries wheels, swings, shooting galleries, and other similar contrivances, theaters and cinema houses, boxing stadia, race tracks, cockpits and other similar establishments.
3. Commission agents
4. Lessors, dealers, brokers of real estate;
5. On travel agencies and travel agents
6. On boarding houses, pension houses, motels, apartments, apartelles, and condominiums
7. Subdivision owners/ Private Cemeteries and Memorial Parks
8. Privately-owned markets;
9. Hospitals, medical clinics, dental clinics, therapeutic clinics, medical laboratories, dental laboratories;
10. Operators of Cable Network System
11. Operators of computer services establishment
14. General consultancy services
15. All other similar activities consisting essentially of the sales of services for a fee.

AMOUNT OF GROSS SALES/RECEIPTS FOR THE PRECEDING CALENDAR YEAR:		AMOUNT OF TAX PER ANNUM
P 30,000.00 or more but less than P 40,000.00	P	622.00
P 40,000.00 or more but less than P 50,000.00	P	886.00
P 50,000.00 or more but less than P 75,000.00	P	1,419.00
P 75,000.00 or more but less than P 100,000.00	P	2,129.00
P 100,000.00 or more but less than P 150,000.00	P	3,190.00
P 150,000.00 or more but less than P 200,000.00	P	4,252.00
P 200,000.00 or more but less than P 250,000.00	P	5,847.00
P 250,000.00 or more but less than P 300,000.00	P	7,442.00
P 300,000.00 or more but less than P 400,000.00	P	9,922.00
P 400,000.00 or more but less than P 500,000.00	P	13,288.00
P 500,000.00 or more but less than P 750,000.00	P	14,900.00
P 750,000.00 or more but less than P 1,000,000.00	P	16,508.00
P 1,000,000.00 or more but less than P 2,000,000.00	P	18,521.00
P 2,000,000.00 or more	P	18,521.00 PLUS 70% of 1% in excess of P 2,000,000.00

(h) On peddlers engaged in the sale of any merchandise or article of commerce, at the rate of (not exceeding ₱ 200.00) per peddler annually.

Delivery trucks, vans or vehicles used by manufacturers, producers, wholesalers, dealers or retailers enumerated under Section 141 of R.A. 7160 shall be exempt: from the peddler's tax herein imposed.

The tax herein imposed shall be payable up to February 28 of every year. An individual who will start to peddle merchandise or articles of commerce after January 20 shall pay the full amount of the tax before engaging in such activity.

(i) On any business, not otherwise specified in the preceding paragraphs, which the Sanggunian Bayan may deem proper to tax: Provided, that on any business subject to the excise, value-added or percentage tax under the National Internal Revenue Code, as amended, the rate of tax shall not exceed two percent (2%) of gross sales or receipts of the preceding calendar year.

Chapter III **Article I** **Other Taxes on Business.**

Section 8. Tax on Internet (Wifi) Providers – a kind of business providing (WIFI) internet connection by installing a vending machine attached to their building or separate therefrom for a fee. (hulog-hulog piso/singko).

Section 9. Tax on Automated Tubig Machines (ATM) for drinking and for car wash . Vending machines that dispense drinking water, set up by owners of the machines at certain establishments such as bakeries, carenderias and stores to complement their businesses and those which are set up for car wash shall be covered by this article.

Section 10. Tax on Mobile Trader- A mobile trader is a person, who either for himself or commission, travels from place to place and sells his goods or sells and offers to deliver the same, using a vehicle. Subsumed in this definition are rolling stores, portable **stores**, and similar arrangements.

Section 11. Imposition of Tax. There is hereby imposed an annual tax at the rate of one percent (1%) on the gross receipts of the providers on all types of vending machines and to all Mobile Traders conducting their business within the Municipality.

Section 12. Time of Payment. The tax shall be paid upon the issuance of the Mayor's Permit to do business in the municipality.

Section 13. Administrative Provisions.

(a) The Municipal Treasurer shall determine the taxable gross receipts taking into consideration the number of vending machines installed by the provider for the collection and assessment of their respective tax dues.

(b) Business Tax Permit application in this municipality shall be subject to the requirements set forth as herein below provided to the Business Permit and Licensing Office (BPLO);

1. Applicants for new business permit shall undergo a brief seminar to be conducted by the Office of the Mayor (OM) and Municipal Treasurer's Office/Business Permits and Licensing Office (BPLO).

A. For New Business Application

- 1) Duly filled up Unified Application Form
- 2) Registration from DTI, SEC or CDA as the case may be.
- 3) Barangay Clearance (Where business is located)
- 4) Community Tax Certificate for Business.
- 5) Location Map of Business Establishment (Sketch)

- 6) Sworn Statement /Declaration of Capitalization
- 7) Secure a Latest Official Receipt of the Real Property Tax payment of the land where the business is established (If owner is the applicant) from the MTO.
- 8) Tax Clearance (MTO)
- 9) Contract of Lease if rented by applicant
- 10) A copy of the Business Permit of Lessor
- 11) Sanitary Permit from Rural Health Unit (RHU)
- 12) Fire Inspection certificate from Fire Department.
- 13) Payment of Occupational Permit fee for all the employees of private establishment.

B. For Renewal of Business Permit

- 1) Duly filled up application form
- 2) Copy of previous Business Permit
 - To be used as basis for computing tax, fees and charges.
- 3) Notarized Sworn Statement of Gross Receipts/Sales
- 4) Income Tax Return/Audited Financial Statement
 - If owned
- 5) Tax Clearance (MTO)
- 6) Latest Official Receipt of real Property Tax Payment (MTO)
 - If rented
- 7) Contract of Lease
- 8) Photocopy of Business Permit of Lessor.
- 9) Barangay Clearance (where business is located)
- 10) Community Tax Certificate (for business)
- 11) Sanitary Permit (RHU)
- 12) Fire Inspection Clearance (Fire Department)
- 13) Market Clearance (For Stallholders)
- 14) Occupational Permit for all employees of Private Business Establishment.

Article II **Tax on Operators of Public Utility Vehicles.**

Section 14. Imposition of Tax. There is hereby imposed a tax on operators of public utility vehicles maintaining booking office, terminal, or waiting station for the purpose of carrying passengers from this municipality under a certificate of public convenience and necessity or similar franchises.

1. Public Utilities

Air-conditioned buses	₱	5,000.00	per unit
Ordinary buses without air conditioning	₱	2,500.00	per unit
Mini buses	₱	2,500.00	per unit
Jeepneys/Multi Cab	₱	750.00	per unit
Van for hire	₱	1,000.00	per unit

2. Trucks for hire P2,500.00

3. Tax on private Vehicles - an annual tax on resident owners of private vehicles used occasionally or as per transaction, to carry goods and/or passengers from this municipality to a certain destination, as follows.

Cars	- P	1,000.00	per unit
Vans	- P	1,000.00	per unit
Jeepney/Multi Cab	- P	750.00	per unit
Mini-buses	- P	1,000.00	per unit
Trucks	- P	1,500.00	per unit

Section 15. Time of Payment. The tax shall be paid within the last day of February of each year.

Article III **Tax on Mining Operations.**

Section 16. Definition of terms.

- a) *Minerals.* - Refer to naturally occurring inorganic substances (found in nature) whether in solid, liquid, gaseous or any intermediate state.
- b) *Mineral Products.* - Shall mean things produced and prepared in a workable state by simple treatment processes such as washing or drying but without undergoing any chemical change or process or manufacturing by the lessee, concessionaire or owner of mineral lands.
- c) *Quarry Resources* means any common stone or other common mineral substances such as but not restricted to coal, marble, granite, volcanic cinders, basalt, tuff, and rock phosphate.

Section 17. Business Tax on Mining Companies. The tax on mining companies shall be levied on their gross receipts for the preceding year, as follows:

- a) Mining companies which exclusively operate for the extraction of mineral, metallic or non-metallic, the tax rate shall not exceed two percent (2%) of their gross receipts pursuant to Section 143(h) of the LGC, as imposed under Chapter II, Sec. 7, Sub. Sec. (i) of this ordinance.

Section 18. Imposition of Tax. Mining companies whose operations include the processing of extracted minerals to finished products shall be taxed on their gross receipts pursuant to Section 143(a) of LGC, as imposed under this ordinance, and is levied an annual tax at the rate of two percent (2%) based on the gross receipts for the preceding year of mining operations.

Section 19. Situs of the Tax. Payment of the tax shall be made to this municipality which has jurisdiction over the mining area.

Section 20. Time of Payment. The tax due shall be paid on the first day of January, however, payment may be made without penalty up to the last day of February, or in quarterly installments on the last day of February, June, September and December.

Section 21. Administrative Provisions.

- (a) The Municipal Treasurer shall keep a registry of mining operators on which all instruments concerning mining rights, such as acquisition, sub-lease, operating agreements, transfers, assignments, condonement, cancellation and others, are recorded.
- (b) It shall be the duty of every lessee, owner, or operator to make a true and complete return setting forth the quantity and the actual market value of the minerals or mineral products or quarry resources to be removed.

Section 22. Liability to Real Property Tax. Any person, grantee, concessionaire who shall undertake and execute mining operations (exploration development and commercial utilization) of certain mineral deposits existing within the mining area shall be subject/liable to real property tax on the area covered by his/her mining plan.

Section 23. Payment of Mayor's Permit and Other Regulatory Fees. Mayor's Permit and other regulatory fees shall be collected before the start of the mining operation of a mining company pursuant to Sections 147 of the Local Government Code and as implemented under a duly-enacted revenue code of the LGU concerned.

Article IV **Tax on Forest Concessions and Forest Products.**

Section 24. Definition of terms.

- (a) **Forest Products** means timber, pulp-wood/chip wood, firewood, fuel wood and minor forest products such as bark, tree tops, resins, gum, wood, oil, honey, beeswax, nipa, rattan or other

forest growth such as grass, shrub, and flowering plants, the associated water, fish, scenic, historical, recreational, and geologic resources in forest lands.

(b) **Forest Lands** include the public forest, the permanent forest or the forest reserves, and forest reservations.

Section 25. Imposition of Tax. There is hereby imposed a tax on forest concessions and forest products at a rate of two percent (2%) of the annual gross receipts of the concessionaire during the preceding year.

Section 26. Time of Payment. The tax under this article shall be paid within the last day of February or in quarterly installments within the last day of February, June, September and December of each year.

Article V

Tax on Newly-Started Business.

Section 27. Tax on Newly-Started Business. In the case of a newly started business under this Section, the tax shall be one-twentieth of one percent (1/20 of 1%) of the capital investment. In the succeeding calendar year, regardless of when the business started to operate, the tax shall be based on the gross receipts for the preceding calendar year or any fraction thereof, as provided in the pertinent schedules in this Article, but not lower than Php 300.00.

Section 28. Exemption. Business engaged in the production, manufacture, refining, distribution of oil, gasoline, and other petroleum products shall not be subject to any local tax imposed under Article I of Chapter II.

Article VI

Situs of Tax Collection.

Section 29. Place of Tax Collection.

a) For purposes of collection of the business tax under the following definition of terms and guidelines shall be strictly observed:

1. **Principal Office** - the head or main office of the businesses appearing in the pertinent documents submitted to the Securities and Exchange Commission, or the Department of Trade and Industry, or other appropriate agencies as the case may be.

The city or municipality specifically mentioned in the articles of the incorporation or official registration papers as being the official address or said principal office shall be considered as the place thereof.

In case there is a transfer or relocation of the principal office to another city or municipality, it shall be the duty of the owner, operator or manager of the business to give due notice of such transfer or relocation to the local chief executives of the cities or municipalities concerned within fifteen (15) days after such transfer or relocation is effected.

2. **Branch or Sales Office** - a fixed place in a locality which conducts operations of the businesses as an extension of the principal office. However, offices used only as display areas of the products where no stocks or items are stored for sale, although orders for the products may be received thereat, are not branch or sales offices as herein contemplated. A warehouse which accepts orders and/or issues sales invoices independent of a branch with sales office shall be considered as a sales office.

3. **Warehouse** - a building utilized for the storage of products for sale from which goods or merchandise are withdrawn for delivery to customers or dealers, or by persons acting on behalf of the business. A warehouse that does not accept orders and/or issue sales invoices as aforementioned shall not be considered a branch or sales office.

4. **Plantation** - a tract of agricultural land planted to trees or seedlings whether fruit bearing or not, uniformly spaced or seeded by broadcast methods or normally arranged to allow highest production. For purpose of this Article, inland fishing ground shall be considered as plantation.

5. **Experimental Farms** - agricultural lands utilized by a business or corporation to conduct studies, tests, researches or experiments involving agricultural, agri-business, marine or aquatic livestock, poultry, dairy and other similar products for the purpose of improving the quality and quantity of goods and products.

b) Sales Allocation.

1. All sales made in a locality where there is branch or sales office or warehouse shall be recorded in said branch or sales office or warehouse and the tax shall be payable to the city or municipality where the same is located.

2. In cases where there is no such branch, sales office, plant or plantation in the locality where the sale is made, the sale shall be recorded in the principal office along with the sale made by said principal office and the tax shall accrue to the city or municipality where said principal office is located.

3. In cases where there is a factory, project office, plant or plantation in pursuit of business, thirty percent (30%) if all sales recorded in the principal office shall be taxable by the city or municipality where the principal office is located and seventy percent (70%) of all sales recorded in the principal office shall be taxable by the city or municipality where the factory, project office, plant or plantation is located.

The sales allocation in paragraph (b) above shall not apply to experimental farms. LGUs where only experimental farms are located shall not be entitled to the sales allocation herein provided for.

4. In case of a plantation located in a locality other than that where the factory is located, said seventy percent (70%) sales allocation shall be divided as follows:

Sixty percent (60%) to the city or municipality where the factory is located; and

Forty percent (40%) to the city or municipality where the plantation is located.

5. In cases where there are two (2) or more factories, project offices, plants or plantations located in different localities, the seventy percent (70%) sales allocation shall be pro-rated among the localities where such factories, project offices, plants and plantations are located in proportion to their respective volumes of production during the period for which the tax is due.

In the case of project offices of services and other independent contractors, the term production shall refer to the costs of projects actually undertaken during the tax period.

6. The foregoing sales allocation under par. (3) hereof shall be applied irrespective of whether or not sales are made in the locality where the factory, project office, plant or plantation is located. In case of sales made by the factory, project office, plant or plantation, the sale shall be covered by paragraph (1) or (2) above.

7. In case of manufacturers or producers which engage the services of an independent contractor to produce or manufacture some of their products, the rules on place of taxation provided in this article as clarified in the paragraphs above shall apply except that the factory or plant and warehouse of the contractor utilized for the production or storage of the manufacturer's products shall be considered as the factory or plant and warehouse of the manufacturer.

8. All sales made by the factory, project office, plant or plantation located in this municipality shall be recorded in the branch or sales office which is similarly located herein, and shall be taxable by this municipality. In case there is no branch or sales office or warehouse in this municipality, but the principal office is located therein, the sales made in the said factory shall be taxable by this municipality along with the sales made in the principal office.

(c) Port of Loading - the municipality where the port of loading is located shall not levy and collect the tax imposable under paragraph (b), of this Ordinance unless the exporter maintain in said city or municipality its principal office, a branch, sales office, warehouse, factory, plant or plantation in which case the foregoing rule on the matter shall apply accordingly.

(d) Route Sales - sales made by route trucks, vans or vehicles in this municipality where a manufacturer, producer, wholesaler, maintains a branch or sales office or warehouse shall be recorded in the branch or sales office or warehouse and shall be taxed herein.

This municipality shall tax the sales of the products withdrawn by route trucks from the branch, sales office or warehouse located herein but sold in another locality.

Article VII

Payment of Business Taxes.

Section 30. Payment of Business Taxes.

(a) The taxes imposed under Chapter II of this Ordinance shall be payable for every separate or distinct establishment or place where the business subject to the tax is conducted and one line of business does not become exempt by being conducted with some other businesses for which such tax has been paid. The tax on a business must be paid by the person conducting the same.

The conduct or operation of two or more related businesses provided for under Chapter II of this Code any one person, natural or juridical, shall require the issuance of a separate permit or license to each business.

(b) In cases where a person conducts or operates two (2) or more of the businesses mentioned in Chapter II of this Ordinance which are subject to the same rate of imposition, the tax shall be computed on the combined total gross sales or receipts of the said two (2) or more related businesses.

(c) In cases where a person conducts or operates two (2) or more businesses mentioned in Chapter II of this Ordinance which are subject to different rates of imposition, the taxable gross sales or receipts of each business shall be reported independently and tax thereon shall be computed on the basis of the pertinent schedule.

Section 31. Accrual of Payment. Unless specifically provided in this Article, the taxes imposed herein shall accrue on the first day of January of each year.

Section 32. Time of Payment. The tax shall be paid once within the last day of February or in quarterly installments within the last day of February, April, July, and October of each year. The Sangguniang Bayan may, for a justifiable reason or cause, extend the time for payment of such taxes without surcharges or penalties, but only for a period not exceeding six (6) months.

Section 33. Administrative Provisions.

(a) Any person who shall establish, operate or conduct any business, trade or activity mentioned in this Chapter in this municipality shall first obtain a Mayor's Permit and pay the fees therefore and the business tax imposed under the pertinent Article.

(b) **Issuance and Posting of Official Receipt.** The Municipal Treasurer shall issue an official receipt upon payment of the business tax. Issuance of the said official receipt shall not relieve the taxpayer of any requirement imposed by the different departments of this municipality.

Every person issued an official receipt for the conduct of a business or undertaking shall keep the same conspicuously posted in plain view at the place of business or undertaking. If the individual has no fixed place of business or office, he shall keep the official receipt in his person. The receipt shall be produced upon demand by the Municipal Mayor, Municipal Treasurer, or their duly authorized representatives.

(c) **Invoices or Receipt.** All persons subject to the taxes on business shall, for each sale or transfer of merchandise or goods, or for services rendered, valued at Twenty-Five Pesos (P 25.00)

or more at any one time, prepare and issue sales or commercial invoices and receipts serially numbered in duplicate, showing among others, their names or styles, if any, and business address. The original of each sales invoice or receipts shall be issued to the purchaser or customer and the duplicate to be kept and preserved by the person subject to the said tax, in his place of business for a period of five (5) years. The receipts or invoices issued pursuant to the requirement of the Bureau of Internal Revenue for determination of national internal revenue taxes shall be sufficient for purposes of this Code.

(d) **Sworn Statement of Gross Receipts or Sales.** Operators of business subject to the taxes on business shall submit a sworn statement of the capital investment before the start of their business operations and upon application for a Mayor's permit to operate the business. Upon payment of the tax levied in this Chapter, any person engaged in business subject to the business tax paid based on gross sales and/or receipts shall submit a sworn statement of his gross sales/receipts for the preceding calendar year or quarter in such manner and form as may be prescribed by the Municipal Treasurer. Should the taxpayer fail to submit a sworn statement of gross sales or receipts, due among others to his failure to have a book of accounts, records or subsidiaries for his business, the Municipal Treasurer or his authorized representatives may verify or assess the gross sales or receipts of the taxpayer under the best available evidence upon which the tax may be based.

(e) **Submission of Certified Income Tax Return Copy.** All persons who are granted a permit to conduct an activity or business and who are liable to pay the business tax provided in this Code shall submit a certified photocopy of their income tax returns (ITR) on or before April 30 of each year. The deficiency in the business tax arising out of the difference in gross receipts or sales declared in the application for Mayor's Permit/ Declaration of gross sales or receipts and the gross receipts or sales declared in the ITR shall be payable on or before May 20 of the same year with interest at the rate of ten percent (10%) corresponding to the two percent (2%) per month from January to May. Payments of the deficiency tax made after May 20 shall be subject to the twenty-five percent (25%) surcharge and two percent (2%) interest for every month counted from January up to the month payment is made.

(f) **Issuance of Certification.** The Municipal Treasurer may, upon presentation or satisfactory proof that the original receipt has been lost, stolen or destroyed, issue a certification to the effect that the business tax has been paid, indicating therein, the number of the official receipt issued, upon payment of a fee of One Hundred Fifty Pesos (₱150.00).

(g) **Transfer of Business to Other Location.** Any business for which a municipal business tax has been paid by the person conducting it may be transferred and continued in any other place within the territorial limits of this municipality without payment of additional tax during the period for which the payment of the tax was made.

(h) **Retirement of Business.**

(1) Any person natural or juridical, subject to the tax on business under Chapter II of this Ordinance shall, upon termination of the business, submit a sworn statement of the gross sales or receipts for the current calendar year within thirty (30) days following the closure. Any tax due shall first be paid before any business or undertaking is fully terminated.

For the purposes hereof, termination shall mean that business operations are stopped completely. Any change in ownership, management and/or name of the business shall not constitute termination as herein contemplated. Unless stated otherwise, assumption of the business by any new owner or manager or re-registration of the same business under a new name will only be considered by the LGU concerned for record purposes in the course of the renewal of the permit or license to operate the business.

The Municipal Treasurer shall see to it that the payment of taxes of a business is not avoided by simulating the termination or retirement thereof. For this purpose, the following procedural guidelines shall be strictly followed:

(a) The Municipal Treasurer shall assign every application for the termination or retirement of business to an inspector in his office who shall go to address of the business on record to verify if it is really not operating. If the inspector finds that the business is simply placed under a new name,

manager and/or new owner, the Municipal Treasurer shall recommend to the Municipal Mayor the disapproval of the application of the termination or retirement of said business;

(b) Accordingly, the business continues to become liable for the payment of all taxes, fees, and charges imposed thereon under existing local tax ordinance; and

(c) In addition, in the case of a new owner to whom the business was transferred by sale or other form of conveyance, said new owner shall be liable to pay the tax or fee for the business and shall secure a new Mayor's permit therefore.

(2) In case it is found that the retirement or termination of the business is legitimate and the tax paid during the current year be less than the tax due for the current year based on the gross sales or receipts, the difference in the amount of the tax shall be paid before the business is considered officially retired or terminated.

(3) The permit issued to a business retiring or terminating its operation shall be surrendered to the Local Treasurer who shall forthwith cancel the same and record such cancellation in his books.

(i) **Death of Licensee.** When any individual paying a business tax dies, and the business is continued by a person interested in his estate, no additional payment shall be required for the residue of the term for which the tax was paid.

Article VIII **Presumptive Income Level Assessment Approach (PILAA)**

Section 34. Presumptive Income Level Assessment Approach (PILAA). For every tax period, the Treasurer's Office shall prepare a stratified schedule of "presumptive income level" to approximate the gross receipt of each business classification. It is based on logical assumptions that do not require monitoring of business establishments nor financial audit and complicated computation.

Indicators in a form of estimated daily sales/gross receipts, average number of customers, estimates of inventories, inventory turnover and mark-ups, space occupied, occupancy rates and others may be used in computing the Local Business Tax if the taxpayer is unable to provide proof of its gross sales or receipts.

Chapter IV **Real Property Tax.**

Article I **Definition of terms**

Section 35. Definitions of terms. As used in this Article, the term:

- A. **Acquisition Cost** – for newly acquired machinery not yet depreciated and appraised within the year of its purchase, refers to the actual cost of the machinery to its present owner, plus the cost of transportation, handling and installation at the present site.
- B. **Actual Use** – refers to the purpose for which the property is principally or predominantly utilized by the person in possession thereof.
- C. **Ad Valorem Tax** – is a levy on real property determined on the basis of a fixed proportion of the value of the property.
- D. **Agricultural Land** - is land devoted principally to the planting of trees, raising of crops, livestock poultry, dairying, salt making, inland fishing and similar aqua-cultural activities and other agricultural activities, and is not classified as mineral, timber, residential, commercial or industrial land.
- E. **Appraisal** – is the act or process of determining the value of a property as of specific date for a specific purpose.

- F. **Assessment** – is the act or process of determining the value of a property, or proportion thereof subject to tax, including the discovery, listing, classification and appraisal of properties.
- G. **Assessment Level** - is the percentage applied to the fair market value to determine the taxable value of the property.
- H. **Assessed Value** - is the fair market value of the real property multiplied by the assessment level. It is synonymous to the term “taxable value”.
- I. **Automated Teller Machines (ATM)** – commercial machineries actually, directly and exclusively used to meet the needs of the particular industry, business or activity.
- J. **Commercial Land** – is land devoted principally to the object of profit and is not classified as agricultural, industrial, mineral, timber, or residential land.
- K. **Depreciated Value** – is the value remaining after deducting depreciation from the acquisition cost.
- L. **Economic Life** – is the estimated period over which it is anticipated that a machinery or equipment may be profitably utilized.
- M. **Fair Market Value** – is the price at which a property may be sold by a seller who is not compelled to sell and bought by a buyer who is not compelled to buy.
- N. **Improvement** – is a valuable addition made to a property or an amelioration in its condition, which is intended to enhance its value, beauty or utility or to adapt it for new or further purposes, amounting to more than a mere repair or of parts involving capital expenditures and labor and normally requiring a building permit.
- O. **Industrial Land** – is land devoted principally to industrial activity as capital investment and is not classified as agricultural, commercial, timber, mineral or residential land.
- P. **Machinery** – embraces machines, equipment, mechanical contrivances, instruments, appliances or apparatus, which may or may not be attached, permanently or temporarily to the real property. It includes the physical facilities for production, the installation and appurtenant service facilities, those which are mobile, self-powered or self-propelled and those not permanently attached to the real property which are actually, directly and exclusively used to meet the needs of the particular industry, business or activity and which by nature and purpose are designed for, or necessary to its manufacturing, mining, logging, commercial, industrial, or agricultural purposes. (Includes ATMs of Banks)
 - a. Machinery which are of general purpose use including but not limited to office equipment, typewriters, telephone equipment, breakable or easily damage container (glass or cartons), microcomputers, facsimile machines, telex machines, cash dispensers, furniture and fixtures, freezers, refrigerators, display cases or racks, fruit juice or beverage automatic dispensing machines which are not directly and exclusively used to meet the needs of a particular industry, business or activity shall not be considered within the definition of machinery under this Rule. Residential machinery shall include machines, equipment, appliances or apparatus permanently attached to residential land and improvements or those immovable by destination.
- Q. **Mineral Land** – are lands which minerals, metallic or non-metallic, exist in sufficient quantity or grade to justify the necessary expenditures to extract and utilize such materials.
- R. **Reassessment** - is the assigning of new assessed values to property, particularly real state, as the result of a general, partial, or individual reappraisal of property.
- S. **Remaining Economic Life** – is the period of time expressed in years from the date of

appraisal to the date when the machinery become valueless.

- T. **Remaining Value** – is the value corresponding to the remaining useful life of the machinery.
- U. **Replacement of Reproduction Cost** – is the cost that would be incurred on the basis of current prices, in acquiring an equally desirable substitute property, or the cost of reproducing a new replica of the property on the basis of current prices with the same or closely similar materials; and
- V. **Residential Land** – is land principally devoted to habitation.

Article II **Imposition of Real Property Tax**

Section 36. Imposition and Rate of Tax. The rate of real property tax shall be in the amount that is now being levied, or may hereafter be fixed by the Provincial Government thru the Sangguniang Panlalawigan in accordance with the provisions of Section 232 and 233 of Republic Act No. 7160 and Rule XXXI of its Implementing Rules and Regulations.

Article III **Special Levy by Local Government Units.**

Section 37. Special Levy by Local Government Units. ▫ A Municipal Government may impose a special levy on lands benefited by public works projects that are financed by the said municipality the amount of which not exceeding 60% of the actual cost of the project and improvements, including the cost of acquiring land and other real property in connection therewith to be apportioned among the landowners. That the special levy shall not apply to lands exempt from basic real property tax and the remainder of the land portions of which have been donated to the local government unit concerned for the construction of such projects or improvements.

Article IV **Collection of Real Property Tax and Additional Levies.**

Section 38. Collection of Real Property Tax and Additional Levies. The collection of the basic real property tax and the additional special levies [one percent (1) *Ad Valorem* Tax accruing to the Special Education Fund and Tax on idle lands] together with the interests thereon shall be the responsibility of the municipal treasurer.

Article V **Exemptions.**

Section 39. Exemptions. Pursuant to Section 234 of RA 7160, the following real properties are exempted from the payment of real property tax:

- a) Real property owned by the Republic of the Philippines or any of its political subdivisions except when the beneficial use thereof has been granted, for consideration or otherwise, to a taxable person;
- b) Charitable institutions, churches, parsonages or convents appurtenant thereto, mosques, non-profit or religious cemeteries and all lands, buildings and improvements actually, directly and exclusively used for religious, charitable or educational purposes;
- c) All machinery and equipment that are actually, directly and exclusively used by the local water districts and government-owned or controlled corporations engaged in the supply and distribution of water and/or generation and transmission of electric power;
- d) All real properties owned by duly registered cooperatives as provided for under RA 6938; and,

- e) Machinery and equipment used for pollution control and environmental protection.

Except as provided under RA 7160 and its implementing rules and regulations, any exemption from payment of real property tax previously granted to, or presently enjoyed by all persons, whether natural or juridical, including government-owned and controlled corporation (GOCC's) are hereby withdrawn.

Article VI

Appraisal of Real Property.

Section 40. Appraisal of Real Property. All real properties in this municipality shall be appraised at the current and fair market value prevailing in this locality based on the rules and regulations promulgated by the Department of Finance for classification, appraisal and assessment of real property.

Article VII

Declaration of Real Property by Owner or Administrator.

Section 41. Declaration of Real Property by Owner or Administrator. It shall be the duty of all persons, natural or juridical, owning or administering real property, including the improvements therein, within this municipality, or their duly authorized representative, to prepare or cause to be prepared and file with the municipal assessor, a sworn statement declaring the true value of their property or properties, whether previously declared or undeclared, taxable or exempt, which shall be the current and fair market value of the property, as determined by the declarant. Such declaration shall contain a description of the property sufficient in detail to enable the municipal assessor or his deputy to identify the same for assessment purposes. The sworn declaration of real property herein referred to shall be filed with the municipal assessor once every three (3) years during the period from January first (1st) to June thirtieth (30th) of the year in which the declaration is filed.

Article VIII

Duty of Person Acquiring Real Property or Making Improvements Thereon.

Section 42. Duty of Person Acquiring Real Property or Making Improvements Thereon. The following are the duties of person or persons acquiring real property in this municipality or making improvement thereon:

a) All persons, natural or juridical, or their duly authorized representatives, who acquire at any time a parcel or parcels of land in this municipality, shall file with the municipal assessor a sworn statement declaring the true value of subject property within sixty (60) days after the acquisition of such property as evidenced by a duly notarized or final deed of conveyance executed between the contracting parties bearing proof of registration from the registrar of deeds concerned. The sixty-day period shall commence on the date of execution of the deed of conveyance.

b) In the case of houses, buildings, or other improvements acquired or newly constructed which will require building permits, property owners or their authorized representative shall likewise file a sworn declaration of the true value of the subject house, building, or other improvement within sixty (60) days after.

1) The date of a duly notarized final deed of sale, contract, or other deed of conveyance covering the subject property executed between the contracting parties;

2) The date of completion or occupancy of the newly constructed building, house, or improvement whichever comes earlier; and

3) The date of completion or occupancy of any expansion, renovation, or additional structures or improvements made upon any existing building, house or other real property, whichever comes earlier.

c) In the case of machinery, the sixty-day period for filing the required sworn declaration of property values shall commence on the date of installation thereof as determined by the municipal assessor and, for this purpose, said municipal assessor may secure certification of the building official or engineer or other appropriate official stationed in this municipality.

Article IX
Declaration of Real Property by the Municipal Assessor.

Section 43. Declaration of Real Property by the Municipal Assessor. When any person, natural or juridical, by whom real property (**land and buildings**) is required to be declared under Section 202 of RA 7160, refuses or fails for any reason to make such declaration within the time prescribed, the Municipal Assessor shall himself declare the property in the name of the defaulting owner, if known, or against an unknown owner as the case may be, and shall assess the property for taxation in accordance with the provision of Chapter 1, Title Two, of RA 7160.

Declaration of real property by the Municipal Assessor shall be subject to the following rules;

- 1) The Municipal Assessor shall declare only real property previously undeclared for taxation purposes.
- 2) In the case of real property discovered whose owner or owners are unknown, the municipal assessor shall declare the same in the name of the “Unknown Owner”, copy furnished the provincial assessor until such time that a person, natural or juridical, comes forth and files the sworn declaration of property values required herein.
- 3) No oath shall be required of any declaration made by the municipal assessor.

Article X
Proof of Exemption of Real Property from Taxation.

Section 44. Proof of Exemption of Real Property from Taxation. Every person by or for whom real property is declared, who shall claim exemption for such property under the provisions of Chapter 1, Title Two of RA 7160 shall file with the municipal assessor within thirty (30) days from the date of the declaration of real property sufficient documentary evidence in support of such claim including corporate charters, title of ownership, articles of incorporation, by-laws, contracts, affidavits, certifications and mortgage deeds and similar documents.

If the required evidence is not submitted within the period herein prescribed, the property shall be listed as taxable in the assessment roll. However, if the property shall be proven to be exempt, the same shall be dropped from the assessment roll.

Article XI
Notification of Transfer of Real Property Ownership.

Section 45. Notification of Transfer of Real Property Ownership. Any person who shall transfer real property ownership to another shall notify the municipal assessor within sixty (60) days from the date of such transfer. The notification shall include the mode of transfer, the description of the property alienated, the name and address of the transferee.

In addition to the notice of transfer, the previous property owner shall likewise surrender to the municipal assessor the tax declaration covering the subject property in order that the same may be canceled from the assessment records of this municipality. If, however, said previous owner still owns property other than the property alienated, he shall, within the prescribed sixty-day period, file with the municipal assessor, amended sworn declaration of the true value of the property or properties he retains in accordance with the Chapter IV, Article VII, Section 40 of this Ordinance.

Article XII
Duty of Registrar of Deeds to Apprise the Municipal Assessor of Real Property Listed in the Registry.

Section 46. Duty of Registrar of Deeds to Appraise the Municipal Assessor of Real Property Listed in the Registry. On or before the thirtieth (30th) of June of every year, the Registrar of Deeds shall prepare and submit to the municipal assessor of this municipality the abstract of his Registry of Property which includes a brief but sufficient description of the real property entered therein, their present owners, and the date of their most recent transfer or alienation accompanied by copies of corresponding deeds of sale, donation, or partition or other forms of alienation involving real properties in this municipality.

Before any document of transfer, alienation, or encumbrance of real property may be registered, the registrar of deeds shall require the presentation of a certificate or clearance issued by the Municipal Treasurer of this municipality to the effect that all current year and past year basic and additional and special education fund, real property tax on transfer of real property ownership, due on the subject property, have been paid in full including interest or penalties due thereon.

Failure to provide such certificates shall be valid cause for the registrar of deeds to refuse the registration of the document. In the absence of such certification or tax clearance, the registration is void.

The registrar of deeds and notaries public shall furnish the municipal assessor with copies of all documents of all contracts, selling, transferring, or otherwise conveying, leasing, or mortgaging real property in this municipality registered by, or acknowledge before them, within (30) days from the date of registration or acknowledgment.

Article XIII

Duty of Official Issuing Building Permit or Certificate of Registration of Machinery to Transmit Copy to the Assessor.

Section 47. Duty of Official Issuing Building Permit or Certificate of Registration of Machinery to Transmit Copy to the Assessor. Any public official or employee who may now or hereafter be required by law or regulation to issue to any person a permit for the construction, addition, repair, or renovation of a building, or permanent improvement on land, or a certificate of registration for any machinery, including machines, mechanical contrivances and apparatus attached or affixed on land or to another real property, shall transmit a copy of such permit or certificate within thirty (30) days of its issuance, to the municipal assessor.

In lieu of individual copies of the said permits or certificates, furnish the municipal assessor concerned with monthly summaries of issued permit or certificates within the first ten (10) days of the succeeding month.

Any official referred to in this section shall likewise furnish the municipal assessor with copies of the building floor plans and/or certificates of registration or installation of other machinery which may not be permanently or temporarily attached to land or another real property but falling under the definition of the term "machinery" as officially defined under RA 7160 and its implementing rules and regulations or the guidelines issued by DOF.

Article XIV

Duty of Geodetic Engineers to Furnish Copy of Plans to Assessor.

Section 48. Duty of Geodetic Engineers to Furnish Copy of Plans to Assessor. It shall be the duty of all geodetic engineers, public or private, to furnish free of charge to the municipal assessor of this municipality a white or blue print copy of each of all approved original or subdivision plans or maps of surveys executed by them in this Municipality within thirty (30) days from receipt of such plans from the Lands Management Bureau, the Land Registration Authority, or the Housing and Land Use Regulatory Board, as the case may be.

Article XV

Authority of the Municipal Assessor to Take Evidence.

Section 49. Authority of the Municipal Assessor to Take Evidence. For the purpose of obtaining information on which to base the market value of any property, the municipal assessor

or his deputy may summon the owners of the properties to be affected or persons having legal interest therein and witnesses, administer oaths, and take deposition concerning the property, its ownership, amount, nature and value.

Article XVI **Assessment Levels.**

Section 50. Assessment Levels. The assessment levels to be applied to the fair market value of real property to determine its assessed value shall be *those fixed by the Sangguniang Panlalawigan* thru an appropriate ordinance enacted for that purpose in accordance with the provisions of Section 218 of RA 7160 and its implementing rules and regulations.

Article XVII **Payment of Real Property Taxes in Installments.**

Section 51. Payment of Real Property Taxes in Installments. The owner of the real property or the person having legal interest therein may pay the basic real property and the additional tax for the Special Education Fund due thereon without interest in four (4) equal installments to be due and payable on or before the thirty-first (31st) day of March; the second installment, on or before the thirtieth (30th) day of June; the third installment, on or before the (30th) day of September; and the last installment on or before the thirty-first (31st) day of December.

The date for payment of the special levies shall be as prescribed by the Sangguniang Panlalawigan thru an ordinance enacted for that purpose.

Payment of real property taxes shall first be applied to prior year's delinquencies, interests, and penalties, if any, and only after said delinquencies are settled may tax payments be credited for the current period.

Article XVIII **Distribution of Proceeds.**

Section 52. Distribution of Proceeds. The proceeds from the collection of the real property tax, including interest thereon and the proceeds from the use, lease or disposition, sale or redemption of property acquired at a public auction in accordance with the provision of Chapter 1, Title Two of RA 7160 shall be distributed as follows;

- a) Thirty-five percent (35%) shall accrue to the general fund of the province;
- b) Forty percent (40%) shall accrue to the general fund of this municipality;
- c) Twenty-five percent (25%) shall accrue to the general fund of the barangay where the property is located.

The share of each barangay shall be released directly to the barangay treasurer on a quarterly basis within five (5) days after the end of each quarter, without need of any further action, and shall not be subject to any lien or holdback for whatever purpose subject to such rules as may be prescribed by the Commission on Audit for this purpose.

Article XIX **Interest on Unpaid Real Property Tax.**

Section 53. Interest on Unpaid Real Property Tax. In case of failure to pay the basic real property tax or any other tax levied under Chapter I, Title Two of RA 7160 upon the expiration of the period for payment without penalty shall subject the taxpayer to the payment of interest at the rate of two percent (2%) per month of the unpaid amount or fraction thereof, until the delinquent tax shall have been fully paid. In no case, however, shall the total interest on the unpaid tax or portion thereof exceed thirty-six (36) months.

Article XX **Applicability Clause.**

Section 54. Applicability Clause. The pertinent provisions of Chapter 1, Title Two of RA 7160; Rule XXXI of the IRR; and the Provincial Ordinance enacted by the Sangguniang Panlalawigan pursuant to the said levying real property taxes as well as the guidelines issued by the Department of Finance shall apply to all matters affecting real property taxation in this municipality.

Article XXI
Penalty.

Section 55. Penalty. This Article is a *restatement of the pertinent provisions of Chapter 1, Title Two of RA 7160; Rule XXXI of the IRR and the existing Provincial Ordinance on real property taxation* and, as such, *any violation thereof shall be prosecuted and penalized under the said law or ordinance, as the case may be.*

CHAPTER V
Community tax.
Article I
Persons Liable

Section 56. Imposition of Tax. There shall be imposed a community tax on persons, natural or juridical, residing in the Municipality.

Section 57. Individuals Liable to Community Tax. Every resident of the Municipality, who is required, eighteen (18) years of age or over who has been regularly employed on a wage or salary basis for at least thirty (30) consecutive working days during any calendar year, or who is engaged in business or corporation, or who owns real property with an aggregate assessed value of One Thousand (₱1,000.00) Pesos or more, or who is required by law to file an income tax return or those may be required to present a Community Tax Certificate shall pay an annual community tax of Five (₱5.00) Pesos and an annual additional tax of One Peso (₱1.00) for every One Thousand Pesos (₱1,000.00) of income regardless of whether from business, exercise of profession or from property which in no case shall exceed Five Thousand Pesos (₱5,000.00).

In case of husband and wife, the additional tax herein imposed shall be based upon the total property owned by then the total gross receipts or earnings derived by them.

Section 58. Juridical Persons Liable to Community Tax. Every corporation no matter how created or organized, whether domestic or resident-foreign, engaged in or doing business in the Philippines whose principal office is located in this Municipality shall pay an annual Community Tax of Five Hundred Pesos (₱500.00) and an additional tax, which in no case, shall exceed Ten Thousand Pesos (₱10,000.00) in accordance with the following schedule:

(a) For every Five Thousand (₱5,000.00) Pesos worth of real property in the Philippines owned by it during the preceding year based on the evaluation used in the payment of real property tax under existing laws, found in the assessment rolls of this municipality where the real property is situated – Two (₱2.00) Pesos: and

(b) For every Five Thousand (₱5,000.00) Pesos of gross receipts or earning derived by it from its business in the Philippines during the preceding year – Two (₱2.00) Pesos.

The dividends received by a corporation from another corporation shall, for the purpose of the tax, be considered as part of the gross receipts or earnings of said corporation

Section 59. Exemptions.

The following are exempted from the Community tax:

- (a) Diplomatic and consular representatives; and
- (b) Transient visitors when their stay in the Philippines does not exceed (3) months.

Section 60. Place of Payment. The Community Tax shall be paid in the Office of the Municipal or Barangay Treasurer where the residence is located.

Juridical persons liable to Community Tax shall pay the same to the Office of the Municipal Treasurer.

Section 61. Time of Payment and Penalties for Delinquency.

(a) The Community Tax shall accrue on the first (1st) day of January each year which shall be paid not later than the last date of February of each year.

(b) If a person reaches the age of eighteen (18) years or otherwise loses the benefit of exemption on or before the last day of June, he shall be liable for the community tax on the day he reaches such age or upon the day the exemption ends. However, if a person reaches the age of eighteen (18) years or loses the benefit of exemption on or before the last day of March, he/she shall have twenty (20) days to pay Community Tax without becoming delinquent.

(c) Persons who come to reside in the Philippines or reach the age of eighteen (18) years on or after the first (1st) day of July of any year, or who cease to belong to an exempt class on or after the same date, shall not be subject to the Community Tax for that year.

(d) Corporations established and organized on or before the last day of June shall be liable for the Community Tax for that year. But corporations established and organized on or before the last day of March shall have twenty (20) days within which to pay Community Tax without becoming delinquent. Corporations established and organized on or after the first day of July shall not be subject to the Community Tax for that year.

(e) If the tax is not paid within the time prescribed above, there shall be added to the unpaid amount an interest of twenty-four (24%) percent per annum from the due date until it is paid.

Section 62. Community Tax Certificate. A Community Tax Certificate shall be issued to every person or corporation upon payment of the Community Tax. A Community Tax Certificate may also be issued to any person or corporation not subject to the Community Tax upon payment of One Peso (₱1.00).

Section 63. Presentation of Community Tax Certificate.

(a) When an individual subject to the Community Tax acknowledges any document before a notary public, takes the oath of office upon election or appointment to any position in the government service; receives any license, certificate, or permit from any public authority; pays any tax or fee, receives any money from public funds, transacts any official business; or receives any salary or wage from any person or corporation, it shall be the duty of any person, officer or corporation with whom such transaction is made or business done or from whom any salary or wage is received to require such individual to exhibit the Community Tax Certificate.

(b) When through its authorized officers, any corporation subject to the Community Tax receives any license, certificate, or permit from any public authority, pays any tax or fee, receives money from public funds, or transacts other official business it shall be the duty of the public official with whom such transaction or business is made or done, to require such corporation to exhibit the Community Tax Certificate.

Section 64. Collection and Allocation of Proceeds of the Community Tax.

(a) The Municipal Treasurer shall deputize the Barangay Treasurers, subject to existing laws and regulations, to collect the Community Tax payable by individual taxpayers in their respective jurisdictions; provided, however, that said Barangay Treasurer shall be bonded in accordance with existing laws.

(b) One Hundred Percent (100%) of the proceeds of the Community Tax actually and directly collected by the Municipal Treasurer shall accrue entirely to the general fund of this Municipality.

In cases, where the community tax were secured or requisitioned from the Provincial Treasurer, the Municipal Treasurer shall remit payments to the Provincial Treasurer.

The proceeds of the Community Tax collected through the Barangay Treasurers shall be apportioned as follows:

- (1) Fifty (50%) percent shall accrue to the general fund of the Municipality; and
- (2) Fifty (50%) percent shall accrue to the Barangay where the tax is collected.

CHAPTER VI
PERMIT AND REGULATORY FEES.

Article I
Mayor's Permit Fee on Business.

Section 65. Mayor's Permit. All persons natural and juridical are required to obtain a Mayor's Permit for the privilege of conducting business within the municipality.

Section 66. Imposition of Fee. There shall be collected an annual fee for the issuance of a Mayor's Permit to operate a business, pursue an occupation or calling, or undertake an activity within the municipality.

The permit fee is payable for every distinct or separate business or place where the business or trade is conducted. One line of business or trade does not become exempt by being conducted with some other business or trade for which the permit fee has been obtained and the corresponding fee paid for.

The Mayor's Permit Fee rates shall be based on reasonable classification, (e.g. activities conducted or commodities traded) all commensurate to the cost of regulation and surveillance). The following categories of business size may hereby be adopted:

Enterprise Scale	Asset Limit	Workforce
Micro Industries	Less than P150,000.00	No specific
Cottage Industries	Above P150,000.00 to P1.5M	Less than 10
Small-Scale Industries	P1.5 to P15 M	10 - 99
Medium –Scale Industries	P15 to P60 M	100 - 199
Large – Scale Industries	Above P60 M	200 or more

The permit fee shall either be based on size or number of workers whichever will yield the higher fee.

(a) On business subject to graduated Fixed taxes

Amount of Fee per Annum

1. On Manufacturers/Importers/Producers:

Micro Industries	----- P	1,000.00
Cottage Industries	----- P	1,500.00
Small-Scale Industries	----- P	2,500.00
Medium-Scale Industries	----- P	5,000.00
Large-Scale Industries	----- P	10,000.00

2. On Banks

Rural, Thrift and Savings Banks	----- P	4,000.00
Commercial, Industrial and Development Banks	----- P	6,000.00
Universal Banks	----- P	8,000.00

3. On Other Financial Institutions (base on asset)

Small	-----	P	3,000.00
Medium	-----	P	6,000.00
Large	-----	P	8,000.00
4. On Contractors/Service Establishments

Micro Industries	-----	P	1,000.00
Cottage Industries	-----	P	1,500.00
Small-Scale Industries	-----	P	2,500.00
Medium-Scale Industries	-----	P	5,000.00
Large-Scale Industries	-----	P	10,000.00
5. On Wholesalers/Retailers/Dealers or Distributors

Micro Industries	-----	P	1,000.00
Cottage Industries	-----	P	2,000.00
Small-Scale Industries	-----	P	5,000.00
Medium-Scale Industries	-----	P	10,000.00
Large-Scale Industries	-----	P	15,000.00
6. On Transloading Operations

Medium	-----	P	5,000.00
Large	-----	P	10,000.00
7. Other Businesses

Micro Industries	-----	P	1,000.00
Cottage Industries	-----	P	1,500.00
Small-Scale Industries	-----	P	2,500.00
Medium-Scale Industries	-----	P	5,000.00
Large-Scale Industries	-----	P	10,000.00
8. Dormitories, Apartment/Pension/Lodging House and the likes, more than (1) room for rent.

Dormitories, Apartment/Pension/Lodging House			
Less than 5 rooms	-----	P	1,500.00
6-15 rooms	-----	P	3,000.00
More than 15 rooms	-----	P	5,000.00

Article II
 Special Mayor's Permit Fee on Business (Sin Tax).

Section 67. Special Mayor's Permit Fees - may be set for the so-called "sin" goods and activities). Because of the "social dimensions" involved it is justifiable to fix higher rates of permit fees. Included in this class of businesses are:

Retail dealers in foreign liquors	-----	P	3,000.00
Retail dealers in domestic liquors	-----	P	1,000.00
Retailers of distilled spirits	-----	P	3,000.00
Retailers of fermented liquors	-----	P	500.00
Tobacco dealers	-----	P	500.00
Retail dealers of manufactured tobacco	-----	P	500.00
Mahjong	-----	P	1,500.00/per table annually

Section 68. Time and Manner of Payment. The fee for the issuance of a Special Mayor's Permit shall be paid to the Municipal Treasurer upon application before any business or undertaking can be lawfully begun or pursued and within the last week of February of each year in case of renewal thereof.

For a newly-started business or activity that starts to operate after the last week of February, the fee shall be reckoned from the beginning of the calendar quarter. When the business or activity is abandoned, the fee shall not be exacted for a period longer than the end of the calendar quarter. If the fee has been paid for a period longer than the current quarter and the business activity is abandoned, no refund of the fee corresponding to the unexpired quarter or quarters shall be made.

Section 69. Administrative Provisions.

(a) **Supervision and control over establishments and places.** The Municipal Mayor shall supervise and regulate all establishments and places where business is conducted. He shall prescribe rules and regulations as may be necessary to maintain peaceful, healthy, and sanitary conditions in the municipality.

(b) **Application for Mayor's Permit: False Statement.** An application for a Mayor's Permit shall be filed with the Office of the Municipal Mayor. The form for the purpose shall be issued by the same Office and shall set forth the requisite information including the name and residence of the applicant, the description of business or undertaking that is to be conducted, and such other data or information as may be required.

1. For a newly-started business

- a. Location sketch of the new business
- b. Department of Trade and Industry (DTI) Registration Certificate with Approved Application Forms, in case of single proprietorship
- c. Securities and Exchange Commission (SEC) Registration and Articles of Incorporation and By-Laws, in case of partnership or corporation
- d. A certificate attesting to the tax exemption if the business is exempt
- e. Certification from the officer in charge of the zoning that the location of the new business is in accordance with zoning regulations
- f. Tax clearance showing that the applicant has paid his tax obligations to the municipality
- g. *Barangay* clearance/proof of filing (in case of non-issuance of *barangay* clearance within seven (7) working days from date of filing a Mayor's Permit may be issued to the applicant.
- h. Three (3) passport size pictures of the owner or operator or in cases of a partnership or corporation the picture of the senior or managing partners and that of the President or General Manager
- i. Health certificate for all food handlers, and those required under Chapter --, Art. -- of this Revenue Code
- j. Community Tax Certificate
- k. Contract of Lease, if leasing

2. For renewal of existing business permits

- a. Previous year's Mayor's permit
- b. Copies of the annual or quarterly tax payments
- c. Copies of all receipts showing payment of all regulatory fees as provided for in this Code
- d. Certificate of tax exemption from local taxes or fees, if exempt
- e. Audited Financial Statement prescribed by the Bureau of Internal Revenue for the next preceding year
- f. BIR Registration Certificate
- g. *Barangay* Clearance
- h. Declaration of previous year's gross sales/receipts
- i. Tax clearance showing that the applicant has paid his tax obligations to the municipality
- j. Community Tax Certificate
- k. Contract of Lease, if leasing

Upon submission of the application, it shall be the duty of the proper authorities to verify if other municipal requirements regarding the operation of the business or activity such as sanitary requirements, installation of power and light requirements, as well as other safety requirements are complied with. The permit to operate shall be issued only upon compliance with such safety

requirements and after the payment of the corresponding inspection fees and other impositions required by this Revenue Code and other municipal tax ordinances.

Any false statement deliberately made by the applicant shall constitute sufficient ground for denying or revoking the permit issued by the Municipal Mayor, and the applicant or licensee may be prosecuted in accordance with the penalties provided in this Article.

A Mayor's Permit shall not be issued to:

- (1) Any person who previously violated an ordinance or regulation governing permits granted;
- (2) Any person whose business establishment or undertaking does not conform with the zoning regulations, and safety, health and other requirements of the municipality;
- (3) Any person who has unsettled tax obligation, debt or other liability to the government;
- (4) Any person who is disqualified under any provision of law or ordinance to establish or operate the business applied for.

Likewise, a Mayor's permit shall be denied to any person or applicant for a business who declares an amount of gross sales or receipts that are manifestly below industry standards or the Presumptive Income Level of gross sales or receipts as established in the municipality for the same or a closely similar type of activity or business.

(c) **Issuance of Permit; Contents of Permit.** Upon approval of the application of a Mayor's Permit, two (2) copies of the application duly signed by the Municipal Mayor shall be returned to the applicant. One (1) copy shall be presented to the Municipal Treasurer as basis for the collection of the Mayor's Permit fee and the corresponding business tax.

The Mayor's Permit shall be issued by the Municipal Mayor upon presentation of the receipt for the payment of the Mayor's Permit and the official receipt issued by the Municipal Treasurer for the payment of the business tax.

Every permit issued by the Municipal Mayor shall show the name and residence of the applicant, his nationality and marital status; nature of the organization, that is whether the business is a sole proprietorship, corporation or partnership, etc.; location of the business; date of issue and expiration of the permit; and other information as may be necessary.

The Municipality shall, upon presentation of satisfactory proof that the original of the permit has been lost, stolen or destroyed, issue a duplicate of the permit upon the payment of Fifty Pesos (₱50.00).

(d) **Posting of Permit.** Every permittee shall keep his permit conspicuously posted at all times in his place of business or office or if he has no place of business or office, he shall keep the permit in his person. The permit shall be immediately produced upon demand by the Municipal Mayor, the Municipal Treasurer or any of their duly authorized representatives.

(e) **Duration of Permit and Renewal.** The Mayor's Permit shall be granted for a period of not more than one (1) year and shall expire on the thirty-first (31st) of December following the date of issuance unless revoked or surrendered earlier. Every permit shall cease to be in force upon revocation or surrender thereof. The permit issued shall be renewed within the last day of February. It shall have a continuing validity only upon renewal thereof and payment of the corresponding fee.

(f) **Revocation of Permit.** The Mayor's Permit may be revoked any of the following grounds:

1. When a person doing business under the provisions of this Revised Revenue Code violates any of its provisions
2. When the person refuses to pay an indebtedness or liability to the municipality
3. When the person abuses his privilege to do business to the injury of the public moral or peace; or
4. When a place where such business is established is being conducted in a disorderly or unlawful manner, is a nuisance, or is permitted to be used as a resort for disorderly characters, criminals or women of ill-repute

5. Such revocation shall operate to forfeit all sums which may have been paid in respect of said privilege, in addition to the fines and imprisonment that may be imposed by the Court for violation of any provision of this Ordinance governing the establishment and maintenance of business, and to prohibit the exercise of the by the person whose privilege is revoked, until restore by the Sangguniang Bayan.

Section 70. Rules and Regulations on Certain Establishments.

(a) On cafes, cafeterias, ice cream and other refreshment parlors, restaurants, soda fountain bars, carenderia or food caterers. No owner of said establishments shall employ any cook, or food dispenser without a Food Handler's Certificate from the Municipal Health Officer, renewable every six (6) months.

Establishments selling cooked and readily edible foods shall have them adequately covered and protected from dust, flies and other insects, and shall follow strictly the rules and regulations on sanitation promulgated by the Municipal Health Officer and existing laws or Ordinances.

(b) Sauna bath, massage, barber and beauty shops. Said shops shall not be allowed to operate with masseurs, barbers, and beauticians without having secured the necessary corresponding medical certificate from the Municipal Health Officer.

(c) On internet cafes, smoking inside the café is prohibited. Trading of Drugs, cigarettes and intoxicating beverages within the premises is likewise prohibited. School children below 18 years old are not allowed to enter the café during class hours, except on Saturdays, Sundays and holidays. It is also required for the cafes to put up CCTV cameras or other surveillance system inside and outside the premises of the internet café.

Article III
Fee for Sealing and Licensing of Weights and Measures.

Section 71. Implementing Agency. The Municipal Treasurer shall strictly enforce the provisions of the Regulation of Practices Relative to Weights and Measures, as provided in Chapter II of the Consumer Act, Republic Act No. 7394.

Section 72. Sealing and Testing of Instruments of Weights and Measures. - All instruments for determining weights and measures in all consumer and consumer related transactions shall be tested, calibrated and sealed every six (6) months by the official sealer who shall be Municipal Treasurer or his duly authorized representative upon payment of fees required under this Article: Provided, That all instruments of weights and measures shall continuously be inspected for compliance with the provisions of this Article.

Section 73. Imposition of Fees. Every person before using instruments of weights and measures within this municipality shall first have them sealed and licensed annually and pay therefore to the Municipal Treasurer the following fees:

	Amount of Fee	
(a) For sealing linear metric measures:		
Not over one (1) meter	P	300.00
Measure over one (1) meter	P	500.00
(b) For sealing metric measures of capacity:		
Not over ten (10) liters	P	500.00
Over ten (10) liters	P	1,000.00
(c) For sealing metric instruments of weights:		
With capacity of not more than 10 kg.	P	300.00
With capacity of not more than 10 but not 30 kg.	P	500.00

With capacity of more than 30 kg. But not more than 300 kg.	₱	750.00
With capacity of more than 300 kg. but not more than 3,000 kg.	₱	1,000.00
With capacity of more than 3,000 kg.	₱	1,500.00
(d) For sealing apothecary balances of precision	₱	1,000.00
(e) For sealing scale or balance with complete set of weights:		
For each scale or balances or other Balances with complete set of weights for use therewith	₱	1,000.00
For each extra weight	₱	500.00

(f) For each and every re-testing and re-sealing of weights and measures instruments including gasoline pumps outside the office upon request of the owner or operator, an additional service charge of P500.00 for each instrument shall be collected.

Section 74. Payment of Fees and Surcharge. The fees herein imposed shall be paid and collected by the Municipal Treasurer when the weights or measures instruments are sealed, before their use and thereafter, on or before the anniversary date thereof.

The official receipt serving as license to use the instrument is valid for one (1) year from the date of sealing unless such instrument becomes defective before the expiration period. Failure to have the instrument re-tested and the corresponding fees therefore paid within the prescribed period shall subject the owner or user to a surcharge of five hundred percent (500%) of the prescribed fees which shall no longer be subject to interest.

Section 75. Place of Payment. The fees herein levied shall be paid in the municipality where the business is conducted by persons conducting their business therein. A peddler or itinerant vendor using only one (1) instrument of weight or measure shall pay the fee in the municipality where he maintains his residence.

Section 76. Exemptions.

(a) All instruments for weights and measures used in government work of or maintained for public use by any instrumentality of the government shall be tested and sealed free.

(b) Dealers of weights and measures instruments intended for sale.

Section 77. Administrative Provisions.

(a) The official receipt for the fee issued for the sealing of a weight or measure shall serves as a license to use such instrument for one year from the date of sealing, unless deterioration or damage renders the weight or measure inaccurate within that period. The license shall expire on the day and the month of the year following its original issuance. Such license shall be preserved by the owner and together with the weight or measure covered by the license, shall be exhibited on demand by the Municipal Treasurer or his deputies.

(b) The Municipal Treasurer is hereby required to keep full sets of secondary standards, which shall be compared with the fundamental standards in the Department of Science and Technology annually. When found to be sufficiently accurate, the secondary standards shall be distinguished by label, tag or seal and shall be accompanied by a certificate showing the amount of its variation from the fundamental standards. If the variation is of sufficient magnitude to impair the utility of instrument, it shall be destroyed at the Department of Science and technology.

(c) The Municipal Treasurer or his deputies shall conduct periodic physical inspection and test weights and measures instruments within the locality.

(d) Instruments of weights and measures found to be defective and such defect is beyond repair

shall be confiscated in favor of the government and shall be destroyed by the Municipal Treasurer in the presence of the Provincial Auditor or his representative.

Section 78. Fraudulent Practices Relative to Weights and Measures.

The following acts related to weights and measures are prohibited:

- a) For any person other than the official sealer or his duly authorized representative to place an official tag, seal, sticker, mark, stamp, brand or other characteristic sign used to indicate that such instrument of weight and measure has officially been tested, calibrated, sealed or inspected;
- b) For any person to imitate any seal, sticker, mark stamp, brand, tag or other characteristic design used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;
- c) For any person other than the official sealer or his duly authorized representative to alter in any way the certificate or receipt given by the official sealer or his duly authorized representative as an acknowledgement that the instrument for determining weight or measure has been fully tested, calibrated, sealed or inspected;
- d) For any person to make or knowingly sell or use any false or counterfeit seal, sticker, brand, stamp, tag, certificate or license or any dye for printing or making the same or any characteristic sign used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;
- e) For any person other than the official sealer or his duly authorized representative to alter the written or printed figures, letters or symbols on any official seal, sticker, receipt, stamp, tag, certificate or license used or issued;
- f) For any person to use or reuse any restored, altered, expired, damaged stamp, tag certificate or license for the purpose of making it appear that the instrument of weight or measure has been tested, calibrated, sealed or inspected;
- g) For any person engaged in the buying and selling of consumer products or of furnishing services the value of which is estimated by weight or measure to possess, use or maintain with intention to use any scale, balance, weight or measure that has not been sealed or if previously sealed, the license therefore has expired and has not been renewed in due time;
- h) For any person to fraudulently alter any scale, balance, weight or measure after it is officially sealed;
- i) For any person to knowingly use any false scale, balance, weight or measure, whether sealed or not;
- j) For any person to fraudulently give short weight or measure in the making of a scale;
- k) For any person, assuming to determine truly the weight or measure of any article brought or sold by weight or measure, to fraudulently misrepresent the weight or measure thereof; or
- l) For any person to procure the commission of any such offense abovementioned by another.

Instruments officially sealed at some previous time which have remained unaltered and accurate and the seal or tag officially affixed therein remains intact and in the same position and condition in which it was placed by the official sealer or his duly authorized representative shall, if presented for sealing, be sealed promptly on demand by the official sealer or his duly authorized representative without penalty except a surcharge equal to two (2) times the regular fee fixed by law for the sealing of an instrument of its class, this surcharge to be collected and accounted for by the Municipal Treasurer in the same manner as the regular fees for sealing such instruments.

Section 79. Penalties.

(a) Any person who shall violate the provisions of paragraphs (a) to (f) and paragraph (l) of Section 73 shall, upon conviction, be subject to a fine of not less than One Thousand Five Hundred Pesos (P1,500.00) but not more than Two Thousand Five Hundred pesos (P2,500.00) or by imprisonment of not more than one (1) year, or both, upon the discretion of the court.

(b) Any person who shall violate the provisions of paragraph of (g) of Section 73 for the first time shall be subject to fine of not less than One Thousand Pesos (P1,000.00) or by imprisonment of not less than one (1) month but not more than five (5) years, or both, upon the discretion of the court.

- a. The owner-possessor or user of instrument of weights and measure enumerated in paragraph (h) to (k) of Section 73 shall, upon conviction, be subject to a fine of not less than Two Thousand Five Hundred Pesos (P2,500.00) or imprisonment not exceeding one (1) year, or both, upon the discretion of the court.
- b. All weights and measures found to have violated any of the provisions of paragraphs (a) to (k) of Section 73 will be confiscated.

Article IV.
Permit Fee for Zoning/Locational Clearance.

Section 80. Imposition of Fee. There shall be collected the following fees for the issuance of zoning/locational clearance.

- 1. Single residential structure attached or detached

On Fixed Cost of construction per square meter (P15,000.00 per square meter)

1.1 ₱ 100,000 and below	-----	₱	288.00
1.2 Over ₱ 100,000 to ₱ 200,000	-----	₱	576.00
1.3 Over ₱ 200,000 to P400,000.00.	-----	₱	720.00
1.4 Over P400,000.00 to P750,000.00	-----	₱	900.00
1.5 Over P750,000 to P1million	-----	₱	1,125.00 + 1/10 of 1% of excess of ₱ 1Million

- 2. Apartments/Townhouses

2.1 ₱ 500,000 and below	-----	₱	1,440.00
2.2 Over ₱ 500,000 to ₱ 2 million	-----	₱	2,160.00
2.3 Over ₱ 2 million	-----	₱	3,600.00 + (1/10 of 1% of cost in excess of ₱ 2M regardless of number of floors)

- 3. Dormitories

3.1 ₱ 2 million and below	-----	₱	3,600.00
3.2 Over ₱ 2 million	-----	₱	3,600.00 + (1/10 of 1% of excess of ₱ 2M regardless of number of Floors)

- 4. Institutional, Project cost of which is

4.1 Below ₱ 2 million	-----	₱	2,880.00
4.2 Over ₱ 2 million	-----	₱	2,880.00 + (1/10 of 1% of cost in excess of ₱ 2M)

- 5. Commercial, Industrial, Agro-Industrial Project cost of which is

5.1 Below ₱ 100,000	-----	₱	1,440.00
5.2 Over ₱ 100,000 to ₱ 500,000	-----	₱	2,160.00
5.3 Over ₱ 500,000 to ₱ 1 million	-----	₱	2,880.00
5.4 Over ₱ 1 million ₱ 2 million	-----	₱	4,320.00
5.5 Over ₱ 2 million	-----	₱	7,200.00 +(1/10 of 1% of excess of ₱ 2M)

- 6. Special Uses/Special Projects
(Gasoline Station, Cell Sites, Slaughterhouse, Water Treatment Plants, etc.)

6.1 Below ₱ 2 million	-----	₱	7,200.00
6.2 Over ₱ 2 million	-----	₱	7,200 + (1/10 of 1% cost in excess of ₱ 2M)

- 7. Alteration/Expansion of House (affected areas/cost only) ----- same as original application

Section 81. Time of Payment. The fees in this Article shall be paid to the Municipal Treasurer.

Section 82. Administrative Provision. The Municipal Mayor shall administer the provisions of this Article and other existing ordinances, executive orders and laws relating to and governing zoning/locational clearance.

Article V
Approval of Subdivision Plans.

Section 83. Imposition of Fees. There shall be collected the following fees for the processing and approval of subdivision plans'

A. Subdivision Projects

1. Approval of Subdivision Plans (including Townhouses)

1.1 Preliminary Approval and Locational Clearance and (PALC) Preliminary Subdivision Development Plan (PSDP)

Processing Fee ----- ₱ 540.00/ha. or fraction thereof
Inspection fee regardless of density ----- ₱ 1,500.00/ha.

1. Final approval and Development Permit regardless of density ----- ₱ 2,880.00/ha.
Additional Fee on Floor Area of Houses and Building sold ----- ₱ 3.00/sq.m.
Inspection fee (regardless of density) ----- ₱1,500.00/ha.

(Not applicable for projects inspected for PALC application)

2. Alteration of Plan (affected areas only)

Same as Plan Approval and Development Permit ----- ₱1,100.00/ha.

3. Certificate of Registration Processing Fee ----- ₱2,880.00/ha.

4. License to Sell

Processing Fee ----- ₱ 216.00/saleable lot
Additional Fee on floor area of housing component ----- ₱ 14.40/sqm
Inspection Fee (regardless of density) ----- ₱ 1,500/ha.

5. Certificate of Completion

Certification Fee ----- ₱ 216.00
Processing Fee ----- ₱ 540.00
Inspection Fee (regardless of density) ----- ₱ 1,500/ha.

6. Extension of Time to Develop

Processing Fee ----- ₱ 540.00
Additional Fee (Unfinished area for development ----- ₱ 14.40/sqm
Inspection Fee (affected areas only regardless of density) ----- ₱ 1,200.00

B. IMPOSITION TO THE ISSUANCE OF SIMPLE SUBDIVISION PLANS.

There shall be imposed on each of the application the corresponding fees and charges.

1. Application Fee ----- ₱ 400.00
2. Processing Fee ----- ₱ 500.00
3. Ocular Inspection Fee----- ₱ 400.00 per parcel as proposed for subdivision

C. Residential Structure/Apartments/Dormitories ----- ₱ 110.00

D. Subdivision Projects:

- d.1. Industrial Subdivision
a) First five (5) hectares ----- ₱330.00
b) Every additional hectare or

fraction thereof	-----	₱110.00
d.2. Commercial Subdivision		
a) First two (2) hectares	-----	₱440.00
b) Every additional hectare or fraction thereof	-----	₱160.00
d.3. Others		
a) For the first ten (10) hectares	-----	₱330.00
b) For every additional hectare	-----	₱160.00
E. Final Processing Fee:		
a. Subdivisions having a density of 66 to 100 Families/gross hectare or a fraction thereof	-----	₱ 850.00
b. Subdivisions having a density of 21 to 65 Families/gross hectare, or a fraction thereof	-----	₱ 1,100.00
c. Subdivisions having a density of 20 and below Families/gross hectare, or fraction thereof	-----	₱ 1,700.00
d. Additional fee on floor area of houses/building Sold with the lot, per square meter	-----	₱ 10.00
e. Alteration of Plans fee	-----	₱ 330.00
F. Inspection Fee: (per hectare)		
a. High density	-----	₱ 440.00
b. Eco. Subdivision	-----	₱ 600.00
c. Open Market	-----	₱ 700.00
G. Alteration of Plans (affected areas only) same as Final Processing Fe)		
H. Certificate of Registration/License to Sell (per saleable lot)		
a. High Density	-----	₱ 60.00
b. Eco-Subdivision	-----	₱ 110.00
c. Open Market	-----	₱ 220.00
d. Additional Fee on floor area of house/ buildings sold with the lot, per sq. m.	-----	₱ 40.00
I. Certificate of Completion (per hectare)		
a. High Density	-----	₱ 440.00
b. Eco-Subdivision	-----	₱ 600.00
c. Open Market	-----	₱ 700.00
J. Approval of Condominium Project		
1. Preliminary Processing Fee	-----	₱ 440.00
2. Final Approval		
a. Per square meter of the total land area	-----	₱ 20.00
b. Per square meter of the area of the building	-----	₱ 10.00
3. Inspection Fee	-----	₱ 20.00
4. Alteration fee (affected areas only)	same as final approval	
5. Conversion	same as final approval	
6. Certificate of registration and License to Sell		
a. residential	-----	₱ 40.00
b. commercial	-----	₱ 50.00
7. Certificate of Completion (per sq. meter of salable area)	-----	₱ 30.00
K. Subdivisions and Townhouse Project under BP 220		

1. Preliminary Approval and License to Sell	
a. for the first 10 hectares	----- ₱ 110.00
b. for every additional hectare or a fraction thereof	----- ₱ 60.00
2. Final Approval (per hectare)	----- ₱ 330.00
3. Inspection Fee	
a. Socialized	----- ₱ 150.00
b. Economic	----- ₱ 200.00
4. Alteration of Plan (affected areas only)	----- ₱ 300.00
5. Building Permit (per sq. m. of the floor area of housing unit)	----- ₱ 10.00
6. Certificate of Registration and License to Sell (per lot or unit)	----- ₱ 20.00
7. Certificate of completion (per hectare or fraction of land area)	----- ₱ 200.00
8. Certificate of Occupancy (per sq. m. of the floor area of area of housing unit)	----- ₱ 10.00

L. Approval of Industrial Subdivision

1. Preliminary approval and location clearance	
a. First five (5) hectares	----- ₱ 300.00
b. Every additional hectare or fraction thereof	----- ₱ 100.00
2. Final Approval (per hectare)	----- ₱ 700.00
3. Inspection Fee (per sq. m.)	----- ₱ 100.00
4. Alteration of plan fee (affected areas only)	<i>same as final approval</i>
5. Certificate of Registration and License to Sell (per square meter of the land area)	----- ₱ 200.00
6. Certificate of Completion (per hectare)	----- ₱ 100.00

M. Approval of Commercial Subdivision:

1. Preliminary Approval/Locational Clearance	
a. First two (2) hectares	----- ₱ 300.00
b. Every additional hectare	----- ₱ 100.00
2. Final Approval (per hectare)	----- ₱3,500.00
3. Inspection Fee (per hectare)	----- ₱ 350.00
4. Alteration of plan fee (affected areas only)	<i>same as final approval</i>
5. Certificate of registration and License to Sell (per square meter of land area)	----- ₱ 200.00
6. Certificate of Completion (per hectare)	----- ₱ 400.00

N. Approval of Farm Lot:

1. Preliminary approval/location clearance	
a. First five (5) hectares	----- ₱ 300.00
b. Every additional hectare	----- ₱ 50.00
2. Final Approval (per square meter)	----- ₱ 600.00
3. Inspection Fee (per hectare)	----- ₱ 400.00
4. Alteration of plan fee (affected areas only)	----- ₱ 400.00
5. Certificate of Registration and License to Sell (per saleable lot)	----- ₱ 50.00
6. Certificate of completion per hectare	----- ₱ 500.00

O. Approval of Memorial Park Project:

1. Preliminary approval/location clearance	
a. First one (1) hectare	----- ₱ 300.00
b. Every additional hectare	----- ₱ 150.00
2. Final Approval (per square meter)	----- ₱ 5.00
3. Inspection fee (per hectare)	----- ₱ 200.00
4. Alteration of plan fee (affected areas only)	<i>same as final approval</i>
5. Certificate of Registration and License to Sell (per salable lot)	----- ₱ 50.00
6. Certificate of Completion per hectare	----- ₱ 500.00

P. Other Certifications:

1. Advertisement Approval	----- ₱ 300.00
2. Cancellation/reduction of performance bond	----- ₱ 400.00
3. Lifting of suspension of license to sell	----- ₱ 400.00
4. Extension of time to complete development	----- ₱ 400.00
5. Exemption from cease-and-desist order	----- ₱ 100.00
6. Clearance mortgage	----- ₱ 400.00

Section 84. Time and Manner of Payment. The fees imposed herein shall be paid to the Municipal Treasurer upon application for corresponding Mayor’s clearance and/or permit aforementioned.

Section 85. Rules and Regulations. No person shall engage in real estate development business, and the like in this municipality without first securing a permit and/or corresponding clearance therefore from the Municipal Mayor or his duly authorized representative.

Section 86. Creation of Local Housing and Land-Use Regulatory Committee. There is hereby created a Local Housing and Land-Use Regulatory Committee to be composed of the following:

- Chairman : Municipal Engineer
- Vice-Chairman : Municipal Planning and Development Coordinator
- Member : Municipal Assessor
- : Municipal Treasurer
- : One (1) SB Member (Chairman in Infrastructure)

The Committee shall assist and advice the Local Chief Executive and the Sangguniang Bayan on matters pertaining to the devolved functions of the HLURB. The Committee shall also formulate the necessary rules and regulations for the proper implementation of this Article which shall be in full force and effect until revoked by the Municipal Mayor or modified by the Sangguniang Bayan.

Section 87. Administrative Provisions.

- a) No person, natural or juridical, shall engage in the business of real estate development in this municipality without first securing the necessary clearance or permit therefore from the Municipal Mayor.
- b) All applications for clearance or permit required under this article shall be submitted to the duly designated Housing and Land use Enforcement Officer for processing and appropriate action.
- c) The duly designated Enforcement Officer shall inspect the site for development to verify plan specifications and see to it if such development projects conform with national laws, ordinances; or rules and regulations on housing and land uses.

Section 88. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (P1,000.00) but not exceeding Two Thousand Five Hundred Pesos (P2,500.00) or an imprisonment of not less than One (1) Month but not exceeding Six (6) Months, or both such fine and imprisonment, at the discretion of the Court.

Section 89. Applicability Clause. All other matters, not herein specified related to real estate development on the operation of subdivisions, and the like shall be governed by the provisions of Presidential Decree No. 933; Executive Order No. 648, series of 1981 as amended by Executive Order No. 90, series of 1986; Presidential Decree No. 957; *Batas Pambansa Blg.* 220; Republic Act No. 7279; Executive Order No. 71, series of 1993, and other related laws, rules, regulations.

Article VI
Building Permit.

Section 90. Imposition of Fee. There shall be collected from each applicant for a building permit fees pursuant to National Building Code, as amended.

Section 91. Time and Payment. The fees specified under this article shall be paid to the Municipal Treasurer upon application for a building permit from the Municipal Mayor.

Section 92. Administrative Provisions. In order to obtain a building permit, the applicant shall file an application therefore in writing and on the prescribed form with the Office of the Mayor/Building Official. Every application shall provide the following information:

- (1) A description of the work to be covered by the permit applied for;
- (2) Description and ownership of the lot on which the proposed work is to be done as evidenced but TCT and/or copy of the contract of lease over the lot if the applicant is not the registered owner;
- (3) The use or occupancy for which the proposed work is intended;
- (4) Estimated cost of the proposed work.

To be submitted together with such application are at least five sets of corresponding plans and specifications prepared, signed and sealed by a duly licensed architect or civil engineer in case of architectural and structural plans, by a registered mechanical engineer in case of mechanical plans, by a registered electrical engineer in case of electrical plans, and by licensed sanitary engineer or master plumber in case of plumbing or sanitary installation plans except in those cases exempted or not required by the Building Official.

Section 93. Application Process: Applicant shall undergo the procedures herein provided, a viz;

- 1. Secure a Zoning Clearance with the Municipal Planning and Development Office (MPDO)
- 2. Fill up Building Permit Application Form;
- 3. Submit to the Office of the Building Officials (OBO) the following documents for Indorsement to the Fire Department and for assessment;
 - a. Barangay Clearance from the barangay where the building is to be constructed.
 - b. Proof of ownership (Tax Declaration, Transfer Certificate of Title (TCT).
 - c. Contract of Lease, if the applicant is not the owner of the land.
 - d. Lot Sketch Plan.
 - e. Lot Tax Clearance
 - f. Community Tax Certificate
 - g. Drawing Plan
- 4. Secure a Fire Clearance with the Bureau of Fire
- 5. Submission and inspection of the OBO for the completion of the required documents as follows;
 - a. Structural design
 - b. Architectural design
 - c. Plumbing design
 - d. Electrical design
 - e. Electronics
 - f. Mechanical design
- 6. Payment of fees as assessed to the Municipal Treasurer's Office.
- 7. Inspection and issuance of the Certificate of Occupancy by the OBO

Section 94. Penal Provisions. It shall be unlawful for any person, firm or corporation, to erect, construct, enlarge, alter, repair, move, improve, remove, convert, demolish, equip, use, occupy, or maintain any building or structure or cause the same to be done contrary to or in violation of any provision of the Building Code

Any person, firm or corporation, who shall violate any of the provisions of the Code and/or commit any act hereby declared to be unlawful shall upon conviction, be punished by a fine not more than twenty thousand pesos or by imprisonment of not more than two years or by both: Provided, that

in case of a corporation, firm, partnership or association, the penalty shall be imposed upon its official responsible for such violation and in case the guilty party is an alien, he shall immediately be deported after payment of the fine and/or service of sentence

CHAPTER VII
Article I
PERMITS ON CELL TOWERS, ADVERTISEMENTS, AND OTHER ACTIVITIES

Section 95. Permits on Cell site/Cell Towers, Advertisements and Other Activities.

1. Permit fee on Cell site/Cell Towers (per tower annual) -----

₱ 50,000.00
2. Tax on Advertisements.

I. Billboards, or signage for advertisements of business, per square meter or fraction thereof;

Single Face -----

Double Face -----

₱ 500.00

₱ 1,000.00

II. Billboards or sign for professionals, per square meter or fraction thereof; -----

₱ 500.00

III. Billboard or signs or advertisements for business of profession printed on any building or structure or separate or attached there from, per square meter or fraction thereof; -----

₱ 500.00

IV. Advertisements by means of placards, per square meter or fraction thereof -----

₱ 500.00

V. Advertisements for business or profession by means of slides in movies payable by owner of movie houses; -----

₱ 1000.00

In Addition to taxes provided in the above-named Item, inclusive, for the use of electric of neon lights in billboards, per square meters or fraction thereof

₱ 300.00

VI. Mass display or large additional display on signs, per square foot or fraction thereof whether private or public edifice.

From 100 to 250 display signs -----

From 251 to 500 display signs -----

From 501 to 750 display signs -----

From 751 to 1,000 display signs -----

From 1,001 or more display signs -----

₱ 1,600.00

₱ 2,400.00

₱ 3,000.00

₱ 3,400.00

₱ 6,000.00

VII. As to political advertisement, permit fees under this section shall be required to be paid by the concerned politician except when posted at the COMELEC poster areas.
- Article II**
Permit Fees for Tricycle Operation
- Section 96. Tricycle Operation:** Duly passed and approved Resolution No. 121-2018 provides for the following provisions for tricycle operations within the Municipality of Dalaguete.
- Definition of Terms:**
- A. **Motorized Tricycle** - is a motor vehicle propelled other than by muscular power, composed of a motorcycle fitted with a single wheel sidecar or a motorcycle with a two wheeled cab, the former having a total of four wheels, otherwise known as the motorela.

B. **Tricycle Operators** - are persons engaged in the business of operating tricycles.
- 2022 Revised Revenue Code

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- C. **Tricycle-for-Hire** - is a vehicle composed of a motorcycle fitted with a single-wheel side car or a motorcycle with a two-wheel cab operated to render transport services to the general public for a fee.
- D. **Motorized Tricycle Operator's Permit (MTOP)** - is a document granting franchise or license to a person, natural or juridical, allowing him to operate tricycles-for-hire over specified zones.
- E. **Zone** - is a contiguous land area or block, such as subdivision or barangay, where tricycles-for-hire may operate without a fixed origin and destination.
- F. **Board** – refers to the Dalaguete Franchising and Regulatory Board.
- G. **Commission** – refers to the Dalaguete Franchising and Regulatory Commission, which is the executing arm of the Board.
- H. **Certificate of Public Convenience** – means a document granted by the DFRB to person/s to operate a tricycle-for-hire within the jurisdiction of the Municipality, which constitutes his/its franchise good for a period of three (3) years from date of issuance.
- I. **Driver** – shall mean any person who drives a motorized tricycle and is duly licensed by the Land Transportation Office. Any person driving a tricycle-for-hire must be a professional driver or holder of a Philippine Professional Driver's License.
- J. **Fee** – a charge fixed by law or ordinance for the regulation or inspection of a business or activity.
- K. **Franchise** – a privilege affected with public interest, which is conferred upon private persons or corporations, under such terms and conditions as the government, and its political subdivisions may impose in the interest of public welfare, security and safety.
- L. **Levy** – means an imposition or collection of an assessment, tax, tribute or fine.
- M. **Owner/Operator** – shall mean the actual legal owner of a motor vehicle, in his name such motor vehicle is duly registered with the Land Transportation Office. For purposes of engaging in the transport of passengers or cargoes or for business and/or private use, must be a holder of a Certificate of Public Convenience.
- N. **Person** – means every natural person as provided for under the provisions of the Civil Code of the Philippines, however for purposes of transport business, undertaking shall also include juridical persons.
- O. **Tax** – Means an enforced contribution, usually monetary in form, levied by the lawmaking body on person and property under its jurisdiction for the precise purpose of supporting governmental needs.
- P. **Temporary Authority to Operate** – a permit granted by the Board to an operator without a legitimate franchise for a short period as may be determined by the Board from its date of issuance.
- Q. **Tricycle-for-Private Use** – a motor vehicle composed of motorcycle fitted with a single-wheel sidecar or a motorcycle with a two-wheel cab operated for personal or for private use.
- R. **Tricycle-for-Business Use** – a motor vehicle composed of motorcycle fitted with a single-wheel sidecar or a motorcycle with a two-wheel cab operated for business or to transport goods and/or articles of commerce for their own business establishments.
- S. **Taxi Service Permit** – a special permit to operate issued to operator of a Tricycle-for-hire, for operations like taxi service.

Section 97. Imposition of Fees. There is hereby imposed on operators of tricycle-for-hire operating in the municipality, as follows:

b. Application fee for issuance of Certificate of Public Convenience, Per unit -----	₱ 200.00
c. Issuance of Certificate of Public Convenience -----	₱ 500.00
d. Annual Business Permit -----	₱ 500.00
e. Filing fee for Amendment of MTOP -----	₱ 100.00
f. Filing fee for Petition for fare increases -----	₱ 100.00
g. Plate number for Sidecar -----	₱ 500.00
i. Change Engine/motor -----	₱ 500.00
j. Change Ownership -----	₱ 500.00
k. Franchise Fee (3 years) -----	₱ 1,000.00
l. Franchise penalty per month -----	₱ 100.00
m. Tariff Fees -----	₱ 200.00
n. Driver's Affidavit -----	₱ 100.00
o. Change of Unit -----	₱ 550.00
p. Change of trade name (business) -----	₱ 500.00
q. Sticker -----	₱ 100.00

(After one year of inactive or expiry of a franchise, such franchise will automatically be revoked in order for the Municipal Government of Dalaguete thru the DFRB to open a new line).

Section 98. Tricycle for Business and Private Use.

A Special Permit shall be issued to Operators of Tricycle for business and private use upon payment of the following:

a) Application Fee	-----	₱	100.00
b) Issuance of Authority to Operate	-----	₱	500.00
c) Plate Number for Sidecar	-----	₱	500.00

The special permit herein indicated shall expire on December 31 of every year.

Section 99. Special Authority to Operate. A special permit may upon the sound discretion of the Board or if there is a need for public transport utilities, be granted by the DFRB to any operator to operate a tricycle for hire/or for business within the territorial jurisdiction of the Municipality even if the same had been originally registered under different municipality or authority.

A Special Permit shall be issued to Operators of Tricycle outside Dalaguete upon payment of the following:

a) Special Authority to Operate	-----	₱	500.00
b) Processing Fee	-----	₱	50.00
c) Sticker	-----	₱	50.00
d) Penalty	-----	₱	100.00

The Special permit shall expire three (3) months after from the date of issuance of the Special Authority to Operate or when the need for such public transport utilities already ceases. In addition, a sticker will be provided each unit the cost of which will be shouldered by the operator and shall be affixed in the front portion of the tricycle.

Section 100. Requirements in the Application for Tricycle/Motorsikad Franchise and Registration for Authority to Operate.

1. Must have a Professional Driver's license (professional).
2. Copy of Certificate of Registration (CR) and Official Receipts (OR) of motorcycle unit applied for.
3. In addition, a valid Franchise from other municipalities (Special Authority to Operate).
4. A valid Business/Commercial Mayors Permit (Operators' Permit for Tricycle for Commercial/Business use).
5. A Certificate of residency or CTC (For Tricycles for "Private Use" and "Motorsikad" only).
6. Must be in accordance to the color coding scheme as intended for the route applied.
7. Must have attended a seminar to be conducted for this purpose by the Dalaguete PNP or its authorized representatives
8. Passenger Insurance Coverage to answer for any damage to physical injuries and/or loss of life of passengers.

Section 101. Operating Without Certificate of Convenience or Franchise and Special Authority to Operate/Operator's Permit. – Any Motor Vehicle Units found operating without a valid CPC or Franchise, Special Authority/Operators Permit shall be subject to the following penalty:

a. First Offense	-----	₱1,500.00
b. Second Offense	-----	₱2,000.00
c. Third Offense	-----	₱2,500.00 or imprisonment of not exceeding six (6) months or both at the discretion of the court.

Article III
Registration and Permit Fee on Bicycle and Pedaled Tricycle.

Section 102. Imposition of Fee. There shall be collected from the owner of the bicycle or pedaled tricycle operating within the municipality, the following fees:

A. Pedaled Tricycle

I. The annual registration fees shall be as follows:

1. Trisikad for Hire	₱ 150.00
2. Trisikad for Commercial Use	₱ 150.00
3. Trisikad for Private Use	₱ 150.00
4. Trisikad driver's license fee	₱ 100.00

Renewal:

1. Trisikad for Hire	₱ 150.00
2. Trisikad for Commercial Use	₱ 150.00
3. Trisikad for Private Use	₱ 150.00
4. Trisikad driver's license fee	₱ 50.00

B. Electric Powered Tricycle

1. Trisikad for Hire	₱ 150.00
2. Trisikad for Commercial Use	₱ 150.00
3. Trisikad for Private Use	₱ 150.00
4. Trisikad driver's license fee	₱ 100.00

Renewal:

1. Trisikad for Hire	₱ 150.00
2. Trisikad for Commercial Use	₱ 150.00
3. Trisikad for Private Use	₱ 150.00
4. Trisikad driver's license fee	₱ 50.00

Section 103. Time of payment: Payment of registration fee shall be made to the Municipal Treasurer's Office which shall issue the corresponding Official Receipt and Registration Plates or Stickers as the case may be for the current year upon presentation of Seminar Certificate.

Article IV
Permit Fee for Cockpit Owners/Operators/Licensees/Promoters and Cockpit Personnel.

Section 104. Definitions of terms.

- (a) Cockpit includes any place, compound, building or portion thereof, where cockfights are held, whether or not money bets are made on the results of such cockfights.
- (b) Bet taker or Promoter refers to a person who alone or with another initiates a cockfight and/or calls and take care of bets from owners of both gamecocks and those of other bettors before he orders commencement of the cockfight thereafter distributes won bets to the winners after deducting a certain commission, or both.
- (c) Gaffer (taga-tari) refers to a person knowledgeable in the art of arming fighting cocks with gaffs on one or both legs.
- (d) Referee (Sentenciador) refers to a person who watches and oversees the proper gaffing of fighting cocks; determines the physical condition of gamecocks while cockfighting is in progress, the injuries sustained by the cocks and their capability to continue fighting, and decides and makes known his decision either by word or gesture the result of the cockfighting by announcing the winner or deciding a tie in a contest game.

Section 105. Imposition of Fees. There shall be collected the following Mayor's Permit Fees from cockpit operators/owners/licensees and cockpit personnel:

a. Owner/operator/license of the cockpit:

1. Application filling fee	-----	₱	2,000.00
2. Annual cockpit permit fee	-----	₱	10,000.00
3. Ocular inspection permit fee	-----	₱	750.00

b. Cockpit personnel:

1. Promoters/Hosts	-----	₱	2,000.00 per annum
2. Pit Manager	-----	₱	2,000.00 per annum
3. Referee	-----	₱	1,500.00 per annum
4. Bet Manager	-----	₱	1,500.00 per annum
5. Gaffer	-----	₱	1,500.00 per annum
6. Bet Taker	-----	₱	1,500.00 per annum

ARTICLE V
Special Permit Fees for Cockfighting

Section 106. Definitions. When used in this Article.

- a) Cockfighting is the sport of pitting or evenly matching gamecocks to engage in an actual fight where bets on either side are laid. Cockfighting may also be formed as “cockfighting derby; pintakasi or tupada,” or its equivalent in different Philippine localities.
- b) Local Derby is an invitational cockfight participated in by gamecockers or cockfighting “aficionados” of the Philippines with “pot Money” awarded to the proclaimed winning entry.
- c) International Derby refers to an invitational cockfight participated in by local and foreign gamecockers or cockfighting “afficionados” with “pot Money” awarded to the proclaimed winning entry.

Section 107. Imposition of fees:

a. Regular Cockfights Fee	-----	₱	250.00 per day
b. Special Cockfights (Pintakasi)	-----	₱	3,000.00
c. Mayor’s Permit Fee	-----	₱	500.00 per day

I. Special Derby Assessment from promoters of:

1) 2 cocks derby	-----	₱2,000.00 & corresponding Derby assessment Fee
2) 3 cocks derby	-----	₱3,000.00 & corresponding Derby assessment Fee
3) 4 cocks derby	-----	₱4,000.00 & corresponding Derby assessment Fee
4) 5 cocks derby	-----	₱5,000.00 & corresponding Derby assessment Fee
5) 6 cocks derby up	-----	₱10,000.00 & corresponding Derby assessment Fee
6) International derby	-----	₱12,000.00

Plus Mayor’s Permit Fee of ₱ 1,000.00

II. Derby Assessment Fees:

1) Bet less than ₱5,000.00	-----	₱	100.00
2) Bet more than ₱5,000.00	-----	₱	200.00

III. Assessment fees for ordinary cockfights: ----- ₱ 30.00

Section 108. Time and Manner of Payment.

- (a) The fees herein imposed shall be payable to the Municipal Treasurer before the upon application for a permit or license to operate and maintain cockpits.

- (b) The annual cockpit permit fee is payable upon application for a permit before a cockpit shall be allowed to operate and within the first thirty days of January of each year in case of renewal thereof.
- (c) The permit fees on cockpit personnel shall be paid before they participate in a cockfight and shall be paid annually upon renewal of the annual cockpit permit.
- (d) Assessment fees for ordinary cockfight shall be paid to the Municipal Treasurer weekly.

Section 109. Administrative Provision.

- (a) Holding of cockfights. Except as provided in this article, cockfighting shall be allowed in this municipality only in licensed cockpits during Sundays and legal holidays and during fiestas for not more than three (3) days. It may also be held during municipal, agricultural, commercial, or industrial fairs, carnival or exposition for a similar period of 3 days upon resolution of the Sangguniang Bayan.
- b(b) Only licensed referees and bet takers shall officiate in cockfight held in this municipality. No operator or owner of a cockfight shall allow any gaffer, referee, bet taker, pit manager, or promoter inside the cockpit who has not secured the permit and paid the fee herein required.
- (c) Ownership, operation and management of cockpit. Only Filipino citizens not otherwise inhibited by existing ordinances or laws shall be allowed to own, manage and operate cockpits. Cooperative capitalization is encouraged.
- (d) Establishment of cockpit. The Sangguniang Bayan shall determine the number of cockpits to be allowed in this municipality.
- (e) Cockpit-size and construction. Cockpits shall be constructed and operated within the appropriate areas as prescribed in the Zoning Law or ordinance. In the absence of such law or ordinance, the Municipal Mayor shall see to it that no cockpits are constructed within or near existing residential or commercial areas, hospitals, school buildings, churches or other public buildings. Owners, lessees, or operators of cockpits which are now in existence and do not conform to this requirement are required to comply with these provisions within a period to be specified by the Municipal Mayor. Approval or issuance of building permits for the construction of cockpits shall be made by the Municipal Engineer in accordance with existing ordinances, laws and practices.

Section 110. Applicability Clause. The provision of PD 449, otherwise known as the Cockfighting Law of 1974, PD 1802 (Creating the Philippine Game fowl Commission), and such other pertinent laws shall apply to all matters regarding the operation of cockpits and the holding of cockfights in this Municipality.

Article VI
Permit Fee on Occupation/ Calling Not requiring Government Examination

Section 111. Imposition of Fees: There shall be collected as annual fee at the rate prescribed hereunder for the issuance of Occupational Mayor’s Permit to every person who shall engaged in the practice of occupation or calling not requiring government examination within the municipality as follows;

Occupation or Calling	Rate of Fee/Annum
a) On employees and workers in generally considered “Offensive and Dangerous Business Establishments”. (Workers in industrial or manufacturing establishment, Water and soft drink factories.	₱ 1,000.00
b) On employees and workers in commercial establishments who cater or attend to the daily needs of the inquiring public needs of the inquiring public or paying public (drugstores, department stores, groceries,	

- supermarkets, Bank teller, paying outlets, lotto teller, and the like. ₱ 1,500.00
- c) On employees and workers in food or eatery establishment. Workers in canteen, carenderia, catering services, bakeries refreshment parlors, restaurant. ₱ 500.00
- d) On employees and workers in night or night and day establishment. (Security) ₱ 1,000.00
- e) All occupation or calling subject to periodic inspection, surveillance and/or regulation by the Municipal Mayor, like animal trainer, auctioneer, barber, bartender, beautician bondsman, bookkeeper, butcher, blacksmith, carpenter, carver, chambermaid, cook, criminologist, electrician, electronic technician, club/floor manager, forensic electronic expert, hair stylist, handwriting expert, hospital attendant, lifeguard, make-up artist, manicurist, masonry worker, masseur attendant mechanic, painter, musician, photographer (itinerant) professional boxer, sales girl, waiter/waitress and welder. ₱ 1,000.00

Section 112. Time and Manner of Payment. - the fees prescribed in this article shall be paid to the Municipal Treasurer upon filing of the application for the first time and annually thereafter within the last day of February and every quarter thereafter.

Section 113 Exemption. - All professionals who are subject to the Provincial Tax imposition Pursuant to Sec. 139 of the LGC; and the government employees are exempted from payment of this fee.

Section 114. Administrative requirements for Occupational Permit Issuance:

- a. Applicant worker/employee shall submit the following to be issued an Occupation/Employment Identification Card;
 - 1. Community Tax Certificate/Cedula of worker/employee
 - 2. Barangay Clearance for employment
 - 3. Police Clearance/ Government issued Identification Card
 - 4. Health Card Issued by the Rural Health Unit (food Establishments)
 - 5. 1x1 ID Picture
- **For working minors:**
 - 6. Original Copy of the Parent’s Consent with photocopy of Parents Valid ID.
 - 7. Original copy of Affidavit of Guardianship with guardians valid ID in the absence of both Parent.

Article VII
Registration and Transfer Fees on Large Cattle.

Section 115. Definition. For purposes of this Article, "large cattle" includes a two-year old horse, mule ass, carabao, cow or other domesticated member of the bovine family.

Section 116. Imposition of Fee. The owner of a large cattle is hereby required to register said cattle with the Municipal Treasurer for which a certificate of ownership shall be issued to the owner upon payment of a registration fee as follows:

	Amount of Fee
(a) For Certificate of Ownership	₱ 300.00
(b) For Certificate of Transfer	₱ 200.00
(c) Ear Tagging Fee	₱ 100.00/animal

The transfer fee shall be collected only once, if large cattle is transferred more than once in a day.

Section 117. Time and Manner of Payment. The registration fee shall be paid to the Municipal Treasurer upon registration or transfer of ownership of the large cattle.

Section 118. Administrative Provisions.

- (a) Large cattle shall be registered with the Municipal Treasurer upon reaching the age of two (2) years.
- (b) The ownership of a large cattle or its sale or transfer of ownership to another person shall be registered with the Municipal Treasurer. All branded and counter-branded large cattle presented to the Municipal Treasurer shall be registered in a book showing among others, the name and residence of the owner, the consideration or purchase price of the animal in cases of sale or transfer, and the class, color, sex, brands and other identification marks of the cattle. These data shall also be stated in the certificate of ownership issued to the owner of the large cattle.
- (c) The transfer of the large cattle, regardless of its age, shall be entered in the registry book setting forth, among others, the names and the residence of the owners and the purchaser; the consideration or purchase price of the animal for sale or transfer, class, sex, brands and other identifying marks of the animals; and a reference by number to the original certificate of ownership with the name of the municipality issued to it.

No entries of transfer shall be made or certificate of transfer shall be issued by the Municipal Treasurer except upon the production of the original certificate of ownership and certificates of transfer and such other documents that show title to the owner.

Section 119. Applicability Clause. All other matters relating to the registration of large cattle shall be governed by the pertinent provisions of the Revised Administrative Code and other applicable laws, ordinances and rules and regulations.

Article VIII
Fees on Impounding of A stray Animals.

Section 120. Definitions of Terms. When used in this Article;

- (a) *A stray Animal* means an animal which is set loose unrestrained, and not under the complete control of its owner, or the charge or in possession thereof, found roaming at-large in public or private places whether fettered or not.
- (b) *Public Place* includes national, provincial, municipal, or barangay streets, parks, plazas, and such other places open to the public.
- (c) *Private Place* includes privately-owned streets or yards, rice fields or farmlands, or lots owned by an individual other than the owner of the animal.
- (d) *Large Cattle* includes horses, mules, asses, carabaos, cows, and other domestic members of the bovine family.

Section 121. Imposition of Fee. There shall be imposed the following fees for each day or fraction thereof on each head of stray animal found running or roaming at large, or fettered in public or private places:

		Amount of Fee
(a) Large Cattle	-----	₱ 500.00 per head
(b) All other animals	-----	₱ 200.00 per head

Section 122. Time of Payment: The impounding fee shall be paid to the Municipal Treasurer prior to the release of the impounded animal to its owner.

Section 123. Dog Mandatory Registration and Vaccination Fee. - Every dog shall be registered by their owner upon reaching three (3) months of age. A registration card which shall contain all vaccinations conducted on their dog, for accurate record purposes shall be maintained. Dogs three (3) months old and above not previously registered shall be vaccinated upon registration.

Registration Fee: ----- ₱ 50.00 per dog per year
Vaccination Fee: ----- ₱ 100.00 per dose of vaccination (Vaccine provided by LGU)

Section 124. Time of Payment. The fees shall be paid to the Municipal treasurer prior to the vaccination of the dog in close coordination with the Municipal Agricultural Office and the Office of the Municipal Veterinarian.

NOTE: The above provisions may not apply in a mass vaccination program. During a free mass dog vaccination, the cost shall be borne by the owner after the scheduled date.

Article IX
Permit Fee on Agricultural Machinery and Other Heavy Equipment for Rent.

Section 125. Imposition of Fee. There shall be collected an annual permit fee at the following rates for each agricultural machinery or heavy equipment from operator of the said machinery renting out said equipment in this municipality.

ANNUAL PERMIT FEE/UNIT		
a. Farm Tractor	-----	₱ 200.00
b. Bulldozer	-----	₱ 2,000.00
c. Forklift	-----	₱ 1,000.00
d. Cargo Truck	-----	₱ 500.00
e. Dump Truck (6 wheelers)	-----	₱ 500.00
f. Dump Truck (10 wheelers)	-----	₱ 1,500.00
g. Road Rollers	-----	₱ 500.00
h. Payloader	-----	₱ 2,000.00
i. Road Grader	-----	₱ 2,000.00
j. Primemovers/Flatbeds	-----	₱ 2,000.00
k. Backhoe	-----	₱ 2,000.00
l. Rockcrusher	-----	₱ 2,000.00
m. Batching Plant	-----	₱ 5,000.00
n. Transit/Mixer	-----	₱ 2,000.00
o. Crane	-----	₱ 2,000.00
p. Other agricultural machinery or heavy equipment	-----	₱ 1,000.00
q. Other equipment not enumerated above	-----	₱ 1,000.00

Section 126. Time and Manner of Payment. The fees imposed herein shall be payable upon application or renewal of their Mayor's Permit.

Section 127. Administrative Provision. The Municipal Treasurer shall keep a registry of all heavy equipment and agricultural machinery which shall include the make and brand of the heavy equipment and agricultural machinery and the name and address of the owner.

Section 128. Penalty. Failure to have their machinery and equipment registered under this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than one (1) month but not more than six (6) months, or both such fine and imprisonment, at the discretion of the Court.

CHAPTER VIII
Registration of Religious or sports organizations, clubs or associations

Article I
Registration Fees.

Section 129. Imposition of Fee. There shall be collected an annual registration fee of Two Hundred Pesos (₱200.00) for every religious, civic, social and/or sports organizations, clubs, associations, federation organized and/or operating in this municipality for purposes not contrary to laws, rules and regulations.

Section 130. Time of Payment. The fee shall be paid to the Municipal Treasurer within the last week of February every year before a certificate of registration is issued by the Municipal Mayor or his duly authorized representative.

Section 131. Surcharge for Late Payment. Failure to pay the fee prescribed in this Article within the time required shall subject the taxpayer to a surcharge of *twenty percent (20%)* of the original amount of fee due, such surcharge to be paid at the same time and in the same manner as the original fee due.

Section 132. Administrative Provisions.

- 1) It shall be the duty of the Officers of the organization covered under this Article, through their President or Chairman, to register the name of their organization or association with the Office of the Mayor.
- 2) The application for registration shall be accompanied by a copy of the organization’s Constitution and By-laws or, in the absence of which, a joint affidavit to be executed by two officers of the said organization stating therein the purpose or purposes for which the organization is established or formed, together with a copy of the list of all its members including their respective addresses.

Section 133. Exemption. Political organizations, including the Katipunang Kabataan, Sangguniang Kabataan, Pederasyon ng mga Sangguniang Kabataan, Liga ng mga Barangay, Barangay Tanods and Senior Citizens are exempted from the provisions of this Article.

Section 134. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article II.
Permit Fee on Storage of Flammable, Combustible or
Combustible of Explosive Substances.

Section 135. Imposition of Fee. There shall be collected from every person storing flammable, combustible or explosive substances the following permit fee:

Storage of other flammable Liquified Petroleum Gas (LPG), combustible or explosive substances.

- a. Less than 1,000 kilograms ----- ₱ 200.00 per annum
- b. More than 1,000 kilograms ----- ₱ 300.00 per annum

Section 136. Time and Manner of Payment. The fee imposed herein shall be paid to the Municipal Treasurer upon application for Mayor’s permit to store the aforementioned materials or substances.

Section 137. Administrative Provisions.

- 1) No person shall store or keep at his place of business or elsewhere in this municipality any flammable, combustible or explosive substances without first securing a permit from the Mayor thru the Municipal Fire Marshall, Bureau of Fire Protection. Gasoline, diesel fuel or naphtha not exceeding the quantity of *One Hundred (100)* liters kept in the tank of motor vehicles or other mechanical engines shall be exempt from the permit fee herein imposed.

2) The Municipal Fire Marshall, BFP, shall promulgate the necessary rule and regulations for the proper storing of said materials or substances taking into consideration the provisions of PD 1185 (Fire Code of the Philippines) and its implementing rules and regulations.

Section 138. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article III.

Permit Fee for Temporary Use of Roads, Streets, Sidewalk, Alleys, Patios, Plazas and Playgrounds, Municipal Road or Street Leading to the Port and the Premises along the Port for the Shelter and Harbor of Goods, Commodities and Equipments.

Section 139. Imposition of Fees. There shall be collected service fee for the use of the municipal road or street leading to the port and to any point along the shorelines within the jurisdiction of the municipality and for police surveillance and all goods and all equipments harbored or sheltered in the premises of the wharf and others within the jurisdiction of the Municipality of Dalaguete in the following schedule:

a) Vehicles and Equipment		Rate of Fee
1. Trucks	-----	₱ 200.00
2. Delivery Trucks	-----	₱ 200.00
3. Heavy Equipment	-----	₱ 300.00

Section 140. Time of Payment. The fee imposed herein shall be due in every docking transaction to be paid to the Municipal Treasurer per truck of delivery.

Section 141. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article IV.

Permit on Certain Activities.

Section 142. Issuance of Permit for Certain Unspecified Activities.

A. Excavation Activity: Every person shall make or cause to make any excavation in public streets within the municipality:

1. For crossing street with cemented pavement:		
a) Minimum area of 4.00m x 6.00m or 24 sqm	-----	₱ 1,500.00
b) For crossing the base of streets with concrete pavements per linear meter (boring method)	-----	₱ 50.00
2. For crossing streets with asphalt pavements:		
a) Minimum fee	-----	₱ 200.00
b) Per linear meter crossing the streets minimum Weight of excavation .80m	-----	₱ 100.00
3. For crossing the streets with gravel pavements:		
a) Minimum fee	-----	₱ 100.00
b) For each linear meter crossing the streets maximum of .30 m	-----	₱ 30.00
4. For crossing existing curbs and gutters and for damage thereof:	-----	₱ 200.00
5. Excavation in public streets	-----	₱ 200.00

6. Restoration deposit before issuing excavation permit ----- as assess by the Mun. Eng'g Office

B. Site Development Activity: There shall be imposed a permit fee to Site Development prior to the approval and issuance of building permit, as follows;

- 1) For properties zoned for Residential ----- P30.00 per sqm.
- 2) Properties for commercial, industrial and mixed-use development ----- P40.00 per sqm.
- 3) Subdivisions site development ----- P50.00 per sqm.
- 4) Residential including building footprints, parking, street layout, conceptual landscaping and lighting, site cross section drawings and building elevation ----- P20.00 per sqm.

Section 143. Issuance of Permit for Certain Unspecified Activities. The issuance of a permit for certain activities not specifically enumerated in this Code shall be governed by the pertinent provisions of PD 771, PD 1096, PD 1185 and other existing laws, rules and regulations.

Article V
Permit Fee on Circus and Other Amusements

Section 144. For Rides and Shows:

Name	Sitio Fiesta/Festivity	Barangay Fiesta/Festivity	Parochial Fiesta/Festivity
Octopus	₱ 300.00	₱ 600.00	₱ 1,000.00
Merry-go round	₱ 300.00	₱ 600.00	₱ 1,000.00
Roller coaster	₱ 300.00	₱ 600.00	₱ 1,000.00
Ferries wheel	₱ 300.00	₱ 600.00	₱ 1,000.00
Horror train	₱ 300.00	₱ 600.00	₱ 1,000.00
(others similar in nature)	₱ 300.00	₱ 600.00	₱ 1,000.00

Section 145. For Games:

Name	Sitio Fiesta/Festivity	Barangay Fiesta/Festivity	Parochial Fiesta/Festivity
Bingo	₱ 300.00	P600.00	₱ 1,000.00
Drop Ball	₱ 200.00	₱ 300.00	₱ 500.00
Pula-puti	₱ 200.00	₱ 500.00	₱ 600.00
Pinball	₱ 200.00	₱ 500.00	₱ 600.00
Hordam	₱ 200.00	₱ 500.00	₱ 600.00
Target shooting	₱ 200.00	₱ 400.00	₱ 500.00
Roleta	₱ 200.00	₱ 400.00	₱ 500.00
Itsa-itsa(ring/coins)	₱ 200.00	₱ 400.00	₱ 600.00
Basketball ring shooting	₱ 200.00	₱ 400.00	₱ 600.00
(others similar in nature)	₱ 200.00	₱ 400.00	₱ 600.00

Section 146. Allowable days of operation:

- a. Sitio Fiesta - 5 days
- b. Barangay Fiesta - 10 days
- c. Parochial Parish Fiesta - 30 days

Section 147. Time and Manner of Payment. The fee imposed herein shall be due and payable to the Municipal Treasurer upon application for a permit to the Municipal Mayor at least seven (7) days before the scheduled date of the activity/event commence and, on such activity, shall be held.

Section 148. Administrative Provisions.

(a) Any persons who shall hold Circus and Other Amusements within this municipality shall first obtain from the Municipal Mayor before undertaking the activity. For this purpose, a written

application in a prescribed form shall indicate the name, address of the applicant, the description of the activity, the place or places where the same will be conducted and such other pertinent information as may be required.

(b) The Station Commander of the Philippine National Police shall promulgate the necessary rules and regulations to maintain an orderly and peaceful conduct of the activities mentioned in this Article. He shall also define the boundary within which such activities may be lawfully conducted.

Section 149. Permit to Hold Benefit Undertakings. Religious, civic, social and/or sports organizations, clubs, associations, federations or fraternities desiring to hold benefit shows, balls, programs, exhibitions, contest, bingo socials and other kinds of fund-raising activities may be issued a Special Mayor’s Permit *free of charge*, provided, that the said organization is duly registered with the Office of the Mayor; that the proceeds of which shall inure or benefit the welfare organization or intended for purposes that will redound to the welfare of the organization; that it shall not in any manner violate any existing ordinances, rules and regulations, especially those on traffic and pedestrian hazards.

Section 150. Exemption. Only fund-raising activities sponsored by the Barangay Council (*Sangguniang Barangay*) are exempted from securing a permit from any national or local office or agency as per Section 391, paragraph 11 of RA 7160 and Article 101, paragraph 11 of its implementing rules and regulations. Provided that no fund-raising activities shall be held within a period of sixty (60) days immediately preceding and after a national or local election, recall, referendum, or plebiscite and provided finally, that said fund-raising activities shall comply with the national policy standards and regulations on moral, health and safety of the persons participating therein. The *Sangguniang Barangay*, through the *Punong Barangay*, shall render a public accounting of the funds raised at the completion of the project for which the fund-raising activity was undertaken.

Section 151. Administrative Provisions. Except for the Barangay Council, it shall be unlawful for any person, natural or juridical, to hold benefit shows, programs, contests and other fund-raising activities without the corresponding permit from the Municipal Mayor.

Section 152. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, of both such fine and imprisonment, at the discretion of the Court.

Article VI
Permit Fee for the Conduct of Group Activities.

Section 153. Imposition of Fee. Every person who shall conduct, or hold any program, or activity involving the grouping of people within the jurisdiction of this municipality shall obtain a Mayor’s permit therefore for every occasion of not more than twenty-four (24) hours and pay the Municipal Treasurer the corresponding fee in the following schedule:

- | | |
|--|----------|
| 1. Conference, meetings, rallies and demonstration in outdoor, in parks, plazas, roads/streets | ₱ 500.00 |
| 2. Promotional sales | ₱ 500.00 |
| 3. Other Group Activities | ₱ 300.00 |

Section 154. Time of Payment. The fee imposed in this article shall be paid to the Municipal Treasurer upon filing of application for permit with the Municipal Mayor.

Section 155. Exemption. Programs or activities conducted by educational, charitable, religious and governmental institutions free to the public shall be exempted from the payment of the fee herein imposed, provided, that the corresponding Mayor’s Permit shall be secured accordingly. Programs or activities requiring admission fees for attendance shall be subject to the fees herein imposed even if they are conducted by exempt entities.

Section 156. Administrative Provision. A copy of every permit issued by the Municipal Mayor shall be furnished to the Chief of Police or Station Commander of the Philippine National Police

(PNP) of the municipality who shall assign police officers to the venue of the program or activity to help maintain peace and order.

Article VII
Permit Fee on Film-Making.

Section 157. Imposition of Fee. There shall be collected the following permit fee from any person who shall go on location-filming within the territorial jurisdiction of this municipality.

Rate of Fee per Filming

a. Commercial movies	-----	₱ 500.00/setting
b. Commercial advertisements	-----	₱ 500.00/setting
c. Documentary film	-----	₱ 500.00/setting
d. Videotape coverage	-----	₱ 500.00/coverage

In cases of extension of filming time, the additional amount required must be paid prior to extension to filming time.

Section 158. Time of Payment. The fee imposed herein shall be paid to the Municipal Treasurer upon application for the Mayor's Permit five (5) working days before location-filming is commenced.

Article VIII
Contractors Permit.

Section 159. Contractor's Permit on all Private and Public infrastructures constructed within the Municipality.

A contractor's permit fee of One Tenth (1/10) of One Percent (1%) of the total contract price but in no case shall be less than five hundred pesos (P500.00) of any government or non-government contracts shall be imposed on contractors doing construction job within the territorial jurisdiction of the municipality of Dalaguete.

CHAPTER IX
Service Fees.

Article I
Secretary's Fees.

Section 160. Imposition of Fees. There shall be collected the following fees from every person requesting for copies of official records and documents from any office of this municipality:

1. For every page or fraction thereof typewritten (not including the certificate and annotation)	-----	₱ 50.00
2. For each certificate of correctness (with seal of office) Written on the copy or attached thereto	-----	₱ 100.00
3. For certifying the official act of the Municipal Judge Or other judicial certificate with seal	-----	₱ 100.00
4. For certified copies of any papers, records, decree, judgment or entry of which any person is entitled to demand and receive a copy (in connection with judicial proceedings) for each page	-----	₱ 100.00
5. Photocopy of any other copy produced by copying machine per page	-----	₱ 10.00

Article II
Other Fees and Charges

Section 161. Municipal Assessor's Office

1. Where the copy to be furnished is in printed form, In whole part, for each page (double this fee if there are two pages in a sheet)	-----	₱	50.00
I. Tax Clearance Fee			
For the first lot	-----	₱	200.00
For every lot/parcel in excess	-----	₱	50.00
II. For preparing affidavits or any document	-----	₱	200.00
III. For each certificate of correction with Seal of Office written on the copy of attached thereto:			
First two copies	-----	₱	150.00
For every additional copy	-----	₱	50.00
IV. Certified true and correct copies of Real Property Tax Declaration	-----	₱	250.00
V. Certified machine copy of Real Property Tax Declaration	-----	₱	200.00
VI. Processing Fee for every transaction			
Transfer of ownership	-----	₱	200.00
Ocular Inspection	-----	₱	350.00
Processing Fee	-----	₱	100.00
VII. Certification of Ownership of Real Property:			
For the first lot	-----	₱	100.00
For every lot in excess	-----	₱	50.00
VIII. Certification of total land holdings	-----	₱	250.00
IX. Certification of no building improvements	-----	₱	250.00
X. Certification of building improvements	-----	₱	200.00
XI. Tracer costs for the original ownership of tax declarations from Previous years	-----	₱	300.00
XII. For certifying the official act of a municipal judge or other judicial certificate, with seal	-----	₱	250.00
XIII. For certified copies of any paper, record, decree, judgment or entry of which any person entitled to demand and receive a copy (in connection with judicial proceedings)	-----	₱	80.00
XIV. For copy/s of other docs not specified above per page	-----	₱	80.00
XV. Certified Photo copy, per page	-----	₱	80.00
XVI. Plain copy of Tax Declaration	-----	₱	50.00
XVII. For administering oaths per document	-----	₱	300.00

Section 162. Tourism and Investment Promotions Office

A. Issuance of Certification

1. Cultural Assistance for Provincial and National Govt.	-----	₱	100.00
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2. Data & statistics for graduating and non graduating students	-----	₱ 100.00
3. Certification –DOT Tour Guides	-----	₱ 100.00

B. Service Fees for SSS applications on the following; (excluding LCR, Affidavit, Oath fees).

1. Application of retirement Claim	-----	₱ 100.00
2. Application of funeral claim	-----	₱ 100.00
3. Application of Death Claim	-----	₱ 100.00
4. Application of Educational Assistance loan	-----	₱ 100.00
5. Self-employed Sickness Reimbursement Application	-----	₱ 100.00

C. Service fees for Pag-ibig applications on the following; (Excluding NSO, LCR, Affidavit and oath fees)

1. Application of retirement claim	-----	₱ 100.00
2. Application of Death	-----	₱ 100.00

Section 163. Municipal Social Welfare Development Fees:

1. Marriage Counseling fees (resident)	-----	₱ 150.00
2. Marriage Counseling fees (non-resident)	-----	₱ 300.00
3. Marriage Counseling fees (one party foreigner)	-----	₱ 1,500.00
4. Re-issuance of OSCA Identification card	-----	₱ 100.00

Section 164. Municipal Local Government Office Fees:

1. Certificate of Incumbency	-----	₱ 200.00
2. Certificate of Eligibility	-----	₱ 200.00

Certificate for Barangay

3. Official Scholar Benefits	-----	₱ 50.00
4. Other purposes	-----	₱ 50.00
5. Documentary stamps	-----	₱ 30.00
6. Processing Fee	-----	₱ 50.00

Section 165. Municipal Engineering Office Fees:

1. Certified true copy of Building Plans (Blue Print)	-----	₱ 400.00/sheet
2. Certified true copy of Electrical Plans (Blue Print)	-----	₱ 400.00
3. Certified true copy of Plumbing Plans (Blue Print)	-----	₱ 400.00
4. Certified true copy of Building Permit	-----	₱ 300.00
5. Certified True Copy of Electrical Permit	-----	₱ 300.00
6. Certified True copy of Plumbing Permit	-----	₱ 300.00
7. Simplified Electrical Plans/Permits (Residential)	-----	₱ 540.00

(Cost Breakdown)

A. Building Permit Fees (20 sq. meters)	-----	₱ 40.00
B. Electrical Fees	-----	₱ 200.00
C. Inspection Fees	-----	₱ 200.00
D. Certificate of Use/ Occupancy	-----	₱ 100.00

8. Simplified Electrical Plans/Permits (Commercial):	-----	₱ 800.00
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(Cost Breakdown)

A. Building Permit Fees (20 sq. meters)	-----	₱ 180.00
B. Electrical Fees	-----	₱ 350.00
C. Inspection Fees	-----	₱ 120.00
D. Certificate of Use/ Occupancy	-----	₱ 150.00

9. Development Fee	-----	₱	100.00
C. Issuance of Certificate of damage	-----	₱	50.00
D. Certified true copy of Certificate of damage	-----	₱	50.00
E. Certified true copy of electrical certificate	-----	₱	50.00
F. Issuance of Certificate Gas Meter installation	-----	₱	50.00
G. Certified true copy of Certificate of operation	-----	₱	50.00
H. Other Certifications	-----	₱	50.00

NOTE: The specifications of the Gas Meter shall be:

- i. Manufacturer
- ii. Serial Number
- iii. Gas Type
- iv. Meter Classification/Model
- v. Maximum Allowable Operating Pressure-psi (kPa)
- vi. Hub Size - mm (inch)
- vii. Capacity – m³/hr. (ft³/hr.)

Section 166. Sangguniang Bayan Office Fees:

1. Request for Copies of SB Resolutions/Ordinances	-----	₱	30.00/page
2. Certified True Copy of SB Resolutions/Ordinances	-----	₱	50.00/page
3. Certification Fee	-----	₱	50.00/page
4. Secretary's Fee	-----	₱	50.00/page

**Chapter X
Clearance Fees**

**Article I
Police and Court Clearance Fees.**

Section 167. Imposition of Fees. There shall be collected a service fee for each police or court clearance certificate issued, as follows:

a. Benefit undertakings (Disco Permit)	-----	₱400.00 per night
b. Sound System (Disco Permit)	-----	₱300.00 per night
c. For employment, scholarship, study grant	-----	₱ 50.00
d. For business (owner)	-----	₱ 150.00
e. For firearm permit application	-----	₱ 300.00
f. For change of name	-----	₱ 200.00
g. Certification/clearance to be used in securing a driver's license	-----	₱ 150.00
h. Certification/clearance for purposes of entering the military service	-----	₱ 50.00
i. For passport or visa application	-----	₱ 200.00
j. For application for Filipino citizenship	-----	₱ 1,000.00
k. Police Clearance for employment (abroad)	-----	₱ 200.00
l. Police Clearance for employment (local)	-----	₱ 100.00
m. Police Clearance (travel abroad)	-----	₱ 350.00
n. Request for Police report	-----	₱ 100.00
o. For other purposes not herein specified	-----	₱ 50.00
p. Processing Fee	-----	₱ 50.00
q. Documentary stamp	-----	₱ 30.00

Section 168. Exemption. The fees imposed in this Article shall not be collected for copies furnished to other offices and branches of the government for official business, except for those copies required by the Court at the request of the litigant, in which case, charges shall be in accordance with the above-mentioned schedule.

Section 169. Time and Manner of Payment. The fees shall be paid to the Municipal Treasurer at the time the request, written or otherwise, for the issuance of a copy of any municipal record or document is made.

Section 170. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00), or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article II
Local Registry Fees.

Section 171. Imposition of Fees. There shall be collected the following registry fees and other service charges, viz:

A. Birth Related Fees:

1. Service Fees		Fee/Charge	Computer Cost	Doc. Stamps
a. Transcript of Birth Certificate	-----	₱ 50.00	₱ 50.00	₱ 30.00
b. Out-of-Town delayed Registration	-----	₱ 100.00	₱ 50.00	none
c. Supplemental Report	-----	₱ 100.00	₱ 50.00	none
2. Penalty for delayed registration	-----	₱ 100.00	₱ 50.00	none
3. Registrable documents, legal instruments and annotation		Fee/Charge	Computer Cost	
a. RA 9255 (Authority to use the surname of the Father)	-----	₱ 50.00	₱ 50.00	
b. Acknowledgement by the Father	-----	₱ 50.00	₱ 50.00	
c. Legitimation				
c.1 Subsequent Marriage of Parents	-----	₱ 100.00	₱ 50.00	
c.2 Legal Process	-----	₱ 200.00	₱ 50.00	
c.3 Underage Parents (RA 9858)	-----	₱ 100.00	₱ 50.00	
d. Adoption	-----	₱ 450.00	₱ 50.00	
e. Naturalization	-----	₱ 500.00	₱ 50.00	
f. Voluntary emancipation of Minor Children	-----	₱ 100.00	₱ 50.00	
g. Court decision Recognizing or acknowledging Natural Children or impugning or denying such Recognition	-----	₱ 250.00	₱ 50.00	
h. Judicial determination of Paternity Affiliation	-----	₱ 250.00	₱ 50.00	
i. Court Decision or order on the custody of Minors and Guardian	-----	₱ 250.00	₱ 50.00	
j. Court decision on the correction of entry	-----	₱ 250.00	₱ 50.00	
k. Repatriation or voluntary, Renunciation of Citizenship	-----	₱ 250.00	₱ 50.00	
l. Civil Interdiction	-----	₱ 250.00	₱ 50.00	
m. Declaration of presumptive death of the absent spouse; judicial Declaration of absence	-----	₱ 250.00	₱ 50.00	
n. Compulsory recognition of child, voluntary recognition of illegitimate child	-----	₱ 250.00	₱ 50.00	
o. Appointment of guardian, termination of guardianship	-----	₱ 250.00	₱ 50.00	
p. Judicial determination of filiations	-----	₱ 250.00	₱ 50.00	
q. Naturalization certificate; cancellation of naturalization certificate	-----	₱ 250.00	P 50.00	
r. Emancipation of minor orphan	-----	₱ 250.00	P 50.00	
s. Acquisition and ratification of artificial insemination	-----	₱ 250.00	P 50.00	
t. Authorization and ratification to contract of marriage	-----	₱ 100.00	P 50.00	
u. Option to elect Philippine citizenship	-----	₱ 250.00	P 50.00	

B. Marriage Related Fees:

1. Service Fees		Fee/Charge	Computer Cost	Doc. Stamps
a. Transcript of Marriage Certificate	-----	₱ 50.00	₱ 50.00	₱ 30.00
b. Supplemental Report	-----	₱ 100.00	₱ 50.00	none

2. Application for marriage:		Fee/Charge	Computer Cost
a. Both are residents	-----	₱ 50.00	₱ 50.00
b. One is resident	-----	₱ 100.00	₱ 50.00
c. One is foreigner	-----	₱1,000.00	₱ 50.00
3. Marriage License:			
a. Both are residents	-----	₱ 50.00	₱ 50.00
b. One is resident	-----	₱ 150.00	₱ 50.00
c. One is foreigner	-----	₱ 1,000.00	₱ 50.00
4. Solemnization			
4.1 With Marriage License:			
a. Both are residents	-----	₱ 300.00	₱ 50.00
b. One is resident	-----	₱ 450.00	₱ 50.00
c. One is foreigner	-----	₱ 2,500.00	₱ 50.00
d. Both are foreigner	-----	₱ 3,000.00	₱ 50.00
e. Non-resident (Filipino)	-----	₱ 5,000.00	₱ 50.00
4.2 Under Article 34:			
a. Both are residents	-----	₱ 950.00	₱ 50.00
b. One is resident	-----	₱ 2,450.00	₱ 50.00
c. One is foreigner	-----	₱ 3,500.00	₱ 50.00
d. Both are foreigner	-----	₱ 5,000.00	₱ 50.00
e. Non-resident	-----	₱ 8,000.00	₱ 50.00
5. Oath Fee for Parental Consent/Advice	-----	₱ 50.00	₱ 50.00
6. Penalty for delayed registration	-----	₱ 100.00	₱ 50.00
7. Registrable documents and legal documents			
a. Legal separation and divorce, Annulment of Marriage, declaration of absolute nullity of marriage	-----	₱ 450.00	₱ 50.00
b. Court order setting aside the decree of legal separation, Judicial determination of the fact of appearance of absent Spouse, if disputed	-----	₱ 250.00	₱ 50.00
c. Separation or revival of property rights Partition and distribution of properties of spouses; child's presumptive legitimacy	-----	₱ 250.00	₱ 50.00
d. Marriage settlement and any modification thereof	-----	₱ 250.00	₱ 50.00
e. Waiver of rights, interests on absolute community property	-----	₱ 250.00	₱ 50.00

C. Death Related Fees:

1. Service Fees	Fee/Charge	Computer Cost	Doc. Stamps
a. Transcript of Death Certificate	----- ₱ 50.00	₱ 50.00	₱ 30.00
b. Supplemental Report	----- ₱ 100.00	₱ 50.00	none
2. Penalty for delayed registration	----- ₱ 100.00	₱ 50.00	none
3. Annotation of presumptive death based on court order	----- ₱ 250.00	₱ 50.00	none

D. Other Civil Registry Service Fees:

	Fee/Charge	Computer Cost	Doc. Stamps
1. Certified true copy of Civil Registry documents	----- ₱50.00	none	none
2. Certificate of no record of Birth/Marriage/death	----- ₱50.00	₱ 50.00	₱ 30.00
3. Verification/certification of Civil Registry records	----- ₱50.00	₱ 50.00	₱ 30.00
4. Batch Request System Service Fee for security paper on:			
4.1 Birth/Marriage/Death	----- ₱ 50.00	₱ 50.00	none
4.2 Certificate of Marriage/No Marriage	----- ₱ 100.00	₱ 50.00	none
5. Filing fee for correction of Clerical Error (RA 9048)	----- ₱ 1,000.00	none	none

6. Filing fee for Change of First Name (RA 9048)	-----	₱3,000.00	none	none
7. Filing fee for Change of Gender or birth date (RA 10172)	-----	₱3,000.00	none	none
8. Service Fee for Migrant Petition				
8.1 Clerical Error (RA 9048)	-----	₱ 500.00	none	none
8.2 First Name (RA 9048)	-----	₱1,000.00	none	none
8.3 Gender/Birth date (RA 10172)	-----	₱1,000.00	none	none
9. Certificate of finality of approved petition	-----	₱ 50.00	₱ 50.00	none
10. Piece meal electronic endorsement of Civil Registry Documents for advance authentication	-----	₱ 50.00	₱ 50.00	none
11. Municipal Forms, set of 4	-----	₱ 20.00	none	none
Form 102 (Certificate of Live Birth)				
Form 103 (Certificate of Death)				
Form 97 (Certificate of Marriage)				
12. Other court decisions affecting correction or annotation on Civil Registry documents	-----	₱ 250.00	₱ 50.00	none

Section 172. Exemption. The fees imposed in this Article shall not be collected in the following cases:

- A. Issuance of certified copies of documents for official use at the request of a competent court or other government agency.
- B. Issuance of birth certificates of children reaching school age when such certificates are required for admission to the primary grades in a public or private school.
- C. Burial permit of a pauper, per recommendation of the Municipal Mayor.
- D. Issuance of civil registry certificates for indigent client and other services as covered under the Municipal Indigency Program.

Section 173. Time of Payment. The fee imposed herein shall be paid to the Municipal Treasurer before the registration of a document or issuance of license or certified copy of a local registry records or documents.

Section 174. Administrative Provisions.

- 1. All applicants for marriage license shall secure a certification from the Family Planning Coordinating Council of this municipality, thru its duly authorized representative, stating that they are informed and aware of the importance of family planning and have undergone a family planning counseling or seminar.
- 2. With the exception of marriage “*articulo mortis*” no marriage license shall be issued by the Local Civil Registrar unless the applicant could present the required “certification” mentioned above.

Chapter XI
Article I

Sanitary Inspection Fee.

Section 175. Imposition of Fees. There shall be collected from operations of every business establishment in this municipality an annual sanitary inspection fee prescribed hereunder:

- a) On establishment engaged in the *manufacture* of foods and essential commodities ----- ₱ 200.00

b) On establishment rendering or offering to render services	-----	₱ 200.00
c) On banks and financial institutions	-----	₱ 500.00
d) On retailers	-----	₱ 150.00
e) On all other establishments whose operations Require a Mayor's Permit	-----	₱ 150.00

Section 176. Time of Payment. The fee imposed in this Article shall be paid to the Municipal Treasurer after a sanitary inspection of the establishment has been made but prior to the issuance of the sanitary inspection certificate by the Municipal Health Officer and upon renewal of the same every year thereafter within the last day of February.

Section 177. Administrative Provisions.

- 1) The Sanitary Inspection Officer or his duly authorized representative shall conduct an annual sanitary inspection of all business establishment and buildings to determine their adequacy of ventilation, general sanitary conditions and propriety for habitation.
- 2) The Sanitary Inspection Officer shall require evidence of payment of the imposed herein before he issues a sanitary inspection certificate.

Section 178. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000) but not more than Two Thousand Five Hundred Pesos (₱2,500) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article II.
Service Fees for Health Examination.

Section 179. Imposition of Fee. There will be collected in accordance to the following rates for Certification and Clinical Services undertaken by the Municipal Health Office, viz:

I. Certificates.

1. Medical Certificates used as evidence in Court Litigation Including Medico-Legal Certificate	-----	₱ 350.00
2. Subsequent issuance of the initial Medical Certificate	-----	₱ 80.00
3. Certification for school examination, test & similar service	-----	₱ 30.00
4. Medical, Physical or Health Examination certificate for school children in connection with athletic meets, boy/girl scout jamboree & other school related activities	-----	₱ 30.00
5. For private or government employment, any license pre-requisites Sick leave re-instatement	-----	₱ 180.00
6. Any claims or insurance related pre-requisites	-----	₱ 280.00
7. Medical Certificate absent from class	-----	₱ 100.00
8. Certification of Immunization records (for abroad and local)		
a. abroad	-----	₱ 250.00
b. local	-----	₱ 150.00
9. Certified true copy per page	-----	₱ 50.00
10. Processing Fee	-----	₱ 50.00

II. Services.

1. Dressing/Injection and other related activities	-----	₱ 100.00
2. Foreign Body Removal (Nose)	-----	₱ 50.00
3. Foreign Body Removal (Mascular Layer)	-----	₱ 150.00
4. Suturing of Wounds (excluding chromic sutures)	-----	₱ 150.00
5. Suturing of Wounds using chromic sutures	-----	₱ 250.00
6. Incision and Drainage	-----	₱ 200.00
7. Circumcision	-----	₱ 250.00
8. Cyst Excision and other Minor surgical procedures	-----	₱ 250.00
9. Nebulization with salbutamol	-----	₱ 100.00

10. Plain Nebulization	-----	P	50.00
11. Embalming	-----	P	150.00
12. Postmortem exam/autopsy	-----	P	750.00

III. Laboratory.

1. Sputum Exam as prerequisite for employment and Licensing	-----	P	100.00
2. Bleeding Time / Clotting Time	-----	P	100.00
3. hemoglobin/Hematocrit	-----	P	100.00
4. Urinalysis/Fecalysis	-----	P	18.00
5. Blood typing	-----	P	100.00
6. Pregnancy test	-----	P	100.00
7. Random Blood Sugar	-----	P	175.00
8. Complete Blood Count (Including Platelet Count)	-----	P	175.00
9. Fasting blood sugar (with chemical analysis)	-----	P	200.00
10. Lipid Profile	-----	P	800.00
11. Dengue Dou Test (IgM/IgG)	-----	P	850.00
12. NS1 (dengue Ag test)	-----	P	650.00
13. HBsAg (Hepatitis B Surface antigen) screening for all pregnant	-----	P	500.00
14. HBA1C (glucose test)	-----	P	500.00
15. Creatinine	-----	P	175.00
16. Total Cholesterol	-----	P	150.00
17. ALT (Alanine Aminotransferase) Liver function test	-----	P	300.00
18. AST (Aspartate Aminotransferase) Liver test	-----	P	300.00
19. Acetic Acid Wash	-----	P	150.00
20. Cervical / Urethral Pap Smear	-----	P	250.00
21. Ultrasound	-----	P	500.00
22. X-Ray	-----	P	250.00

IV. BEMONC.

1. Maternal and Newborn Care (Without philhealth both mother and baby)	-----	P	3,600.00
2. Maternal Care (mother only)	-----	P	1,800.00
3. Newborn Care (for non-facility delivery baby)	-----	P	1,000.00
4. Newborn Screening	-----	P	1,800.00
5. Hearing Test	-----	P	300.00

V. DENTAL.

1. Tooth Extraction (per tooth)	-----	P	200.00
2. Tooth Filling permanent (per tooth)	-----	P	300.00
3. Tooth Filling temporary (per tooth)	-----	P	150.00
4. Tooth cleaning	-----	P	500.00
5. Gum Incision	-----	P	300.00
6. Operculectomy	-----	P	300.00

VI. RENTAL OF PROPERTIES. Room and Facility Service Rates.

1. Rental of rescue vehicle (including fuel) Non 4 Ps and non Dalaguetnons	-----	P	2,000.00
2. Additional waiting charge due personal reason per hour	-----	P	200.00

VII. ROOM ACCOMODATION.

1. Non-Aircon (per day)	-----	P	250.00
2. Airconditioned (per day)	-----	P	500.00

VIII. RE-ISSUANCE.

1. Re-issuance of lost health card (vending of food, beverages and other forms of foods & drinks and other company requirements	-----	P	125.00
2. Re-issuance of sanitary permit	-----	P	125.00

Section 180. Time of Payment. The fee shall be paid to the Municipal Treasurer before the physical examination is made and the medical certificate is issued.

Section 181. Administrative Provisions.

(a) Individuals engaged in an occupation or working in the following establishments, are hereby required to undergo physical and medical examination before they can be employed and once every six months (6) thereafter.

- 1. Food establishments - establishments where food or drinks are manufactured, processed, stored, sold or served.
- 2. Public swimming or bathing places.
- 3. Dance schools, dance halls and night clubs - include dance instructors, hostess, cooks, bartenders, waitresses, etc.
- 4. Tonsorial and beauty establishments - include employees of barber shops, beauty parlors, hairdressing and manicuring establishments, exercise gyms and figure slenderizing saloons, facial centers, aromatherapy establishments, etc.
- 5. Massage clinics and sauna bath establishments - include masseurs, massage clinic/sauna bath attendants, etc.
- 6. Hotel, motels and apartments, lodging, boarding, or tenement houses, and condominiums.

(b) Owners, managers or operators of the establishments shall see to it that their employees who are required to undergo physical and medical examinations have been issued the necessary medical certificates.

(c) The Municipal Health Officer shall keep a record of physical and other health examinations conducted, and the copies of medical certificates issued indicating the name of the applicant, the date and the purpose for which the examination was made.

Section 182. Penalty. A fine of Five Hundred Pesos (₱500.00) shall be paid by the owner, manager or operators of the establishment for each employee found to be without the necessary medical certificates.

Article III.
Service Fee for Garbage Collection.

Section 183. Imposition of Fees. There is hereby imposed a garbage collection fee on all business establishments in this Municipality based on the classification and line of business, frequency of collection, volume of garbage generated and the type of waste collected. Using the following computation and assessment of garbage fees as follows:

A. Garbage Fees (Annual) – Payment is based on the following computation.

Legend:

- 1. K = Garbage collected by LGU, if yes value is 1.
 - if no, value is zero (0)
 - Minimum Fee of ₱500.00
- 2. C= Classification of Business
 - Small ----- ₱2.00
 - Medium ----- ₱10.00
 - Large ----- ₱25.00
- 3. F= Frequency of Garbage Collection
 - Low -1
 - Medium – 2
 - High - 3

4. V=Volume of Garbage Collection

- Low -1
- Medium – 2
- High – 3

5. WT= Waste Type

- Solid Waste (SW) – 0.50
- Industrial Waste (IW) – 1.00
- Agri - Waste (AW) – 1.10
- Hazardous Waste (HW) – 1.20

B. Formula Used in Arriving the Garbage Fee Assessment:

GARBAGE FEE = C x K (F+V) x WT x 360 days

Classification of Business		Frequency & Volume of Garbage Generated			Waste Type	
(C)		(F)		(V)	(WT)	
Small	2.00	Low	1	1	Solid Waste (SW)	0.50
Medium	10.00	Medium	2	2	Industrial Waste (IW)	1.00
Large	25.00	High	3	3	Agri Waste (AW)	1.10
					Hazardous Waste (HW)	1.20
K=Collected valued at 1						
WT=SW x IW x AW x HW						
Formula: Garbage Fee = C x K(F+V) x WT x 360 days						
Note: Minimum Garbage fee is ₱ 500.00						

Section 184. Exemption. Establishment that are disposing of their garbage or waste matters properly or maintaining an appropriate system of garbage disposal and having no garbage or waste matters to be collected shall be exempted from the provision of this Article.

Section 185. Time of Payment. The fee imposed in this article shall be paid to the Municipal Treasurer either monthly or annually. If the option selected is monthly it shall be paid on or before the tenth (10th) day of every month. If annually, it shall be paid in advance within last day of February of every year.

Section 186. Surcharge for Late Payment. Failure to pay the fee prescribed in this Article within the time required shall subject the taxpayer to a surcharge of ten percent (10%) of the original amount of fees due, such surcharge to be paid at the same time in the same manner as the fee due.

Section 187. Administrative Provisions.

- a) The owner or operator of any business establishment shall provide within his premises a garbage can or a receptacle duly prescribed which shall be placed in front of the establishment before the time of the garbage collection.
- b) The Municipal Health Officer shall issue the necessary rules and regulations for garbage collection and shall inspect each month the business establishment to find out whether garbage is properly disposed of within the premises.
- c) The Municipal Health Officer shall issue the necessary rules and regulations for the proper implementation of this Article which shall be enforceable until modified, rescinded or revoked by the Municipal Mayor or other higher authorities.

Section 188. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand (₱1,000.00) Pesos but not more than Two Thousand Five Hundred (₱2,500.00) Pesos or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Chapter XII
Municipal Charges.

Article I
Fishery Rentals, Fees and Charges.

Section 189. Registration of Fish Aggregating Device (FAD) or Payao and Prescribed Rate.

a) Registration of FADs or locally known as “Payao”.

- Owners/operators of Payao must inform MANRO the scheduled time of harvest;
- Only Dalaguete resident fisherfolk, association, cooperative, partnership or corporations are eligible to establish a FAD.
- A registration number shall be provided after registration which shall be clearly marked at the Payao.
- Registration of FADs shall be at the time of its establishment and renewable annually.

Fine:

- | | | |
|-------------------|---|---|
| 1. First offense | - | ₱1,000.00 per banyera or cooler |
| 2. Second Offense | - | ₱2,000.00 per banyera or cooler |
| 3. Third Offense | - | confiscation of paraphernalia and revocation of permits |

Section 190. FISH CATCH. - All fish catch must be docked and sold in the Municipality of Dalaguete, Cebu.

Fine:

- | | | |
|----------------------------------|---|--|
| 1. First offense | - | ₱1,000.00 per banyera or cooler |
| 2. Second Offense | - | ₱2,000.00 per banyera or cooler |
| 3. Third Offense | - | impoundment of vessel and gears
and revocation of permits |
| 4. Less than 1 banyera or cooler | - | ₱500.00 |

Section 191. Rate of Registration and accreditation.

- A. Fees Structure for Registration and Accreditation.** The Municipality of Dalaguete shall exact payment of registration and accreditation fees to cover administrative cost which amount will accrue automatically to the municipality. Payment at a rate stated hereunder shall be paid to the Municipal Treasurer subject to assessment of MANRO.

I. Registration Fees.

- | | | |
|---|-------|-------------------|
| 1. Fishing vessel 3GT and below and Fishing Gears | ----- | ₱ 400.00 annually |
| a. Renewal fee | ----- | ₱ 200.00 |
| b. Penalty per month of delay in renewal or
a fraction thereof | ----- | ₱ 100.00 |
| 2. Registration fee per Payao | ----- | ₱ 100.00 |
| a. Per Banyera harvest of “Payao” | ----- | ₱ 100.00 |

II. Accreditation Fees.

- | | | |
|--|-------|-------------|
| 1. Accreditation fee for fishing vessels 3 tons up
and its gears used | ----- | ₱ 10,000.00 |
| a. Renewal fee | ----- | ₱ 5,000.00 |
| b. Penalty per month of delay in renewal or
a fraction thereof | ----- | ₱ 1,000.00 |

2. **Accreditation requirements.**

- A. MARINA registered
- B. Must be a resident from Dalaguete
- C. Brgy. Certification of residency

III. **Penalty.**

- a. P1,000.00 per month of delay in accreditation or a fraction thereof.

Section 192. Allowable distance and fishing gear/s used.

Prohibitions: Fisherfolk conducting fishing activities at the reduced distance of 7.1 km from the shoreline shall use a registered fishing gear with mesh size of at least 3 cm. and with a prescribe length of 250 meters length and 70 meters depth only.

FADs situated below 7.1 km are exclusively for line fishing only; Commercial fishers are not allowed to catch fish within this area.

Fine:

- 1. A fine of ₱ 2,500.00 Pesos per linear meter on the fishing gears in excess of the allowable length and depth as provided in this Section.
- 2. A fine of ₱ 2,500.00 Pesos per linear meter for mesh size violation in excess of the allowable length and depth as provided in this Section.

Article II.
Rentals on Municipal Owned Buildings and Lot

Section 193. Imposition. The rates of rental fees for the use of real and personal properties of this municipality shall be collected:

- 1) Buildings and facilities.
 - A. University of the Visayas (binded with a Contract of Lease)
 - B. Rental for the use of Dalaguete Farmer’s & Fisherman Training Center (DFFTC) maximum capacity of 60 persons, tables and chairs provided. (with or without electronic equipment)

1. **Private:**

Aircon for a maximum of 8 hours	-----	₱	5,000.00
In excess of maximum hours	-----	₱	500/hour
In excess of Maximum capacity	-----	₱	50.00 per head
Non-aircon (with electric fan) for a maximum of 8 hours	-----	₱	3,000.00
In excess of maximum hours	-----	₱	350.00/hour
In excess of maximum capacity	-----	₱	30.00/person
Additional charges for equipment: (maximum of 8 hours use)			
Sound System	-----	₱	800.00
55 inches Flat Screen TV	-----	₱	500.00
LCD Project	-----	₱	300.00

2. **Government Agencies & NGO’S:**

Aircon for a maximum of 8 hours	-----	₱	4,000.00
In excess of maximum hours	-----	₱	400.00
Non-aircon (with electric fan) for a maximum of 8 hours)	-----	₱	2,400.00
In excess of maximum hours	-----	₱	280.00/hour
Additional charges for equipment: (Maximum of 8 hours use)			
Sound system	-----	₱	500.00
55’ inches Flat screen TV	-----	₱	300.00

LCD Projector ----- ₱ 200.00

***For official partner NGA'S and NGO'S (Free of charge to be requested by the concern department, to be endorsed by MANRO)**

C. ROOM ACCOMMODATION (PER HEAD /NIGHT).

1. PRIVATE:

- Aircon Rm. Bed spacer
(Check-in time: 1:00 PM-Check out time 12:00 NN) ----- P 300.00/person
- Aircon Single Room
(Check-in time 1:00 PM-Check out time 12:00 NN)
Good for 2 persons ----- P1,200.00
Extra person ----- P300.00 per head

Note:

1. Less 20% discount for Senior Citizens and PWD
2. Free of Charge for children of ages 12 years and below.

2. GOVERNMENT AGENCIES & NGO'S:

- Aircon Bed spacer:
(Check in time: 1:00 PM Check out time 12:00 NN) ----- P 300.00 per person
- Aircon Single Room:
Good for 2 persons ----- P1,200.00
Extra person ----- P300.00 per head
- Non-aircon (with electric fan) Bed spacer
Check in time: 1:00Pm, Checkout time 12:00 NN ----- P200.00 person
- Non aircon Single Room
(Check in time: 1:00 PM, Check out time 12:00 NN)
Good for 2 persons ----- P800.00
Extra person ----- P200.00 per head

❖ FOR OFFICIAL, PARTNER NGA'S AND NGO'S: FREE OF CHARGE TO BE REQUESTED BY THE CONCERN DEPARTMENT AND ENDORSED BY MANRO.

D. REFRIGERATED VAN RENTAL.

- Round trip within Cebu City (Maximum of 8 hours & within 85 kms.) = ₱ 7,000.00
Plus ₱100.00 per excess kilometer
Plus ₱200.00 per excess hour
- Round trip (maximum of 8 hours and below 85 kms) ----- ₱ 5,000.00
Plus ₱100.00 per excess hour
- Round trip within Dalaguete (Maximum of 8 hours) ----- ₱ 3,000.00

E. VERMI-CAST (Soil Conditioner).

Private person/group ----- ₱ 400.00/Bag at 40 kilos
Government individuals/group & PO's ----- ₱ 350.00/Bag at 40 kilos

F. BRICKS.

Thickness =2 inches, W=2 inches and L=4 inches ----- ₱ 15.00 per piece

I. Rental for the use of Dalaguete Sports Complex and San Isidro Cultural Complex.

I. Court, Bleachers, Stage, Dressing Rooms, Lighting & CR.

The rental rates are classified according to the nature of the organization, group or individual, intended to be sponsors/lessors, the activities to be conducted and the number of hours consumed. (value = x 150%)

No. of Hours	Package A		Package B		Package C	
	Day Time	Night Time	Day Time	Night Time	Day Time	Night Time
4	₱ 660.00	₱ 1,760.00	₱ 2,200.00	₱ 3,190.00	₱ 4,290.00	₱ 5,390.00
5	₱ 825.00	₱ 2,200.00	₱ 2,530.00	₱ 3,850.00	₱ 5,280.00	₱ 6,490.00
6	₱ 990.00	₱ 2,640.00	₱ 2,970.00	₱ 4,400.00	₱ 6,160.00	₱ 7,700.00

II. Basketball Court.

The hourly rate for the use of the basketball court excluding wall fans and night time fee for the use of basketball court plus overhead mercury lighting excluding wall fans.

No. of Hours	Day Time	Night Time
1	₱66.00	₱ 275.00
2	₱132.00	₱ 550.00
3	₱220.00	₱ 770.00
4	₱275.00	₱ 1,100.00

Section 194. Definition of terms.

- Package-A (Public Activities)** - refers to activities conducted by agencies, or instrumentalities of the government including government owned and controlled corporations performing public or proprietary functions.
- Package-B (Private Non-profit Activities)**-includes activities initiated by religious sector, non-profit organizations, or private individuals, the purpose of which is not profit earning.
- Package-C (Commercial Purpose)**- activities that have for its purpose, income generating or fund-raising activities including but not limited to advertisements, promotions, recruitment and the like.
- Facilities**-refers to installations or contrivances within the Dalaguete Sports Complex which facilitates the activities therein such as the gym court and bleachers, stage, dressing room, comfort room, wall fan, overhead lights, and air-conditioning units.
- Utilities**-refers to services provided such as electricity, water, and janitorial services.

I. TARIFFS FOR THE USE OF SPORTS COMPLEX AND ITS FACILITIES.

- A. **Electrical Power Supply** (Mobile Disco). For the use of electricity in cases of Mobile Disco.

ELECTRICAL POWER SUPPLY

	4 HOURS	5 HOURS	6 HOURS	7 HOURS	8 HOURS
Mobile Sound System, 2000W below	160.00	200.00	240.00	280.00	320.00
Disco lights, 40 bulbs below	160.00	200.00	240.00	280.00	320.00
Total =	320.00	400.00	480.00	560.00	640.00

Mobile Sound System, 2000W-5000W	400.00	500.00	600.00	700.00	800.00
Disco lights, 40 - 80 bulbs	400.00	500.00	600.00	700.00	800.00
Total =	800.00	1,000.00	1,200.00	1,400.00	1,600.00

Mobile Sound System, 5001W above	640.00	800.00	960.00	1,120.00	1,280.00
Disco lights, 80 bulbs above	640.00	800.00	960.00	1,120.00	1,280.00
Total =	1,280.00	1,600.00	1,920.00	2,240.00	2,560.00

Special Spot lights, 1 - 3 bulbs	240.00	300.00	360.00	420.00	480.00
Special Spot lights, 4 - 8 bulbs	400.00	500.00	600.00	700.00	800.00
Special Spot lights, 9 bulbs & above	720.00	900.00	1,080.00	1,260.00	1,340.00

B. **Electrical Power Supply** (Lightings and Ceiling Fan). For the use of electricity for usage of the Sports Complex.

	4 HOURS	5 HOURS	6 HOURS	7 HOURS	8 HOURS
Sports Complex Lightings	720.00	900.00	1,080.00	1,260.00	1,340.00
2 Ceiling Fans & Wall Fans	280.00	350.00	420.00	490.00	560.00
Total =	1,000.00	1,250.00	1,500.00	1,650.00	1,900.00

C. **For Commercial Use Per Square Meter Per Day** - There is hereby collected from the intended lessors a fee of **₱30.00** pesos for every square meter use for vending activities outside the Sport Complex but within its perimeter, excluding electrical use.

D. **Rental For Use of Dalaguete Sports Complex:**

		Daytime	Night time
Benefit Show per day	-----	₱ 2,250.00	₱ 4,500.00

1. Circus, Disco, Boxing, drama, and other income generating activities or fund-raising activities:

With additional fees for:

a) lights	-----	₱	3,500.00
b) sound system	-----	₱	2,250.00
c) lights and sound system	-----	₱	5,250.00
d) derby per day	-----	₱	22,500.00

E. **Guidelines and Policies:**

1. Allow the use of facility (daytime) maximum of four (4) for blocking and rehearsal purposes prior to the scheduled date as approved by the **SICC/Dalaguete Sport and Cultural Complex Administrator**.
2. Crowd control inside the **SICC/Dalaguete Sports and Cultural Complex** as well as the entrance lobby shall be the sole responsibility of the sponsor/lessor.
3. Maximum sitting capacity of the gym is 1,200 in the upper box and 480 in the lower box. Should the hardcourt be utilized the sponsoring entity shall provide for the additional requirements.
4. Designation of entrance/exit shall be the prerogative of the sponsoring entity for regulatory and securing purposes.
5. At all times. The Building Administrator, the building maintenance crew and their representative/s shall be allowed to enter within the premises to monitor of/or supervise the use of the facilities.

F. **Discount Grants:**

Local Government Units (LGUs), other government agencies and other entities organized solely for religious, charitable, and educational purposes, the activity of which is exclusively for the purpose they are organized, may at the discretion of the Local Chief Executive upon recommendation by the Sangguniang Bayan, be granted discounted rates for every use of the Dalaguete Sports Complex.

G. **Rental of tables, chairs and tent per occasion (maximum of 9 days for mourning):**

Tent	-----	₱ 3,000.00	big
	-----	₱ 2,000.00	small
Tables (mono block)	-----	₱ 50.00	big
	-----	₱ 30.00	small
Chairs	-----	₱ 10.00	

H. Rental of commercial tables and tent per day (for market days and special undertakings):

Tent	-----	₱ 3,000.00	big
	-----	₱ 1,800.00	small
Commercial table	-----	₱ 50.00	per market day within market area
	-----	₱ 80.00	for special occasion per day

Section 195. Time of Payment. The fees imposed herein shall be paid to the Municipal Treasurer or his duly authorized representative, before the use or occupancy of the property.

Article III
Charges for Parking

Section 196. Imposition of fees. There shall be collected for the use of any municipal-owned parking area, the following parking fees, for every hour or fraction thereof.

		Parking Fee
a) Tourist Buses	-----	₱ 100.00
b) Jeepney/AUV/Vans/Coaster/Cars	-----	₱ 80.00
c) Cargo Trucks	-----	₱ 100.00
d) Motorcycle private	-----	P 50.00
e) Tricycle used as private	-----	P 60.00

Section 197. Time of Payment. The fee imposed herein shall be paid to the Municipal Treasurer or to his authorized representative upon parking thereon.

Section 198. Surcharges of late payment. Failure to pay the fee prescribed in this Article within the time required shall subject the taxpayer to a surcharge of ten percent (10%) of the original amount due, such surcharge to be paid at the same time and in the same manner as the fee due.

Section 199. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Article IV
Cemetery Charges

Section 200. Imposition of Fees: There shall be collected the following rental fees for the use of the Public Cemetery owned by the Municipality of the Dalaguete.

1. Fee for Lease Period:

- a. Cadaver Niche/Apartment Type ----- ₱ 5,000.00 per unit/5 years
- b. Bone chamber fee ----- ₱ 2,000.00 bone chamber fee
- c. Common Bone Depository; Failure to transfer the bone after the expiration of the 5 years lease period, the bones shall be transferred to the common bone chamber by the caretaker and the claimant shall pay ₱ 300.00 per month of delay to transfer to the designated bone chamber.
- d. Paupers Burial ----- ₱1,500 per unit for 5 years.

Section 201. Time of payment. The fee shall be paid to the Municipal Treasurer upon application for burial permit prior to the construction thereon of any structure whether permanent

or temporary or to the interment of the deceased. Thereafter, the fee shall be paid twenty (20) days before the expiration of the lease period.

Section 202. Administrative Provisions.

- a) **Permit to Construct.** Any construction of whatever kind or nature in the public cemetery, whether temporary or perpetual use shall only be allowed upon issuance of the corresponding permit by the Municipal Mayor, upon recommendation of the Municipal Health Officer.
- b) **Renewal of Lease.** In case a lessee intends to renew the lease after its termination, he must inform the Municipal Health Officer within thirty (30) days before the expiration date of the lease, and shall pay the corresponding rental fees therefore.

It shall also be the duty of the Municipal Health Officer to prepare and submit to the Municipal Mayor a list of the leases that are to expire fifteen (15) days prior to the expiration date. The Municipal Health Officer shall send a reminder to the lessee of the expiration of his lease, two weeks prior to the expiration date of the lease.

- c) **Register.** The Municipal Health Officer shall keep a register on lease of the cemetery, together with such additional information as may be required by the Sangguniang Bayan.

Section 203. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand (P1,000.00) Pesos but not more than Two Thousand Five Hundred (P2,500.00) Pesos or imprisonment of not less than One (1) Month but not more than Six (6) Months, or both such fine and imprisonment, at the discretion of the Court.

Article V.
Market Fees and Charges

Section 204. Definitions of Terms. When used in this Article, the term:

- A. **Public Market** - refers to any place, building or structure of any kind, designated as such by the Sangguniang Bayan.
- B. **Market Premises** - refer to any space in the market compound, part of the market lot consisting of bare ground, not covered by market building, usually occupied by transient vendors especially during, market day.
- C. **Market Stall** – refers to any allotted space or booth on the public market where merchandise of any kind is sold or offered for sale.
- D. **Market Section** – refers to a subdivision of the market, housing one class or group of allied goods, commodities, or merchandise.

The numbering, designation, classification or other form of identifying market sections shall be the responsibility of the Office of the Mayor thru the Market Superintendent, Market Master, Market Administrator or whoever is the Officer in-charge thereof.

Section 205. Imposition of Fees. There shall be collected the following fees:

A. Rental Fee on Market Stall, per square meter, per day.

(1) *On stall with booth constructed by the Municipal Government per square meter: (refer to new contract of lease)*

B. Market Entrance Fee.

1. Fresh fish or seafoods.

First class	_____	P	30.00	per cooler
Second Class	_____	P	10.00	per cooler

Other kinds of fish not categorized above	-----	₱ 10.00	per cooler
2. Shellfish			
First Class	-----	₱ 20.00	per sack
Second Class	-----	₱ 10.00	per sack
3. Any kind of Seaweeds	-----	₱ 10.00	per sack
4. Smoked Fish	-----	₱ 1.00	per kilogram
5. Dried or Salted Fish	-----	₱ 1.00	per kilogram
6. Fruits and Vegetables: (ten percent (10%) of gross sales or one percent (1%) in every kilo whichever is higher)			
a. Banana	-----	₱ 2.00	per kilogram
b. Mango	-----	₱ 10.00	per kaing, big
c. Mango	-----	₱ 10.00	per kaing, small
d. Mango	-----	₱ 5.00	per sack
e. Orange	-----	₱ 1.00	per kilo
f. Grapes	-----	₱ 1.00	per kilo
g. Peanut	-----	₱ 10.00	per sack
h. Garlic	-----	₱ 1.00	per kilo
i. Onion	-----	₱ 1.00	per kilo
j. Spring Onion	-----	₱ 1.00	per kilo
k. Corn	-----	₱ 10.00	per sack, fresh
l. Rice	-----	₱ 10.00	per sack
m. Pineapple, watermelon & melon	-----	₱ 10.00	per piece
n. Sweet Potato	-----	₱ 10.00	per sack
o. Cassava	-----	₱ 5.00	per sack
p. Ampalaya	-----	₱ 5.00	per sack
q. Cabbage	-----	₱ 1.00	per kilo
r. Chinese Cabbage	-----	₱ 1.00	per kilo
s. Chayote	-----	₱ 1.00	per piece
t. Broccoli	-----	₱ 1.00	per kilo
u. Eggplant	-----	₱ 1.00	per kilo
v. Carrot	-----	₱ 1.00	per kilo
w. Other Fruits and Vegetables, and the like	-----	₱ 1.00	per kilo

7. Miscellaneous Commodities

- | | | |
|---|-------|---------|
| 1) For every sack of rice | ----- | ₱ 10.00 |
| 2) For every sack of coffee, soybeans
Peanuts, <i>balatong</i> , <i>kibal</i> , and the like | ----- | ₱ 10.00 |
| 3) For every sack of salt | ----- | ₱ 5.00 |
| 4) For every sack of rice bran (<i>ipa</i>), <i>Trigo</i> , <i>palay</i> , and the like | ----- | ₱ 10.00 |
| 5) For every kilo of brown sugar | ----- | ₱ 1.00 |
| 6) For every head of chicken, duck, goose, turkey, and the like | ----- | ₱ 10.00 |
| 7) For every head of fighting cock | ----- | ₱ 20.00 |
| 8) For every piece of sawali (2m. x 4m.) | ----- | ₱ 5.00 |
| 9) For every jeepload of pots and jars | ----- | ₱ 20.00 |
| 10) For every one hundred (100) eggs of Chicken or duck | ----- | ₱ 20.00 |
| 11) For all other similar items not specified above, the fee shall be equivalent to two percent (2%) of its selling or prevailing market price. | | |

For purposes of this Section, the Officer-in-Charge of the market administration shall issue the necessary rules and regulations including the classification of fishes and other seafoods. Such rules and regulations issued by him shall be in force and effect unless rescinded, modified or revoked by the Municipal Mayor or the Sangguniang Bayan.

Section 206. Time and Manner of Payment.

- a) **For stalls.** The fee for the rental of market stalls shall be paid to the Municipal Treasurer or his duly authorized representative within the first twenty (20) days of each month. In case of a new lease, the rental due for the month in which the lease starts, shall be paid before the occupancy of the stall.
- b) **For occupancy of market premises.** The fee for the occupancy of market premises shall be paid daily, in advance, before any commodity or merchandise is sold within the market premises.
- c) **For market entrance fee.** The fee shall be collected at the gate of public market before the transient vendors are allowed to sell their goods.

Section 207. Issuance of official receipt and cash tickets.

The Municipal Treasurer or his duly authorized representative shall issue an official receipt as evidence of payment of rentals of fixed stalls.

A cash ticket shall be issued to an occupant of the market premises or transient vendor and his name shall be written on the back thereof. The cash ticket shall pertain only to the person buying the same and shall be good only for the space of the market premises to which he is assigned. If a vendor disposes of his merchandise by wholesale to another vendor, the later shall purchase new tickets if he sells the same merchandise, even if such sale is done in the same place occupied by the previous vendor.

The cash tickets issued shall be torn in half, one half to be given to the space occupant or vendor and the other half to be retained by the market collector who shall deliver the same to the Municipal Treasurer for counter-checking against his record of cash tickets issued by him for that day.

Section 208. Surcharge for late or non-payment of fees.

- a) **Surcharge for late or non-payment of fees.** The lessee of a stall, who fails to pay the monthly rental fee within the prescribed period, shall pay a surcharge of twenty-five percent (25%) of the total rent due.

Failure to pay the rental for three (3) consecutive months shall cause automatic cancellation of the contract of lease or stall prejudice to suing the lessee for the unpaid rents at the expense of the lessee. The stall shall be declared vacant and subject to adjudication.

- b) Any person occupying more space that what is duly leased him shall pay double the regular rate for such extra space and any person who fails to pay the monthly rent within the time fixed herein shall pay a penalty of twenty-five percent (25%) of the rent due. The lease contract of any person found habitually incurring the foregoing violation shall be cancelled.

- c) Any person occupying space in the market premises without first paying the fee imposed in this Article shall pay three (3) times as much as the regular rate for the space occupied.

Section 209. Adjudication of Stall.

- a) **Lease Period.** - The contract of lease for stall shall be for a period as provided in the contract of lease and approved by the Sangguniang Bayan, renewable upon its expiration, unless revoked in accordance with the provisions of this Article.

- b) **Notice of Vacancy.** Notice of vacant or newly constructed stall/booths shall be made for a period of not less than ten (10) days immediately preceding the date fixed for their award to qualified applicants, apprise the public of the fact that such stalls or booths are unoccupied and available for lease. Such notice shall be posted conspicuously on the unoccupied stall or booth and the bulletin board of the market. The notice of vacancy shall be written on the cardboard, thick paper, or any other suitable material and shall be in the following form:

NOTICE

Notice is hereby given that Stall/Booth No. _____ Building or Pavilion No. _____ of the _____ market is vacant or will be vacated on _____ 20____. Any person 21 years of age shall file an application therefore on the prescribed form, copies may be obtained from the Office of the Municipal Treasurer during office hours and before 12:00 o'clock noon of _____ 20____. In case there are more than one applicant, the award of the lease of the vacant stall/booth shall be determined through drawing of lots to be conducted on _____, 20____ at _____ o'clock noon at the Office of the Municipal Mayor by the Committee. This stall/booth is found in the _____ Section and is intended for the sale of _____.

Market Administrator

c] Application for Lease.

1) The application shall be under oath. It shall be submitted to the Office of the Mayor by the applicant either in person or through his/her attorney.

It shall be the duty of the Market Committee to keep a registry book showing the names and addresses of all applicants for vacant stalls or booths, the numbers and descriptions of the stalls/booths applied for them, and the date and hour of the receipt by the Market Committee; and to acknowledge receipt of every application setting forth therein the time and date of receipt thereof. The application shall be substantially in the following form:

APPLICATION TO LEASE MARKET STALL

Address
Date

The Market Committee
Municipality of Dalaguete
Province of Cebu

Thru: The Municipal Mayor
Sir:

I hereby apply under the following contract for the lease of stall No. _____ of the market. I am _____ and residing at _____.

Should the above-mentioned stall be leased to me in accordance with the market rules and regulations, I promise to hold the same under the following conditions:

That while I am occupying or leasing this (or these stalls) I shall at all times have my pictures and that of my helper (or those of my helpers) conveniently framed and hung up conspicuously in the stall.

I shall keep the stall (or stalls) at all times in good sanitary condition and comply strictly with all sanitary and market rules and regulations existing or may hereafter be promulgated.

I shall pay the corresponding rents for the stall (or stalls) in the manner prescribed by existing ordinance.

The business to be conducted in the stall shall belong exclusively to me. In case I engage helpers, I shall nevertheless personally conduct my business and be present at the stall (or stalls). I shall promptly notify the market authorities of my absence, giving a reason or reasons thereafter.

I shall not sell or transfer my privilege to the stall (or stalls/booths) or otherwise permit another person to conduct business therein.

Any violation on my part or on the part of my helpers of the foregoing conditions shall be sufficient cause for the authorities to cancel this contract.

Very respectfully yours,
Applicant
TIN _____

SUBSCRIBED AND SWORN to before me in the Municipality of Dalaguete, Cebu, Philippines this _____ day of _____, 20____, applicant-affiant exhibiting to me (his/her) Community Tax Certificate No. _____, issued at _____ on _____.

Officer Authorized to Administer Oath

2) Applicants who are Filipino citizen shall have preference in the lease of market stall. If in the last day set for filing applicants there is no application from a Filipino citizen, the posting of the notice of vacancy prescribed above shall be extended for another ten-day period. If after the expiration of the period there is still no Filipino applicant, the stall affected may be leased to any alien applicant, who filed his application first. If there are several alien applicants, the adjudication of the stall be made through drawing of lots to be conducted by the market committee on the date and hour specified in the Notice. The result of the drawing of lots shall be reported immediately to the Municipal Mayor for appropriate action.

3) The successful applicant shall furnish the Market Committee two (2) copies of his or her picture immediately after the award of the lease. It shall be the duty of the Market Committee to affix one copy of the picture to the application and the other copy to the record card kept for the purpose.

Section 210. Miscellaneous Provisions on Stalls.

a) **Vacancy of Stall before the expiration of the lease.** Should for any reason the stallholder or lessee discontinue his business before his lease of the stall expires, such stall is considered vacant and its occupancy thereafter shall be disposed of in the manner herein prescribed.

b) **Partnership with Stallholders.** A market stallholder who enters into business partnership with any part he had acquired the right to lease such stall have no authority to transfer to his partner or partners the right to occupy the stall; Provided, however, that in case of death or any legal disability of such stallholder to continue his business, the surviving partner may be authorized to continue occupying the stall for a period of not exceeding sixty (60) days within which to wind up the business of partnership. If the surviving partner is otherwise qualified to occupy the market stall under the provisions hereof, and the spouse, parent, or any of the children of the deceased (in that order) is not applying for the stall, he shall by given the preference to continue occupying the stall of booth concerned, if he applies therefore.

c) **Lessee to personally administer his stall.** Any person who has been awarded the right to lease a market stall in accordance with the provisions therefore, shall occupy, administer and be present personally at his stall, or booth, provided, however, that the helpers he employs are citizen of the Philippines, including but not limited to the spouse, parent and children of the stallholder who are actually living with him and who are not disqualified under the provisions hereof and, provided further, that the persons to be employed as helpers shall under no circumstances, be persons with whom the stallholder has any commercial relation or transaction.

d) **Dummies; sub-lease of stall.** In any case where the person, registered to be holder or lessee of stall or booth, in the public market, is found to be in reality not the person who is actually occupying said stall or stalls, the lease of such stalls shall be cancelled, if upon investigation such stallholder shall be found to have subleased his or her stall/stalls to another person or to have connived with such person so that the latter may, for any reason be able to occupy the said stall or booth.

e) **Appeals.** Any applicant who is not satisfied with the adjudication made by the market committee of the stall applied for by him, may file to the Sangguniang Bayan an appeal there from. The decision of the Sangguniang Bayan in such cases shall be final without prejudice to the right of the applicant to seek other legal remedial measures before the Sangguniang Panlalawigan or a proper Court.

f) **Creation of Market Committee.** There is hereby created a permanent market committee composed of the Municipal Mayor, or his duly authorized representative, as Chairman; the Municipal Treasurer; a representative of the Sangguniang Bayan and the President of the Market Vendors Association; as members. The Market Committee shall, among its duties, conduct the

drawing of lots and opening of bids in connection with the adjudication of vacant or newly constructed stalls or booths in the market and to certify to the results thereof.

Section 211. General Provisions.

- a. **Market hours** - Unless a different time is fixed by the Sangguniang Bayan, the public market shall be opened for sale of articles permitted for sale therein from 4:00 o'clock in the morning until 8:00 o'clock in the evening everyday. The use of any stall or place in the market as living quarter rooms and/or sleeping quarter is strictly prohibited and no vendor or stallholder shall remain inside the market building after the same has been closed.
- b. This municipal government shall not be responsible to the occupant's space and/or stalls for any loss or damage by fire, theft, robbery, "*force majeure*", or any other cause. All articles or merchandise left in the public market during the closure time shall be at the risk of the stallholder or owner thereof.
- c. All articles abandoned on any public market building in violation of any provisions of this Article or any regulation or rules relating to the management of the market, shall be deemed a nuisance, and shall be the duty of the Market Administrator or the Officer-In-Charge thereof to take custody of such articles. In case the articles are claimed within twenty four (24) hours thereafter, they shall be returned for their safekeeping, unless they are so deteriorated as to constitute a menace to public health, in which case, they shall be disposed of in the manner directed by the Market Administrator or the office in charge thereof, who may also in his discretion, cause the criminal prosecution of the guilty party, or merely warn him against future violation, in case where the articles have not deteriorated and are not claimed within the time herein fixed, said articles shall be sold at public auction, and the proceeds thereof shall be disposed of in accordance with law.
- d. It shall be unlawful for any person to peddle, hawk, sell or offer for sale, or expose for sale any article in the passageway (*pasillo*) used by purchasers in the market premises. It shall be unlawful for any person to idly chat, lounge or lie in or around the premises of the same, nor shall any person beg or solicit contributions of any kind in the public market.
- e. It shall be unlawful for any person to resist, obstruct, annoy or impede any market employee or personnel in the performance of his duties, nor shall parents allow their children to play in or around their stalls or in the market premises.
- f. It shall be unlawful for any person to drink, serve or dispense liquor or any intoxicating drinks within the premises of the public market at any time of the day.
- g. It shall be unlawful for any person within the premises of the public market to commit any nuisance, make boisterous noise, use any profane or vulgar languages, commit disorderly conduct, or obstruct the passageway of the market premises, or any act which is calculated to lead to breach of peace.
- h. It shall be unlawful for to expose, hang or place any article, whether the same is for sale; or place any kind of obstruction in the market premises. It shall be unlawful for any person to carry in his possession deadly weapon such as knives, bolos, axes, ice picks, darts, etc., within the market premises; or in case of stallholders or their helpers, outside their respective stalls.
- i. No merchandise or articles shall be sold, offered for sale or exposed for sale in the market unless the same have been legally acquired by the vendors and/or stallholders and that taxes of any kind due thereon have been paid.
- j. It shall be unlawful for any lessee to remove, construct and alter the original structure of any stall or booth, electrical wiring or water connection, without prior permit from the Municipal Mayor.
- k. It shall be the duty and obligations of any lessee of market stall or premises to provide his stall, booth or tienda with appropriate receptacle for garbage and other waste matters for proper collection and disposal.

- l. All sanitary rules and regulations shall be strictly observed and followed by all space and stall lessees or occupants.
- m. The peddling or sale outside the public market site or premises of foodstuffs, which easily deteriorate, like fish and meat is strictly prohibited.

Section 212. Administrative Provisions.

- a) No individual stallholders shall be allowed to lease more than two (2) adjoining or contiguous stalls regardless of the number of stall they were occupying previously.
- b) Sub-leasing or selling the leased stall or market space to other parties shall be considered sufficient ground for the revocation of the contract of lease.

Section 213. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (₱1,000.00) but not more than Two Thousand Five Hundred Pesos (₱2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

Section 214. Applicability Clause. The provisions of existing municipal ordinances dealing on market administration which are not in conflict with, or contrary to, the provisions of this Article are hereby adopted and made an integral part of this Article.

Chapter XIII
Article I
Slaughter and Corral Fees and Charges.

Section 215. Definition of Terms.

The following words, terms, and phrases used in this Article, are defined as follows:

- 1. **Carcass.** – the body of any slaughtered animal after bleeding and dressing.
- 2. **Condemnation.** – means the examination and judgment of meat or meat products according to approved protocols by a meat inspector/meat control officer/veterinarian as being unsafe or unsuitable for human consumption and requiring appropriate disposal.
- 3. **Confiscation.** – the taking into custody of livestock, poultry, meat/carcasses, edible parts or parts from said carcasses or meat products by the meat inspector for its proper disposal for having been the subject of violation of the rules and regulations.
- 4. **Fit for Human Consumption.** – meat that has passed inspection and appropriately branded by an inspector as safe and wholesome and in which no changes due to disease, decomposition or contamination have been subsequently found.
- 5. **Inspected and Condemned.** - a condition wherein the carcasses or parts of carcasses so marked have been inspected and found to be unsafe, unwholesome and unfit for human consumption.
- 6. **Inspection.** – an act by an official inspector to ensure compliance with rules and regulations including but not limited to humane handling of slaughter animals, ante and post mortem inspection, quality assurance program, hygiene and sanitation standard operating procedures, hazard analysis, critical control point program, residue control program on any meat and meat product, meat establishment facilities, transport vehicle and conveyance.
- 7. **Livestock.** – for the purpose of this ordinance livestock refers to live cattle, hogs, goats and chicken deposited in corral for slaughtering purposes.
- 8. **Meat.** – refers to the fresh, chilled or frozen edible carcass including offal derived from food animals.

9. **Meat Inspector.** – a professionally qualified and properly trained officer duly appointed by the Municipal Government of Dalaguete for meat inspection and control of hygiene under the supervision of a meat control officer.

10. **Meat Handler.** – person directly involved in preparation, transport and sale of meat and meat products.

11. **Butcher.** – person directly involved in slaughtering of animals.

12. **Meat Traders.** - are those that are engaged in buying and selling of livestock’s for slaughtering purposes.

13. **National Meat Inspection Service (NMIS).** – the sole national controlling/competent authority attached to the Department of Agriculture charged by the government with the control of meat hygiene and meat inspection.

14. **Slaughterhouse or Abattoir.** – premises or establishment that are approved and registered by the National Meat Inspection Service (NMIS) in which food animals are slaughtered and dressed for human consumption.

15. **Unfit for Human Consumption.** - means inspected and found not meeting the criteria of safety and wholesomeness.

16. **Meat Establishment.** – premises such as slaughterhouse, poultry dressing plant, meat processing plant, cold storage, warehouse and other meat outlets that are approved and registered by NMIS in which food animals, meat or meat products are slaughtered, prepared, processed, handled, packed or stored as applicable.

17. **Botcha.** – means meat from carcass that was not bleed well and/or from dead animal (double dead). It could also be meat from carcass that was butchered after more than 36 hours without refrigeration or stored in temperature higher than 10⁰c and under stage of decomposition.

Section 216. Slaughterhouse Fees and Charges. The fees and charges at Poblacion and Mantalongon slaughterhouses are hereby levied in the following;

Permit fee to slaughter: Before any animal is slaughtered for public consumption, a permit therefore shall be secured from the Municipal Agriculture and Natural Resources Office thru Municipal Veterinarian Officer who will determine whether the animal or fowl is fit for human consumption upon payment of the corresponding fee, as follows:

1. Corral fee per head (chargeable after the end of 24 hrs. holding time):

a) Cattle/Carabao	P150.00/ for the 1 st day, P75.00/day for succeeding days
b) Swine/Hog	P100.00/ for 1 st day, P50.00/day for succeeding days
c) Goat/Sheep	P50.00/ for 1 st day, P25.00/day for succeeding days
d) Others	P20.00/ for 1 st day, P10.00/day for succeeding days

2. Ante-mortem Inspection fees per head:

a) Cattle/Carabao	-----	P	50.00
b) Swine/Hog	-----	P	30.00
c) Goat/Sheep	-----	P	20.00
d) Others	-----	P	10.00

3. Slaughter fees per head:

a) Cattle/Carabao	-----	P	150.00
b) Swine/Hog			
i. large	-----	P	100.00
ii. small	-----	P	50.00
c) Goat/Sheep	-----	P	20.00

- | | | | |
|-----------|-------|---|------|
| d) Others | ----- | ₱ | 5.00 |
|-----------|-------|---|------|
4. Post-mortem inspection fees per head:
- | | | | |
|-------------------|-------|---|-------|
| a) Cattle/Carabao | ----- | ₱ | 80.00 |
| b) Swine/Hog | ----- | ₱ | 50.00 |
| c) Goat/sheep | ----- | ₱ | 20.00 |
| d) Others | ----- | ₱ | 5.00 |
5. All owners must pay 20% higher than the regular rates of animals coming from outside of Dalaguete.
6. Licenses with Identification Card issued by the Municipality: Note requirements (medical certificate)
- | | | | |
|------------------|-------|---|------------------|
| a. Butchers | ----- | ₱ | 300.00/head/year |
| b. Meat Handlers | ----- | ₱ | 200.00/head/year |
| c. Meat Traders | ----- | ₱ | 300.00/head/year |
7. Washing of Vehicle/wash.
- | | | | |
|-------------------|-------|---|--------|
| a) Tricycle | ----- | ₱ | 50.00 |
| b) Multi-cab | ----- | ₱ | 100.00 |
| c) Delivery Truck | ----- | ₱ | 200.00 |

Section 217. Prohibition. Permit to slaughter shall not be granted nor the corresponding fee collected on animals condemned by the Municipal Veterinarian Officer. Transporting, distributing and/or selling of “**botcha**” (double dead meat) is strictly prohibited.

Section 218. Time of Payment.

- a) **Permit fee.** Slaughter, corral and inspection fee shall be paid to the Municipal Treasurer upon slaughter of animal or before carcasses are brought out of the slaughterhouse.
- b) **Slaughter and post-mortem inspection fee.** These fees shall be paid to the Municipal Treasurer or his authorized representative before the slaughtered animal is removed from the public slaughterhouse or after the post-mortem inspection as the case may be.
- c) **Corral fee.** The fee shall be paid to the Municipal Treasurer before the animal is kept in the municipal corral or any lace designated as such. If the animal is kept in the corral beyond the period paid for, the fees due on the unpaid period shall first be paid before the same animal is released from the corral.

Section 219. Administrative Provisions.

- a) The slaughter, of any kind of animal intended for sale, shall be done only in the municipal slaughterhouse designated as such by the Sangguniang Bayan. The slaughter of animals intended for home consumption may be done elsewhere, except large cattle which shall be slaughtered only in the public slaughterhouse. The animal slaughtered for home consumption shall not be sold or offered for sale.

Before issuing the permit for the slaughter of large cattle inside the slaughterhouse, the Officer-in-Charge of the slaughterhouse shall require for the production of the certificate of ownership if the owner is the applicant, or the original certificate of ownership and certificate of transfer showing title in the name of the person applying for the permit if he is not the original owner.

Before any animal is slaughtered for public consumption, a permit therefore shall be secured from the Municipal Health Officer or his duly authorized representative. The permit shall bear the date and month of issue and the stamp of the Municipal Health Officer, as well as the page of the book in which said permit is entered and wherein the name of the permittee and the kind and sex of the animal to be slaughtered appear.

The permit to slaughter as herein required shall be kept by the owner to be posted in a conspicuous place in his/her stall at all times.

For the Safety of the consuming public, it is recommended to prioritize the Dalaguetenon Meat dealers/handlers in slaughtering schedule. Meat Inspector has the authority to determine if he/she is a resident of Dalaguete. The office of the mayor is hereby authorized to make guidelines for the implementation of the same.

Section 220. Penalty. Any violation of the provisions of this Article shall be punished by a fine of not less than One Thousand Pesos (P1,000.00) but not more than Two Thousand Five Hundred Pesos (P2,500.00) or imprisonment of not less than One (1) month but not more than Six (6) months, or both such fine and imprisonment, at the discretion of the Court.

CHAPTER XIV
Article I
ECONOMIC ENTERPRISES.

Section 221. Economic Enterprises of the Municipality of Dalaguete. With the establishment of alternative modes of service delivery that are self sustaining and revenue raising the following are considered as the Dalaguete Economic Enterprises:

- 1. **Public Markets:**
 - A. Dalaguete Commercial Center
 - B. Mantalongon Public Market
 - C. Caleriohan Public Market
 - D. Other satellite markets of Caliongan, Catolohan and Nalhub
- 2. **Food Stalls/Court (Foodlane):**
- 3. **Slaughterhouse:**
 - A. Poblacion
 - B. Mantalongon
- 4. **Commercial Center (recreational and cultural complex):**
 - A. Dalaguete Sports and Cultural Center
 - B. San Isidro Cultural Center in Mantalongon
 - C. Dalaguete Municipal Tennis Court
- 5. **Public utility (water supply and distribution):**
 - A. Basang Pang-pang Waterworks
 - B. Caleriohan Waterworks
 - C. Casay Waterworks
 - D. Lanao Waterworks
- 6. **Dalaguete STAR Center Fees:**

Course/Field	DALAGUETNON		NON-DALAGUETNON	
	Entrance Fee	Monthly	Entrance Fee	Monthly
Shielded Metal Arc Welding	₱ 400.00	₱ 600.00	₱ 500.00	₱ 800.00
Automotive Servicing	₱ 400.00	₱ 600.00	₱ 500.00	₱ 800.00
Dressmaking	₱ 400.00	₱ 600.00	₱ 500.00	₱ 800.00
Commercial Cooking	₱ 400.00	₱ 600.00	₱ 500.00	₱ 800.00
Electronics	₱ 400.00	₱ 600.00	₱ 500.00	₱ 800.00
Electrical	P 400.00	₱ 600.00	₱ 500.00	₱ 800.00

- **Certificate Fee = P120.00**

7. **Dalaguete Internet Service Fees:**

A. WIFI Usage Rates. (Prepaid Tickets)

I.	4 hours internet usage, expires in 48 hours	----- ₱	25.00
II.	8Hours internet usage, expires in 96Hours	----- ₱	50.00
III.	18Hours internet usage, expires in 192Hours	----- ₱	120.00
IV.	UNLIMITED internet usage, expires in 720Hour	----- ₱	500.00

B. Web Advertisement Rates. (Image AD Packages)

I. Package IMAGE-A

Ad Format	:	Banner Image
Placement	:	Top
Appearance	:	Appears in all website pages
Price	:	₱150.00/month – 1,500

II. Package IMAGE-B

Ad Format	:	Small Rectangle Image
Placement	:	Middle-Top
Appearance	:	Appears only in front/home page
Price	:	₱125.00/month – 1,500

III. Package IMAGE-C

Ad Format	:	Skyscraper Image
Placement	:	Right-Side
Appearance	:	Appears in almost all website pages
Price	:	₱125.00/month – 1,500

IV. Package IMAGE-D

Ad Format	:	Small Banner Image
Placement	:	Middle
Appearance	:	Appears only in front/home page
Price	:	₱100.00/month – 1,000

V. Package IMAGE-E

Ad Format	:	Banner Image
Placement	:	Bottom
Appearance	:	Appears in all website pages
Price	:	₱100.00/month – 1,000

C. Text AD Packages:

Package TEXT-A

Ad Format	:	Banner Text
Placement	:	Top
Appearance	:	Appears in all website pages
Price	:	₱80.00/month – 500

D. Online Business Directory:

Mandatory upon issuance of Business Permit)	-----	₱200.00/year
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E. Web Hosting Plans:

Web Hosting Plans	Unlimited	Business	Personal
Domains Hosted	Unlimited	1	1
Disk Space Allocation	Unlimited	15 GB	3 GB
Monthly Bandwidth	Unmetered	Unmetered	10 GB
Yearly Fee	₱ 5,000.00	₱ 3,500.00	₱ 1,000.00

8. Dalaguete Agri-Pinoy Trading Center (Vegetable Trading Center).

- I. **SPACE RENTAL.** - To be paid by the traders. - A special fixed rate rental of **Seven Hundred Fifty Pesos (PHP 750.00)** per month for the use of the 4.8 square meters area/space inside the DAPTC to display the vegetables and fruits bought from the farmers. A contract of lease covering the period of lease agreed upon shall be executed by the traders and the Municipality of Dalaguete.
- II. **PARKING FEES.** - To be paid by owners of the Vans and Trucks as per Municipal Tax Ordinance No. XXV.
- a. Trucks ----- ₱ 100.00
- b. Vans and Jeep ----- ₱ 50.00
- III. **Fees and charges under Municipal Tax Ordinance No. XXXI** or an ordinance imposing Market Entrance Fee for Dalaguete Vegetable Trading Center.

9. MANRO Services

A. Artificial Insemination Fee:

- I.Cattle/Carabao – ₱ 500.00 per animal (Good for 3 services only if the animal will not conceive after 1st and 2nd A. I.) including pregnancy diagnosis.
- II.Goat – ₱ 100.00 per animal - 200

Note: No service charge on the following services: (Only cost of medicine is collected from the animal owner)

- I. Immunization/vaccination (anti-rabies, hemosep vaccine)
- II. Deworming
- III. Vitamin/mineral/iron supplementation
- IV. Castration swine
- V. Treatment cattle/carabao/goat/swine/dog/cat

B. High Value Commercial Crops Seedlings.

1. Vegetable seedlings
- a. Tomatoes ----- ₱ 10.00/seedling
- b. Eggplant ----- ₱ 10.00/seedling
- c. Okra ----- ₱ 5.00/seedling
- d. Ampalaya ----- ₱ 10.00/seedling
- e. String beans ----- ₱ 5.00/seedling
- f. Other kind of seedlings ----- P 5.00/seedling
2. Cacao seedling ----- P15.00/seedling
3. Coffee seedling ----- P15.00/seedling
4. Fruit tree seedlings
- a. Papaya ----- ₱ 5.00/seedling
- b. Mango ----- ₱30.00/seedling
- c. Jackfruit ----- ₱15.00/seedling
- d. Lemonsito ----- P50.00/seedling

e. Guyabano	-----	P15.00/seedling
f. Avocado	-----	P15.00/seedling
g. Other kind of fruit tree	-----	P10.00/seedling
h. Coconut	-----	P50.00/seedling
i. Timber wood	-----	P10.00/seedling
j. Abaca suckers	-----	P10.00/seedling

5. Flowering plants

a. Petunia,Torenia,Dianthus & asther	-----	P50.00/pot
b. Lisanthus	-----	P100.00/pot

OTHER FLOWERING PLANTS

c. Local Plants	-----	P50.00/pot
b. Imported plants	-----	P100.00/pot

C. Fisheries & Coastal Resources Management (FCRM).

- a) Docking fee for vessels
- | | | | |
|-------------------|-------|------------|---------------------------|
| 1. 0-5 GRT | ----- | ₱ 300.00 | -for first 8 hours 500.00 |
| 2. 6-100 GRT | ----- | ₱ 500.00 | - 1,000.00 |
| 3. 101-500 GRT | ----- | ₱ 700.00 | - 1,500.00 |
| 4. 501- 1000 GRT | ----- | ₱ 800.00 | - 2,000.00 |
| 5. 1001- 2000 GRT | ----- | ₱ 1,000.00 | - 2,500.00 |
| 6. 2001 & UP | ----- | ₱ 1,500.00 | - 3,000.00 |
- b) Seaweeds Culture
- | | | |
|---------------------------------------|-------|--------------------------------------|
| 1. Application fee | ----- | ₱ 100.00 – 500 |
| 2. License fee for culture first year | ----- | FREE |
| 3. succeeding years | ----- | ₱ 800.00 per establishment -1,000.00 |
| 4. transport of seaweeds | ----- | ₱ 1.00/kilo - 200 |
- c) Users Fee of Marine Protected Area (MPA's) and diving sites User's Fees
- Recognition and Accreditation

Mayor's permit fee	-----	₱ 300.00/applicant
Accreditation fee	-----	₱ 800.00/applicant
 - Scuba Diving, snorkeling and swimming

	-----	₱100.00/person/2hrs.max
		₱ 50.00/person/excess hr.
 - Scuba diving with still camera

	-----	₱200.00/person/2hrs.max
	-----	₱ 75.00/person/excess hr.
 - Scuba diving with video camera

	-----	₱ 300.00/person/hr.
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Note: free of charge for research/study through approved Mayor's authority or MOA

- d) Other facilities rental including crew
- | | | |
|--|-------|----------------------|
| - Motorboat including fuel & 2 boatmen | ----- | ₱ 3,000.00max 8 hrs. |
| - Within the municipal waters | ----- | ₱ 400.00/excess hr. |
| - Outside municipal waters | ----- | ₱ 4,500.00max 8hrs |
| - Excess of hour | ----- | P 600.00/hr. |
- | | | |
|-------------------------|-------|------------------|
| 1) Snorkeling guide | ----- | ₱ 150.00/12 hrs. |
| 2) 2 dive guide | ----- | ₱ 400.00/12 hrs. |
| 3) 1 pump boat operator | ----- | ₱ 500.00/12 hrs. |
| 4) 2 pump boat operator | ----- | ₱ 700.00/12 hrs. |
- e) Rental of diving gears:
- | | | |
|-------------------------------------|-------|------------------|
| 1) Scuba gears with tanks | ----- | ₱ 800.00/12 hrs. |
| 2) Scuba diving gears without tanks | ----- | ₱ 500.00/12hrs. |

f) Goodwill Guide Fees.

1. Individual tourist	-----	₱	250.00
2. Group of five	-----	₱	500.00
3. Group of Ten	-----	₱	1,000.00
4. Excess of ten (per person)	-----	₱	150.00

D. Other Equipment Rental.

1. Sound system with microphone (8 hours usage)	-----	₱	1,000.00
2. MULTIMEDIA projector (eight hours usage)	-----	₱	1,500.00
3. Laptop (eight hours usage)	-----	₱	250.00

Chapter XV
Article I
Other Service Fees.

a) Water Assistance to Resorts (Using Municipal Water Truck).

1. Per truckload	-----	₱ 4,000.00
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b) Coaster Bus Rental:

ROUTE	DOMESTIC	FOREIGN
Dalaguete - Cebu City	₱ 7,500.00	₱ 10,000.00
Mandaue City	₱ 8,000.00	₱ 11,000.00
Lapulapu	₱ 8,500.00	₱ 12,000.00
Danao City	₱ 10,000.00	₱ 15,000.00
Toledo City	₱ 8,000.00	₱ 11,000.00
Jagnaya Port	₱ 15,000.00	₱ 18,000.00
Daan Bantayan	₱ 16,000.00	₱ 20,000.00
Round South Cebu	₱ 7,500.00	₱ 10,000.00
Minimum rental w/in (30) kms.	₱ 2,500.00	₱ 3,500.00

Package Tour for 2 Days and 1 Night:

Net cost per person:

Single package	(6-8 persons)	₱	5,351.58
	(9-20 persons)	₱	4,177.77
	(21-30 persons)	₱	3,938.00
	(31-40 persons)	₱	3,563.19
Twin Package	(6-8 persons)	₱	5,101.58
	(9-20 Persons)	₱	3,927.77
	(21-30 persons)	₱	3,685.91
	(31-40 persons)	₱	3,313.19
Triple package	(6-8 persons)	₱	4,784.91
	(9-20 persons)	₱	3,611.10
	(21-30 persons)	₱	3,369.24
	(31-40 persons)	₱	2,996.52

c) Bidder's Payment:

a) Bidders' Fee (Mayor's Permit)	-----	₱	500.00
b) Computer Cost	-----	₱	50.00
c.) Cost of Bidding Documents:			

Approved Budget for the Contract	Cost
more than ₱ 200,000.00 up to ₱ 350,000.00	₱ 350.00

more than ₱ 350,000.00 up to ₱ 500,000.00	₱ 500.00
more than ₱ 500,000.00 up to ₱ 700,000.00	₱ 700.00
more than ₱ 700,000.00 up to ₱ 850,000.00	₱ 850.00
more than ₱ 850,000.00 up to ₱ 1,000,000.00	₱ 1,000.00
more than ₱ 1,000,000.00 up to ₱ 1,500,000.00	₱ 1,500.00
more than ₱ 1,500,000.00 up to ₱ 2,000,000.00	₱ 2,000.00
more than ₱ 2,000,000.00 up to ₱ 2,500,000.00	₱ 2,500.00
more than ₱ 2,500,000.00 up to ₱ 3,000,000.00	₱ 3,000.00
more than ₱ 3,000,000.00 up to ₱ 3,500,000.00	₱ 3,500.00
more than ₱ 3,500,000.00 up to ₱ 4,000,000.00	₱ 4,000.00
more than ₱ 4,000,000.00 up to ₱ 4,500,000.00	₱ 4,500.00
more than ₱ 4,500,000.00 up to ₱ 5,000,000.00	₱ 5,000.00
more than ₱ 5,000,000.00 up to ₱ 6,000,000.00	₱ 6,000.00
more than ₱ 6,000,000.00 up to ₱ 7,000,000.00	₱ 7,000.00
more than ₱ 7,000,000.00 up to ₱ 8,000,000.00	₱ 8,000.00
more than ₱ 8,000,000.00 up to ₱ 9,000,000.00	₱ 9,000.00
more than ₱ 9,000,000.00 up to ₱ 10,000,000.00	₱ 10,000.00
more than ₱ 10,000,000.00 up to ₱ 11,000,000.00	₱ 11,000.00
more than ₱ 11,000,000.00 up to ₱ 12,000,000.00	₱ 12,000.00
more than ₱ 12,000,000.00 up to ₱ 13,000,000.00	₱ 13,000.00
more than ₱ 13,000,000.00 up to ₱ 14,000,000.00	₱ 14,000.00
more than ₱ 14,000,000.00 up to ₱ 15,000,000.00	₱ 15,000.00
more than ₱ 15,000,000.00 up to ₱ 20,000,000.00	₱ 16,500.00
more than ₱ 20,000,000.00 up to ₱ 25,000,000.00	₱ 18,000.00
more than ₱ 25,000,000.00 up to ₱ 30,000,000.00	₱ 19,500.00
more than ₱ 30,000,000.00 up to ₱ 35,000,000.00	₱ 21,500.00
more than ₱ 35,000,000.00 up to ₱ 40,000,000.00	₱ 23,000.00
more than ₱ 40,000,000.00 up to ₱ 45,000,000.00	₱ 24,000.00
more than ₱ 45,000,000.00 up to ₱ 50,000,000.00	₱ 25,000.00
more than ₱ 50,000,000.00 up to ₱ 100,000,000.00	₱ 30,000.00
more than ₱ 100,000,000.00 up to ₱ 200,000,000.00	₱ 35,000.00
more than ₱ 200,000,000.00 up to ₱ 300,000,000.00	₱ 40,000.00
more than ₱ 300,000,000.00 up to ₱ 400,000,000.00	₱ 45,000.00
more than ₱ 400,000,000.00 up to ₱ 500,000,000.00	₱ 50,000.00
more than ₱ 500,000,000.00	₱ 75,000.00

d) Public Toilets (User’s Fee):

- a) Pee

----- ₱ 2.00
- b) Poop

----- ₱ 5.00

Note: An additional amount of ₱2.00 will be collected for the use of toilet tissue when user poops.

Article II
Toll Fees or Charges

Section 222. Imposition of Tool Fees or Charges: There shall be collected fees and charges for the use of the following facilities and utilities owned and operated by this municipality.

Type of Infrastructure:	Amount
Pier/Wharf	The amount to be imposed shall be provided in a separate ordinance to be passed and approved as the need arise.
Bridge	The amount to be imposed shall be provided in a separate ordinance to be passed and approved as the need arise.
Road	The amount to be imposed shall be provided in a separate ordinance to be passed and approved as the need arise.
Warehouse	The amount to be imposed shall be provided in a separate ordinance to be passed and approved as the need arise.
Internet Post/Cable	The amount to be imposed shall be provided in a separate

	ordinance to be passed and approved as the need arise.	
Tennis Court	Day Time Option-1: ₱ 30.00/game/player Option-2: ₱ 100.00/hour/court Night Time Option -1: ₱ 50.00/game/player Option -2: ₱ 200.00/hour/court Tournament Fees: Daytime: ₱ 200.00/hour/court Night Time: ₱ 300.00/hour/court Damage Deposit: ₱ 1,000.00/Tournament only Use of Tennis Court for other purposes: Day Time: ₱ 1,000.00 for 5 hours Night Time: ₱ 2,000.00 for 5 hours	
	Children – below 12 years old -----	₱ 30.00
	Adult – 12 years old and above -----	₱ 75.00
Usage of Municipal Swimming Pool		
Swimming Attire:	MALE Swimming Trunks Board Shorts Cycling Shorts Rash Guard	FEMALE Swimsuit Silk Spaghetti Shirt Swimming Bra and Silk Shorts Rash Guard
Fees and Charges	1. Children – below 12 years old ₱ 25.00 2. Adult - 12 years old and above ₱ 50.00 3. Official athletes representing the Municipality of Dalaguete maybe allow to use the Swimming Pool for Free provided that trainer must submit official list of athletes to the Municipality	
POOL RULES AND REGULATIONS	1. Swimming pool is open from 5:00 am to 8:00 pm daily 2. Secure ticket from the ticket booth and present to pool entrance guard before entry. “No Ticket No Entry” 3. Swimming Attire made of cotton and denim fabrics with buttons and zippers are not allowed; 4. Please be reminded that this is a recreational swimming pool. As such water baptism and other activities are not permitted; 5. As a safety precautions, the pool administrator may close the swimming pool compound at any time and without prior notice; 6. Running around, reckless diving and rough play are strictly prohibited. Pool Management will not be responsible for any accident that may occur. 7. Children must be accompanied and attended to by a responsible adult. 8. No food or drinks or pets allowed inside pool premises or enclosure; 9. Persons with open wounds or in menstrual period are not allowed to use the pool. 10. Please do not leave your personal belongings and valuables unattended. The management is not responsible for any losses that may occur; 11. Shower first before using the pool; 12. Always follow the orders of your lifeguards.	

Section 223. Exemptions. No such fees or charges shall be collected from officers and enlisted men of the armed forces of the Philippines and the members of the PNP on mission, ambulances, post offices personnel delivering mail, physically handicapped, disables citizens who are 65 years or older.

Section 224. Time of Payment. Fees and charges for the use of the abovementioned facilities shall be made every time such facilities or utilities are utilized.

Section 225. Administrative Provision. When public safety and welfare so requires, the Sangguniang Bayan may discontinues the collection of tolls and thereafter said facility shall be free and open to the public.

Chapter XVI **General Administrative Provisions.**

Article I **Collection and Accounting of Municipal Taxes and Other Impositions.**

Section 226. Tax Period. Unless otherwise provided in this Ordinance, the tax period for all local taxes, fees, and charges imposed under this Ordinance shall be the calendar year.

Section 227. Accrual of Tax. Unless otherwise provided, all taxes and charges imposed herein shall accrue on the first (1st) day of January of each year. However, new taxes, fees or charges, or changes in the rate of existing taxes, fees, or charges, shall accrue on the first (1st) day of the quarter next following the effectivity of the Ordinance imposing such new levies or taxes.

Section 228. Time of Payment. Unless specifically provided herein, the deadline for payment of all taxes, fees, and charges imposed in this Ordinance shall be paid on the last day of February of each year and for the subsequent quarters on the 1st twenty (20) days of the quarter.

Section 229. Surcharge for Late Payment. Failure to pay the tax described in this Article within the time required shall subject the taxpayer to a surcharge of twenty-five percent (25%) of the original amount of tax due, such surcharge to be paid at the same time and in the same manner as the tax due.

Section 230. Interest on Unpaid Tax. In addition to the surcharge imposed herein, where the amount of any other revenue due to the municipality except voluntary contributions or donations, is not paid on the date fixed in the ordinance, or in the contract, expressed or implied, or upon the occurrence of the event which has given rise to its collection, there shall be collected as part of that amount an interest at the rate not to exceed two percent (2%) per month from the date it is due until it is paid, but in no case shall the total interest on the unpaid amount or a portion thereof exceed thirty-six (36) months.

Where an extension of time for the payment of the tax has been granted and the amount is not paid in full prior to the expiration of the extension, the interest above-mentioned shall be collected on the unpaid amount from the date it becomes originally due until fully paid.

Section 231. Collection. Unless otherwise specified, all taxes, fees and charges due to this municipality shall be collected by the Municipal Treasurer or his duly authorized representatives.

Unless otherwise specifically provided in this Ordinance or under existing laws and ordinances, the Municipal Treasurer is hereby authorized, subject to the approval of the Municipal Mayor, to promulgate rules and regulations for the proper and efficient administration and collection of taxes, fees and charges herein levied and imposed.

Section 232. Issuance of Receipts. It shall be the duty of the Municipal Treasurer or his authorized representative to issue the required official receipt to the person paying the tax, fee or charge wherein the date, amount, name of the person paying and the account for which it is paid, are shown.

The Ordinance Number and the specific section thereof upon which collections are based shall invariably be indicated on the face of all official receipts acknowledging payment of taxes, fees, or charges.

Section 233. Record of Persons Paying Revenue. It shall be the duty of the Municipal Treasurer to keep a record, alphabetically arranged and open to public inspection during office hours, of the names of all persons paying municipal taxes, fees and charges. He shall, as far as practicable, establish and keep current the appropriate tax roll for each kind of tax, fee or charge provided in this Ordinance.

Section 234. Accounting of Collections. Unless otherwise provided in this Ordinance and other existing laws and ordinances, all monies collected by virtue of this Ordinance shall be accounted for in accordance with the provisions of existing laws, rules and regulations and credited to the General Fund of the Municipality.

Section 235. Examination of Books of Accounts. The Municipal Treasurer shall, by himself or through any of his deputies duly authorized in writing, examine the books of accounts and other pertinent records of the business establishments doing business within the municipality, and subject to municipal taxes, to ascertain, assess and collect the true and correct amount of the tax due from the taxpayer concerned. Such examination shall be made during regular business hours once every year for every tax period, which shall be the year immediately preceding the examination. Any examination conducted pursuant to the provisions of this Section shall be certified to by the examining official and such certificate shall be made of record in the books of accounts of the taxpayer concerned.

In case the examination herein authorized is to be made by a duly authorized deputy of the Municipal Treasurer, there shall be written authority issued to the former which shall specifically state the name, address and business of the taxpayer whose books of accounts and pertinent records are to be examined, the date and place of such examination, and the procedure to be followed in conducting the same.

For this purpose, the records of the Revenue District Office of the Bureau of Internal Revenue shall be made available to the Municipal Treasurer, his deputy or duly authorized representative.

The forms and the guidelines to be observed for the proper and effective implementation of this Section shall be those prescribed by the Department of Finance.

Section 236. Accrual to the General Fund of Fines, Costs, and Forfeitures. Unless otherwise provided by law or ordinance, fines, costs, forfeitures, and other pecuniary liabilities imposed by the court for violation of any municipal ordinance shall accrue to the General Fund of the municipality.

Section 237. Limit on Barangay Fees and Charges.

Unless otherwise provided by law, the fees and charges to be imposed by the component barangays in this municipality shall in no case exceeds the similar fees or charges imposed under this code.

Article II

Civil Remedies for Collection of Revenues.

Section 238. Local Government's Lien. Local taxes, fees, charges and other revenues herein provide constitute a lien, superior to all liens, charges or encumbrances in favor of any person, enforceable by appropriate administrative or judicial action, not only upon any property or rights therein which may be subject to lien but upon also property used in business, occupation, practice of profession or calling, or exercise of privilege with respect to which the lien is imposed. The lien may only be extinguished upon full payment of the delinquent local taxes, fees, and charges including related surcharges and interest.

Section 239. Civil Remedies. The civil remedies for the collection of local taxes, fees, or charges, and related surcharges and interest resulting from delinquency shall be:

(a) By administrative action through distraint of goods, chattels or effects, and other personal property of whatever character, including stocks and other securities, debts, credits, bank accounts, and interest in and rights to personal property, and to levy upon real property and interest in or rights to real property; and

(b) By judicial action.

Either of these remedies or all may be pursued concurrently or simultaneously at the discretion of the Municipal Treasurer.

Section 240. *Distraint of Personal Property.* The remedy by distraint shall proceed as follows:

(a) ***Seizure.*** Upon failure of the person owing any local tax, fee or charge to pay the same at the time required, the Municipal Treasurer or his deputy may, upon written notice, seize or confiscate any personal property belonging to the person or any personal property subject to the lien, in sufficient quantity to satisfy the tax, fee or charge in question, together with any increment thereto incident to delinquency and the expenses of seizure. In such case, the Municipal Treasurer or his deputy shall issue a duly authenticated certificate based upon the records of this office showing the fact of delinquency and the amount of the tax, fee or charge and penalty due. Such certificate shall serve as sufficient warrant for the distraint of personal property aforementioned, subject to the taxpayer's right to claim exemption under the provisions of existing laws. Distrainted personal property shall be sold at public auction in the manner herein provided for.

(b) ***Accounting of Distrainted Goods.*** The officer executing the distraint shall make or cause to be made an account of the goods, chattels or effects distrainted, a copy of which signed by himself shall be left either with the owner or person from whose possession the goods, chattels, or effects are taken, or at the dwelling or place of business of that person and with someone of suitable age and discretion, to which list shall be added a statement of the sum demanded and a note of the time and place of sale.

(c) ***Publication.*** The officer shall forthwith cause a notification to be exhibited in not less than three (3) conspicuous places in the territory of the local government units where the distraint is made; specifying the time and place of sale, and the articles distrainted. The time of sale shall not be less than twenty (20) days after notice to the owner or possessor of the property as above specified and the publication or posting of the notice. One place for the posting of the notice shall be at the Office of the Municipal Mayor.

(d) ***Release of Distrainted Property Upon Payment Prior to Sale.*** If not any time prior to the consummation of the sale, all proper charges are paid to the officer conducting the same, the goods or effects distrainted shall be restored to the owner.

(e) ***Procedure of Sale.*** At the time and place fixed in the notice, the officer conducting the sale shall sell the goods or effects so distrainted at public auction to the highest bidder for cash. Within five (5) days after the same, the Municipal Treasurer, shall make a report of the proceedings in writing to the Municipal Mayor.

Should the property distrainted be not disposed of within one hundred and twenty (120) days from the date of distraint, the same shall be considered as sold to the local government unit concerned for the amount of the assessment made thereon by the Committee on Appraisal and to the extent of the same amount, the tax delinquencies shall be canceled.

Said Committee on Appraisal shall be composed of the Municipal Treasurer as Chairman, with a representative of the Commission on Audit and the Municipal Assessor as Members.

(f) ***Disposition of Proceeds.*** The proceeds of the sale shall be applied to satisfy the tax including the surcharges, interest, and other penalties incident to delinquency, and the expenses of the distraint and sale. The balance over and above what is required to pay the entire claim shall be returned to the owner of the property sold. The expenses chargeable upon the seizure and sale shall embrace only the actual expenses of seizure and preservation of the property pending the sale, and no charge shall be imposed for the services of the local officer or his representative.

Where the proceeds of the sale are insufficient to satisfy the claim, other property may, in like manner, be distrained until the full amount due, including all expenses, is collected.

(g) **Levy on Real Property.** After the expiration of the time required to pay the delinquency tax, fee or charge, real property may be levied on before, simultaneously or after the distraint of personal property belonging to the delinquent taxpayer. To this end, the Municipal Treasurer, shall prepare a duly authenticated certificate showing the name of the taxpayer and the amount of the tax, fee or charge, and penalty due from him. Said certificate shall operate with the force of a legal execution throughout the Philippines. Levy shall be effected by writing upon said certificate of description of the property upon which levy is made. At the same time, written notice of the levy shall be mailed to or served upon the Assessor and Register of Deeds of the municipality who shall annotate the levy on the tax declaration and certificate of title of the property, respectively, and the delinquent taxpayer or, if he be absent from the municipality, to his agent or the manager of the business in respect to which the liability arose, or if there be none, to the occupant of the property in question.

In case the levy on real property is not issued before or simultaneously with the warrant of distraint on personal property, and the personal property of the taxpayer is not sufficient to satisfy his delinquency, the Municipal Treasurer, shall within thirty (30) days after execution of the distraint, proceed with the levy on the taxpayer's real property.

A report on any levy shall, within ten (10) days after receipt of the warrant, be submitted by the levying officer to the Sangguniang Bayan.

(h) **Penalty for Failure to Issue and Execute Warrant.** Without prejudice to criminal prosecution under the Revised Penal Code and other applicable laws, the Municipal Treasurer, if he fails to issue or execute the warrant of distraint or levy after the expiration of the time prescribed, or if he is found guilty of abusing the exercise thereof by competent authority, shall be automatically be dismissed from the service after due notice and hearing.

(i) **Advertisement and Sale.** Within thirty (30) days after levy, the Municipal Treasurer shall proceed to publicly advertise for sale or auction the property or a usable portion thereof as may be necessary to satisfy the claim and cost of sale; and such advertisement shall cover a period of at least thirty (30) days. It shall be effected by posting a notice at the main entrance of the city hall, and in a public and conspicuous place in the barangay where the real property is located, and by publication once a week for three (3) weeks in a newspaper of general circulation in the municipality. The advertisement shall contain the amount of taxes, fees or charges, and penalties due thereon, and the time and place of sale, the name of taxpayer against whom the taxes, fees or charges are levied, and a short description of the property to be sold. At any time before the date fixed for the sale, the taxpayer may stay the proceedings by paying the taxes, fees, charges, penalties and interests. If he fails to do so, the sale shall proceed and shall be held either at the main entrance of the municipal hall or on the property to be sold, or at any other place as determined by the Municipal Treasurer, conducting the sale and specified in the notice of sale.

Within thirty (30) days after the sale, the Municipal Treasurer or his deputy shall make a report of the sale to the Sangguniang Bayan, and which shall form part of his records. After consultation with the Sangguniang Bayan, and which shall form part of his records. After consultation with the Sanggunian, the Municipal Treasurer shall make and deliver to the purchaser a certificate of sale, showing proceedings of the sale, describing the property sold, stating the name of the purchaser and setting out the exact amount of all taxes, fees, charges and related surcharges, interests, or penalties: Provided, however, that any excess in the proceeds of the sale over the claim and cost of sales shall be turned over to the owner of the property. The Municipal Treasurer may, by a duly approved ordinance, advance an amount sufficient to defray the costs of collection by means of the remedies provided for in this Ordinance, including the preservation or transportation in case of personal property, and the advertisement and subsequent sale, in cases of personal and real property including improvements thereon.

(j) **Redemption of Property Sold.** Within one (1) year from the date of sale, the delinquent taxpayer or his representative shall have the right to redeem the property upon payment to the Municipal Treasurer of the total amount of taxes, fees or charges, and related surcharges, interests or penalties from the date of delinquency to the date of sale, plus interest of not more than two percent (2%) per month on the purchase price from the date of purchase to the date of redemption. Such payment shall invalidate the

certificate of sale issued to the purchaser and the owner shall be entitled to a certificate of redemption from the Municipal Treasurer or his representative.

The Municipal Treasurer or his deputy upon surrender by the purchaser of the certificate of sale previously issued to him, shall forthwith return to the latter the entire purchase price paid by him plus the interest of not more than two percent (2%) per month herein provided for, the portion of the cost of sale and other legitimate expenses incurred by him, and said property thereafter shall be free from the lien of such taxes, fees or charges and other related surcharges, interests, and penalties.

The owner, shall not, however, be deprived of the possession of said property and shall be entitled to the rentals and other income thereof until the expiration of the time allowed for its redemption.

(k) **Final Deed of Purchaser.** In case the taxpayer fails to redeem the property as provided herein, the Municipal Treasurer shall execute a deed conveying to the purchaser so much of the property as has been sold, free from liens of any taxes, fees, charges, related surcharges, interests and penalties. The deed shall sufficiently recite all the proceedings upon which the validity of the sale depends.

(l) **Purchase of Property by the Municipality for Want of Bidder.** In case there is no bidder for the real property advertised for sale as provided herein or if the highest bid is for an amount insufficient to pay the taxes, fees, or charges, related surcharges, interests, penalties and cost, the Municipal Treasurer shall purchase the property on behalf of the municipality to satisfy the claim and within two (2) days thereafter shall make a report to his proceedings which shall be reflected upon the records of his office. It shall be the duty of the Registrar of Deeds concerned upon registration with his office of any such declaration of forfeiture to transfer the title of the forfeited property to this municipality without the necessity of an order from a competent court.

Within one (1) year from the date of such forfeiture the taxpayer or any of his representative, may redeem the property by paying to the Municipal Treasurer the full amount of the taxes, fees, charges and related surcharges, interests or penalties, and the costs of sale. If the property is not redeemed as provided herein, the ownership thereof shall be fully vested on the municipality.

(m) **Resale of Real Estate Take for Taxes, Fees or Charges.** The Sangguniang Bayan may, by a duly approved ordinance, and upon notice of not less than twenty (20) days, sell and dispose of the real property acquired in the preceding paragraph at public auction. The proceeds of the sale shall accrue to the general fund of this municipality.

(n) **Collection of Delinquent Taxes, Fees, Charges or Other Revenues Through Judicial Action.** The municipality may enforce the collection of delinquent taxes, fees, charges or other revenues by civil action in any court of competent jurisdiction. The civil action shall be filed by the Municipal Treasurer within the period prescribed in Section 194 of the Republic Act No. 7160, as implemented under Article 284 of the Implementing Rules and Regulations (IRR).

(o) **Further Distraint or Levy.** The remedies by distraint and levy may be repeated, if necessary, until the full amount due, including all expenses is collected.

(p) **Personal Property Exempt from Distraint of Levy.** The following property shall be exempt from distraint and the levy, attachment or execution thereof for delinquency in the payment of any local tax, fee or charge, including the related surcharge and interest:

1. Tools and the implements necessarily used by the delinquent taxpayer in the trade or employment;
2. One (1) horse, cow, carabao, or other beast of burden, such as the delinquent taxpayer may select, and necessarily used by him in his occupation;
3. His necessary clothing, and that of all his family;
4. Household furniture and utensils necessary for housekeeping and used for that purpose by the delinquent taxpayer, such as he may select, of a value not exceeding Ten Thousand Pesos (P10,000.00);

5. Provisions, including crops, actually provided for individual or family use sufficient for four (4) months;
6. The professional libraries of doctors, engineers, lawyers and judges;
7. One fishing boat and net, not exceeding the total value of Ten Thousand Pesos (₱10,000.00), by the lawful use of which a fisherman earns his livelihood; and
8. Any material or article forming part of a house or improvement of any real property.

Article III **Taxpayer's Remedies.**

Section 241. Periods of Assessment and Collection.

(a) Local taxes, fees, or charges shall be assessed within five (5) years from the date they became due. No action for the collection of such taxes, fees, or charges, whether administrative or judicial, shall be instituted after the expiration of such period: Provided, that taxes, fees, or charges which have accrued before the effectivity of the Local Government Code of 1991 may be assessed within a period of five (5) years from the date they became due.

(b) In case of fraud or intent to evade the payment of taxes, fees, or charges, the same may be assessed within ten (10) years from discovery of the fraud or intent to evade payment.

(c) Local taxes, fees, or charges may be collected within five (5) years from the date of assessment by administrative or judicial action. No such action shall be instituted after the expiration of said period: Provided, however, that taxes, fees and charges assessed before the effectivity of the LGC of 1991 may be assessed within a period of three (3) years from the date of assessment.

(d) The running of the periods of prescription provided in the preceding paragraphs shall be suspended for the time during which:

1. The treasurer is legally prevented from making the assessment of collection;
2. The taxpayer requests for a reinvestigation and executes a waiver in writing before expiration of the period within which to assess or collect; and
3. The taxpayer is out of the country or otherwise cannot be located.

Section 242. Protest of Assessment. When the Municipal Treasurer or his duly authorized representative finds that correct taxes, fees, or charges have not been paid, he shall issue a notice of assessment stating the nature of the tax, fee or charge, the amount of deficiency, the surcharges, interests and penalties.

Within sixty (60) days from the receipt of the notice of assessment, the taxpayer may file a written protest with the Municipal Treasurer contesting the assessment; otherwise, the assessment shall become final and executory. The Municipal Treasurer shall decide the protest within sixty (60) days from the time of its filing. In cases where the protest is denied, the taxpayer shall have thirty (30) days from the receipt of denial or from the lapse of the sixty-day period prescribed herein within which to appeal with the court of competent jurisdiction otherwise the assessment becomes conclusive and unappealable.

Section 243. Claim for Refund of Tax Credit. No case or proceeding shall be maintained in any court for the recovery of any tax, fee, or charge erroneously or illegally collected until a written claim for refund or credit has been filed with the Municipal Treasurer. No case or proceeding shall be entertained in any court after the expiration of two (2) years from the date of payment of such tax, fee or charge, or from the date the taxpayer is entitled to a refund or credit.

Section 244. Legality of this Code. Any question on the constitutionality or legality of this Ordinance may be raised on appeal within thirty (30) days from the effectivity thereof to the Secretary of Justice who shall render a decision within sixty (60) days from the date of receipt of the appeal: Provided, however, that such appeal shall not have the effect of suspending effectivity of this Ordinance and the accrual and payment of the tax, fee or charge levied herein: Provided finally, that within thirty (30) days after the receipt of the decision or the lapse of the sixty-day period without the Secretary of Justice acting upon the appeal, the aggrieved party may file the appropriate proceedings with a court of competent jurisdiction.

Article IV.
Miscellaneous Provisions.

Section 245. Power to Levy Other taxes, Fees or Charges. The municipality may exercise the power to levy taxes, fees or charges on any base or subject not otherwise specifically enumerated herein or taxed under the provisions of the National Internal revenue Code, as amended, or other applicable laws: Provided, that the taxes, fees or charges shall not be unjust, excessive, oppressive, confiscatory or contradictory to declared national policy. Provided, further, that the ordinance levying such taxes, fees or charges shall not be enacted without any prior public hearing conducted for the purpose.

Section 246. Publication of the Revenue Code. Within ten (10) days after its approval, a certified copy of this Ordinance shall be published in full for three (3) consecutive days in a newspaper of local circulation. The same may be posted in at least two (2) conspicuous and publicly accessible places.

Section 247. Public Dissemination of this Code. Copies of this Revenue Code shall be furnished to the Municipal Treasurer for public dissemination.

Section 248. Authority to Adjust Rates. The Sangguniang Bayan shall have the sole authority to adjust tax rates as prescribed herein not oftener than once every five (5) years, but in no case shall such adjustment exceed ten percent (10%) of the rates fixed under this Code.

Article V
GENERAL PENAL PROVISIONS.

Section 249. Penalty. Any person or persons who violates any of the provisions of this Ordinance or the rules or regulations promulgated by authority of this Ordinance shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (₱ 1,000.00) nor more than Two Thousand Five Hundred Pesos (₱ 2,500.00) or imprisonment of not less than one (1) month nor more than six (6) months, or both, at the discretion of the court.

If the violation is committed by any juridical entity, the President, General Manager, or the individual entrusted with the administration thereof at the time of the commission of the violation shall be held responsible or liable therefore.

Punishment by a fine or imprisonment as herein provided for, shall not relieve the offender from the payment of the tax, fee or charge imposed under this Ordinance.

Section 250. Compromise Settlement Fee. Except as the taxes provided under Chapter IV of this Code, the Mayor is hereby authorized to enter into an “*extrajudicial*” or out-of-court settlement of any offense involving violations of any provisions of this Code subject, however, to the following conditions, viz:

1. That the offense does not involve fraud;
2. That the offender shall pay a compromise settlement fee of not less than Three Hundred Pesos (₱500.00) but not more than Two Thousand Pesos (₱2,500.00) as may be agreed upon by both parties;
3. That the payment of the compromise settlement fee above mentioned shall not relieve the offender from the payment of the corresponding tax, fee or charge due from him as provided under this Code, if he is liable therefore.

Article VI
Final Provisions.

Section 251. Separability Clause. If for any reason, any section or provision of this Ordinance shall be held to be unconstitutional or invalid by competent authority, such judgment or action shall not affect or impair the other sections or provisions thereof.

Section 252. Applicability Clause. All other matters relating to the impositions in this Ordinance shall be governed by pertinent provisions of existing laws and other ordinances.

Section 253. Repealing Clause. All ordinances, rules and regulations, or part thereof, in conflict with, or inconsistent with any provisions of this Ordinance are hereby repealed or modified accordingly.

Section 254. Effectivity. This ordinance shall take effect immediately after its posting in two (2) conspicuous places in the Municipality and complete publication in at least one (1) newspaper of general circulation.

UNANIMOUSLY APPROVED.

I HEREBY CERTIFY to the correctness of the foregoing Tax Ordinance No. XLVII otherwise known as “*2022 Revised Revenue Code of Dalaguete, Cebu*” which was duly enacted by the Sangguniang Bayan during its regular session held at the Sanggunian Session Hall on November 28, 2022.

LOEL FAJARDO
OIC-SB Secretary

ATTESTED:

WILLIAM O. LAGAHID
Vice Mayor
Presiding Officer

APPROVED: _____

RONALD ALLAN G. CESANTE
Municipal Mayor